

BLACKWOOD'S

EDINBURGH MAGAZINE.

No. CCCCXX.

OCTOBER, 1850.

Vol. LXVIII.

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EDINBURGH :
WILLIAM BLACKWOOD & SONS, 45 GEORGE STREET;
AND 37 PATERNOSTER ROW, LONDON.

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MODERN STATE TRIALS.^[1]

PART I.

The idea of this work is happily conceived, and carried into effect, in the two volumes before us, with no little judgment and ability. The subject is one interesting, useful, and important; and the author was in many respects well qualified to deal with it by his talents, his accomplishments, his professional acquirements, and his experienced observation. It will be seen that we speak of the author, and of his work, in different tenses; and there is a melancholy significance in the distinction. Within a very few days of his sending to us these two volumes, he died, unexpectedly, in the flower of his age, and just as he had attained an honour which he had long coveted—that of being raised to the rank of Queen's Counsel. On the first day of last Easter term, he presented himself in each of the courts at Westminster, in his "silk" gown, exchanging the customary obeisances with the Judges, the Queen's Counsel, and the great body of his brethren behind the bar, on being formally called by the Lord Chief Justice "to take his seat within the bar, Her Majesty having been pleased to appoint him one of Her Majesty's Counsel." He looked pleasurably excited: alas, how little anticipating that the last day of that same term would see him stripped of his long-coveted insignia, and clothed in the dismal vesture of the grave! For on that day he died, after a brief but very severe illness, in his forty-sixth year. A serious attack of rheumatic fever, several years before, had permanently impaired his physical energies, though not to such an extent as to prevent the exercise of his profession. His practice, till latterly, had been chiefly at the Cheshire and Manchester sessions, from which he gradually rose into considerable business, both civil and criminal, on the North Wales circuit. On being raised to his briefly-held rank, the prospect of a successful career opened before him; for he knew his profession well, as those were aware who were able and disposed to push him forward. During Easter term he was engaged before a committee of the House of Commons, to conduct a case of some importance. This was a lucrative branch of practice, which he was naturally eager to cultivate. Fatigue, anxiety, and excitement induced the return of an

old complaint, accompanied by new and somewhat startling symptoms; but though utterly unfit for business, he could not be restrained from attending the committee room, though it was necessary to carry him in a chair up the long flight of steps leading to the corridor in the new House. He was soon, however, obliged to return as he had gone. The palsying hand of Death had touched the aspiring lawyer! After much suffering, he expired on the 8th of May, the last day of Easter term, and on the 13th was buried in the vaults of Lincoln's Inn, of which he had only a few days previously been elected a Bencher! He was a member of Queen's College, Oxford, where he graduated (we believe with honours) in 1824; was called to the bar in 1828; and elected Recorder of Macclesfield in 1833.—As a speaker he was correct and fluent, though not forcible; as an advocate, judicious and successful. He was a man of classical tastes, extensively read in literature, and exceedingly familiar with political history and constitutional law. What he knew he could use readily and effectively, both as a writer and a speaker. He was very industrious with his pen during every interval between his professional engagements; and has left behind him, independently of his contributions to periodical literature, three works—the *History of the House of Commons from 1688 to 1832*; the *Lives of Twelve Eminent Judges*, and the work now before us. The first of these was published in 1843-4, in two volumes octavo. The author's professed object was to present "a popular history of the House of Commons, with biographical notices of those members who have been most distinguished in its annals; and describing the changes in its internal economy, powers, and privileges," during the space of a hundred and forty-four years elapsing between two memorable periods—the "noble introduction" to Parliamentary Records, "afforded by the Convention Parliament of 1688," and the "eventful close" witnessed in the second Parliament of William IV., which passed "the Reform Bill." This space he subdivided into three distinguishing eras:—

"The *first* includes a space of thirty-nine years—from the abdication of James to the death of George I. in 1727—characterised by master spirits, critical events, and stirring debate. The *second* era—sort of mezzo-termينو—comprehends the reign of George II., when men in office were corrupt, and public morals low, and the general topics of discourse resembled parish vestry discussions, but still a prosperous reign—the sound common-sense of Walpole promoting, even by inglorious

acts, the national welfare, and Chatham's genius rescuing the age from mediocrity.

"The regular publication of the debates, and troubles in America, usher in the *last* and most glorious epoch,—the days of North and Burke—of Pitt and Fox—of Windham and Canning—of Tierney, and Brougham, and Peel,—illustrated by oratory enduring as the language, and with memories of statesmen that can never die."

Mr Townsend's second work was published about four years afterwards—viz., in 1848—also in two volumes, and entitled *Lives of Twelve Eminent Judges of the Last and Present Century*. These were—Lord Alvanley, Mr Justice Buller, Lord Eldon, Lord Ellenborough, Lord Erskine, Sir Vicary Gibbs, Sir William Grant, Lord Kenyon, Lord Loughborough, Lord Redesdale, Lord Stowell, and Lord Tenterden. This work consisted of memoirs, which the author had previously published in the *Law Magazine*, where they had attracted considerable attention from the profession; as they contained many interesting and entertaining anecdotes, and information not easily attainable elsewhere.^[2] Both of these works are of an entertaining character. They are written in an easy, flowing style—occasionally, however, somewhat loose and gossiping. It must be owned that the author's *forte* does not lie in the delineation of character, either moral or intellectual. If he really possessed a quick and searching insight into it, he would seem to have felt a greater pleasure in grouping about each individual who was the subject of his pencil the general incidents of his position, than in penetrating his idiosyncrasy, and detecting the operation of those incidents upon it. He does not conceive distinctly of *his man*, keeping his eye steadily upon him, with a view to the development and exhibition of character; but is apt, if we may be allowed so to speak, to lose him in his life. Still the work is decidedly an acquisition to popular and professional literature, and, equally with its predecessor, evidences the mild and candid temper and character of the author. Thus much we thought it only fair to premise, in justice to the memory of an amiable and accomplished member of the English bar, and a man of letters; one, too, who in his political opinions was a staunch and consistent upholder of those to which Maga has ever been devoted. In no instance, however—in neither of the two works at which we have been thus glancing in passing, nor in that now lying before us—did Mr

Townsend suffer his political opinions to bias his judgment, or betray him into the faintest semblance of partiality or injustice.

It is time now to direct attention to the last work of Mr Townsend—which he barely lived to see published—his *Modern State Trials*, spread over two goodly octavo volumes, containing nearly eleven hundred pages, and these, too, pretty closely printed. Upon this work much thought and labour have evidently been bestowed in the collection of his materials, and dealing with them, as in the volumes before us, in such a manner as to render the product at once interesting and instructive to both general and professional readers.

It is no slight matter to make one's-self thoroughly master of a great case, in all its bearings; to seize its true governing characteristics; to select, condense, and arrange facts and incidents; to assign to every actor, whether judge, jury, witness, or counsel, his proper proportion and position; and all this with a view to interesting and instructing widely different classes of readers—and those, again, general and professional. To do all this effectually, requires powerful talents, much knowledge of life and character, practical acquaintance with the law of the country, a sound judgment, and a vivid imagination. There is scarcely any point of view in which a great trial will not appear deeply interesting to a competent observer, watching how each individual plays his part in the agitating drama. Whether the judge holds the sacred scales even; whether he sees clearly and acts promptly, calmly, resolutely, in detecting fallacy, in order to shield an unsophisticated jury from its subtle and deleterious agency; whether, for this purpose, his intellect and his knowledge are superior, equal, or inferior to those of the advocates pleading before him. How those advocates conduct themselves, intellectually and morally; whether they be clear-headed, acute, ready, learned—or cloudy, obtuse, superficial, and ignorant; whether evenly or over matched; whether they play the gentleman or the scoundrel; whether they will, however difficult the task, nobly recognise the obligations of truth and honour, or villanously disregard them, to secure a paltry triumph in defeating justice! How the witnesses discharge their momentous duties; whether constantly mindful of their oath, or forgetful of it, or wilfully disregarding it, from hostility or partiality to the prisoner, or any other wicked motive. Whether the judge, or the advocates, are equal to the discomfiture of a wicked witness. How the jury are conducting themselves—whether with watchful intelligence, or stolid listlessness. How the

prisoner, standing in the midst of all these—with life, with honour, character, liberty, everything at stake—and depending on the word which one of that jury will utter—how *he* is demeaning himself, knowing, as he does, the truth or falsehood of the charge on which he is being tried; what he is thinking of the exertions of his counsel, of the temper and spirit of the witnesses, of the jury, of the judge; whether he adverts at all to the spectators around him, and the feelings by which they are animated towards him; whether he is aware of, or appreciates, the true strain and pressure of the case—the sudden chances and perils occurring in its progress.

How striking and instructive to observe the abstract rules of justice brought to bear, with equal readiness and precision, upon ordinary and extraordinary combinations of circumstances!—to witness the dead letter of the law become animated with potent vitality for the regulation of human affairs!

Again, it has often occurred to us that there is another point of view from which important trials—nay, almost any trial—may be contemplated with lively interest by a logical observer, with reference to *the use made of facts* by judicial and forensic intellect. How little even the acutest layman could have anticipated such dealing with facts as that which he here beholds; how he must appreciate the practised, watchful art with which the slightest circumstance is seized hold of, and in due time so combined with others with which it seemed to have no conceivable connexion, as to justify conclusions exactly the reverse of those which had till then seemed inevitable! What totally different aspects the same facts may be made to wear by different dealers with them, having different objects in view! By their different arrangement and combination, what *unexpected* inferences may be drawn from the self-same facts, and even when similarly arranged and combined! How exciting to see a defence constructed by experienced astuteness and eloquence out of the slightest materials—out of a hopeless case—in the teeth of one overpowering for the prosecution! The desperate determination, the exquisite subtlety, the consummate judgment, often exhibited on such occasions by eminent advocates—struggling, too, at once with their own sense of right and wrong, and the desire to do their utmost for one who has intrusted his all to them—conscious, too, that though a jury of twelve plain common-sense people may be unable to see through the fallacies which are presented to them, it will doubtless be very far otherwise with one who has to follow, who has the last word! and with that last word

may at once lay bare the sophistries of forensic effrontery, and perhaps rebuke him who attempted to trifle with and mislead the understandings of those so solemnly sworn to give a just and true verdict according to the evidence. "But what is one to do?" exclaims the anxious advocate. "How am I to defend yonder trembling being who has selected me to stand between him and—the scaffold, it may be—if I am to play the judge, and not the advocate; to yield pusillanimously to an array of fearfully plain facts, and make no attempt to square them with the hypothesis of my client's innocence, or persuade a jury that they are—whatever my own secret opinion—pregnant with too much doubt to warrant a verdict of guilty?" Only one who has been placed in the situation can conceive the faintest idea of what is endured on such occasions by the sensitive and conscientious advocate, who is called upon in desperate emergencies—in moments of intense eagerness and anxiety—the spasms, as it were, of which are *publicly* exhibited, and before gifted and critical rivals and merciless public censors, to see and *observe* the delicate but decisive line of right—of duty; to maintain at once the character of the zealous, effective advocate, and the Christian gentleman. If sufficient allowances were made for persons placed in such circumstances of serious embarrassment and responsibility, less uncharitable judgments would be passed on the manner in which advocates exercise their functions than are sometimes seen; judgments formed and pronounced, too, in the closet—by those speaking after the event—calm and undisturbed by anxieties and agitation, which have probably *never been personally experienced*. This topic, however, we shall hereafter treat more at large, in giving to the volumes before us that extended examination which is at present contemplated. They contain a series of trials of undoubted public interest and importance. They have been selected upon the whole judiciously, with a view to the end which the author had proposed to himself; though the propriety of the title which he has chosen—*i. e.* "Modern State Trials"—is not at first sight apparent. The idea conveyed by these words is, trials directly affecting *the state*, political prosecutions in respect of political offences. It is difficult to bring trials for murder, duelling, forgery, abduction, libel, blasphemy, and conspiracy, under this category; and this Mr Townsend felt. Such, nevertheless, constitute a large proportion of the trials contained in these volumes, and are, in our opinion, also those of most popular interest, and worthiest of

being dealt with, as it was Mr Townsend's expressed intention to deal with them.

The "trials" contained in the volumes before us are fifteen in number, of which only four, or at most five, (Mr Townsend seems to have thought six,) have any pretensions to be designated "*State trials*." These five are—John Frost, Edward Oxford, and Smith O'Brien for high treason; Daniel O'Connell, and eight others, for a treasonable conspiracy; and Charles Pinney, for alleged neglect of his duty as mayor of Bristol, during the fiery and bloody "Reform Riots," as they were called, in that place, in October 1831. The remaining ten trials consist of two for duelling—the late James Stuart for killing Sir Alexander Boswell, and the Earl of Cardigan for shooting Captain Tucket; three for murder, (in addition to James Stuart, who was tried for the *murder* of Sir Alexander Boswell)—viz. Conrvoisier for the murder of Lord William Russell; M'Naughton for the murder of Mr Drummond; Hunter and others for conspiracy and the murder of John Smith, the Glasgow cotton-spinner, in 1837; Alexander (the titular Earl of Stirling) for forgery; Lord Cochrane, and seven others, for a conspiracy to raise the funds; the Wakefields for conspiracy, and abduction of an heiress; John Ambrose Williams for a libel on the Durham clergy; and Mr John Moxon, for blasphemy, in publishing the poems of Percy Bysshe Shelley. It will be observed that all these are *criminal* trials, and occurred in England, Scotland, and Ireland; affording thus a favourable opportunity for comparing the different methods of proceeding in their respective courts, and the characteristics of their respective judges and advocates. The English trials are ten, the Scottish three, and the Irish two in number: and whether they are precisely those which could have been most advantageously selected, it were needless, for present purposes, to inquire. Mr Townsend made his choice, and thus generally states his objects and intentions:—

"The present edition of *Modern State Trials* is meant to include those of the most general interest and importance which have occurred during the last thirty years. None are inserted in these volumes which have been previously comprised in any collection; but the editor regrets want of space, which compels him to omit several not unimportant. In making a selection, he has endeavoured to present a faithful, but abridged, report of such legal proceedings as would be most likely to command the

attention of all members of the community, and to be read by them with pleasure and profit. This appears to be the popular description of the term "State Trials," in which Mr Evelyn and Mr Hargreave acquiesced, or they would not have included convictions for witchcraft, and the prosecution of Elizabeth Canning for perjury, in their collection. Were the definition restricted to political offences merely, the work, however logically correct, would be wanting in spirit and variety."— (Introd. vol. i. p. 5.)

After stating that no technical objection can be raised to those of the above trials which immediately affect the State, he observes, that, "for the propriety of inserting the rest under the same title, a just apology may be made." The trial of the Earl of Cardigan, before the House of Lords, is represented as interesting, from the rank of the accused and from the rarity of the trial, as being the first time that duelling was attempted to be brought within a recent statute, (1 Vict. c. 85) enacting that the shooting at a person, not with premeditated malice, but deliberately, and causing a bodily injury dangerous to life, should be a capital offence; and that whoever should shoot any person with intent to commit murder, or to do some grievous bodily harm, should, though no bodily harm were inflicted, be guilty of *felony*, and liable to transportation or imprisonment. The social position of the titular Earl of Stirling, and the extraordinary nature of the evidence, are said to justify the insertion of *his* trial; while, "in the records of criminal jurisprudence, there occur few proceedings of more deep and painful interest than the prosecution of Lord Cochrane, for Conspiracy to commit a fraud on the Stock Exchange." The two cases of Courvoisier and M'Naughton respectively "involve topics of absorbing interest at the period of the occurrence, and of enduring interest to all time: in the one being involved the rights and duties, the privileges and immunities of counsel for prisoners; in the other, the fearful question of responsibility for crime—how far moral insanity alone may exonerate the alleged subject of it from the temporal consequences of his guilt." This latter topic is also involved in Oxford's case. The trials of Mr Stuart for killing Sir Alexander Boswell, and of Mr Moxon for blasphemy, are inserted for one and the same reason—namely, "a desire to embalm the very beautiful speeches of Lord Cockburn, Lord Jeffrey, and Mr Justice Talfourd." As to the trial of Ambrose Williams, it is inserted on account of the celebrated speech in defence by Lord

Brougham—"one of the most vivid specimens extant, in either ancient or modern literature, of keen irony, bitter sarcasm, and vehement vituperation." The prosecution of the Wakefields for conspiracy, and the abduction of Miss Turner, "forms a singular chapter in legal history; interesting not less to the student of human nature, on account of its characters and incidents, than to the lawyer, for the elaborate discussions on the Scottish law of marriages, and the right of the wife, even should there have been a legal marriage, to appear as a witness against the offending husband—matters argued with profuse learning and ability."

"In setting forth, under a condensed form," says Mr Townsend, [3] "this and the other most interesting trials of our time, it has been the object of the editor to free the work from dry severity by introducing the '*loci lætiores*' of the advocates, the salient parts of cross-examination—those little passages of arms between the rival combatants which diversified the arena, the painting of the forensic scene, the poetry of action of these legal dramas. He has sought to give the expressed spirit of eloquence and law, upon occasions which peculiarly called them forth; pruning what was redundant, rejecting superfluities, weeding out irrelevant matter, but omitting no incident or episode that all intelligent witness would have been disappointed at not hearing."

We present the ensuing paragraph, which immediately follows the preceding, because it will afford us an opportunity of making a remark which is applicable to the entire structure of the work before us.

"In the extracts here given from some of the most celebrated speeches of modern days, the editor has also had the great advantage of the last corrections of the speakers themselves, and has thus been enabled to preserve the *ipsissima verba*, by which minds were captivated and verdicts won; those treasures of oratory which would have gladdened the old age of Erskine, could he have seen how his talisman had been passed from hand to hand, and the mantle of his inspiration caught. The vivid appeals of Whiteside, the magnificent defence of Cockburn, the persuasive imagery of Talfourd, will exist as κθηνματα εις αι— trophies of forensic eloquence, beacon lights it may be, in the

midst of that prosaic mistiness which has begun to creep around our courts."

The remark to which we have alluded is this: that the work before us is pervaded by a tone of uniform, excessive, and undistinguishing *eulogy*, which, however creditable to the amiable and generous dispenser of it, is calculated to lower our estimate of his critical judgment, and even—unless one should be on one's guard—to provoke a harsh and disparaging spirit towards the subjects of such undue eulogy, and a suspicion that here "praise undeserved," and the remark is applicable equally to praise "excessive, is censure in disguise!" No judge, no counsel, can say or do *anything*, in the course of any of the trials here brought under our notice, without speaking and acting in such a way as to merit applause for exhibiting the highest qualities of mind and character. Let it not be supposed, that, in making these observations, we wish to apply them to the particular instances cited by Mr Townsend of Messrs Whiteside, Cockburn, and Talfourd—all of whom are distinguished, accomplished, able, and eloquent advocates; but we believe that each would, in spite of the fondest self-love, in his own mind, somewhat mistrust his title to the *amount* of applause here bestowed upon him. What more than he has said of them, could he have said of the greatest orators and advocates whom the world has produced? In a corresponding strain, Mr Townsend speaks of every one—senior and junior counsel—and every writer, great and small, whom he has occasion to mention. Those who knew the late Mr Townsend, and appreciated his simple and manly character, will refer the defect which we have felt compelled thus to point out to its true cause—the kindliness of his heart; and we believe that, had he lived to see these observations, his candour would have caused him promptly to recognise their justice.

Each of the trials is preceded and followed by "Introductory Essays" and "Notes."

"The Essays, chiefly historical, have been introduced in order to familiarise the reader with the subject, and prevent the monotony which, but for these occasional dissertations, might pervade so many recurring trials. The notes are added with a similar object."^[4] We may say generally, that these "Essays" and "Notes" always display judgment, and the writer's complete knowledge of his subject. No reader should enter on the trial, without carefully perusing the "Essay" which ushers it in, shedding light upon all its

details, and the circumstances attending the committing of these offences—and indicating with distinctness the leading features of interest and importance. In the report of the trial itself, great pains have evidently been taken, and successfully, to observe rigid impartiality, and secure accuracy of statement; and the conflicts of counsel with each other and with witnesses—the temperate, and timely interpositions of the judges, and their satisfactory summings-up to the jury—are presented to the reader with no little vividness. The fault of Mr Townsend's style is, diffuseness, a tendency to colloquiality, and a deficiency of vigour. With these little exceptions, added to that above noticed, we have no hesitation in commending these volumes as an acquisition to popular and professional literature, reflecting credit on the author's memory, and the bar to which he belonged.

Having thus briefly indicated the general character of this work, and given the author's own account of it, we propose in the present, and one, or perhaps two, following articles, to take our own view of some of the leading "Trials" thus collected by Mr Townsend, incidentally observing on his treatment of the subject. With him, we regard several of these trials as exhibiting features of remarkable interest; and are much indebted to him for having so disposed his materials as to rouse and rivet the attention of all classes of intelligent readers, but in an especial degree that of the youthful student of jurisprudence. Without further preface, we shall commence with that which stands first in Mr Townsend's collection—the trial of Frost, for high treason.

This affords a very favourable specimen of Mr Townsend's capabilities. He appears to have worked it out perhaps more exactly to his own idea than any of the ensuing ones; and, by his able and judicious treatment of the subject, has given us an opportunity of exhibiting in glowing colours a forensic battle-field: the stake, life or death; the combatants, evenly matched, the very flower of the bar; their tactics clear and decisive, with the odds tremendously against one party—that is to say, facts too strong for almost any degree of daring or astuteness to contend against hopefully. Let us see, under such circumstances, how the combatants acquitted themselves; or, if one may change the figure, let us see how was played a great game of chess on the board of life, by skilful and celebrated players. Who were they? Four in number—Sir John Campbell and Sir Thomas Wilde, then respectively Attorney and Solicitor-General, representing the

Crown; Sir Frederick Pollock and Mr Fitzroy Kelly, Queen's Counsel for the prisoner. Ten years have since elapsed, and behold the changes in the relative positions of these gentlemen! Sir John Campbell is a peer of the realm, and Lord Chief-Justice of the Queen's Bench: having also, during the interval, become a laborious and successful biographer of the Lord Chancellors and Lord Chief-Justices of England. Sir Thomas Wilde is also a peer of the realm, and Lord High Chancellor, having been previously Attorney-General and Chief-Justice of the Common Pleas. Sir Frederick Pollock, having been subsequently appointed Attorney-General, is now Chief Baron of the Exchequer; while Mr Kelly, having since become Solicitor-General, lost office on the break-up of Sir Robert Peel's ministry, and remains—such are the chances and changes of political life—plain Sir Fitzroy Kelly, but occupying a splendid position at the bar. These four were the leading counsel; but besides the Attorney and Solicitor General, the Crown was represented by two gentlemen of great legal learning and eloquence, since raised to the bench—Mr Justice Wightman and Mr Justice Talfourd; and by Mr Serjeant Ludlow, since become a Commissioner of Bankruptcy; and the Hon. John C. Talbot, now so highly distinguished in Parliamentary practice. The judges sent as the special commission consisted of the late Chief-Justice Tindal, the present Mr Baron Parke, and the late Mr Justice Williams, forming, it is superfluous to say, an admirably constituted court—the chief being most consummately qualified for his post by temper, sagacity, and learning.

It was the business of the Attorney and Solicitor General to establish a case of high treason against the prisoner, and of Sir Frederick Pollock and Mr Kelly to defend him *à l'outrance*; but God forbid that we should say *per fas aut nefas*. It were idle to characterise the intellectual and professional qualifications of these four combatants; the eminence of all is undisputed, though their idiosyncrasies are widely different from each other. Suffice it to say, that everything which great experience, sagacity, learning, power, and eloquence could bring to bear on that contest might have been confidently looked for. One circumstance is proper to be borne in mind—that the prisoner's counsel (of course abhorring the acts imputed to their client) were stimulated to the very uttermost exertion by the fact that their own political opinions were notoriously adverse to those entertained by the prisoner, and those—viz., Chartists—who so confidently summoned two Tories to the rescue of their imperilled brother Chartists.

All the main facts of the case were universally known before the trial took place, together, of course, with the legal category to which they must be referred, to satisfy the conditions of high treason. The nature of that offence was thus tersely and beautifully explained by the Chief Justice,—^[5]

"Gentlemen, the crime of high treason, in its own direct consequences, is calculated to produce the most malignant effects upon the community at large; its direct and immediate tendency is the putting down the authority of the law, the shaking and subverting the foundation of all government, the loosening and dissolving the bands and cement by which society is held together, the general confusion of property, the involving a whole people in bloodshed and mutual destruction; and, accordingly, the crime of high treason has always been regarded by the law of this country as the offence of all others of the deepest dye, and as calling for the severest measure of punishment. But in the very same proportion as it is dangerous to the community, and fearful to the offender from the weight of punishment which is attached to it, has it been thought necessary by the wisdom of our ancestors to define and limit this law within certain express boundaries, in order that, on the one hand, no guilty person might escape the punishment due to his transgression by an affected ignorance of the law; and, on the other, that no innocent man might be entangled or brought unawares within the reach of its severity by reason of the law's uncertainty."

The following were fearful words to be heard, or afterwards read, by those who were charged with the defence of Frost. They occur, like the preceding passage, in the luminous charge of the Chief Justice to the Grand Jury, on the 10th December 1839:—

"An assembly of men, armed and arrayed in a warlike manner, with any treasonable purpose, is a levying of war, although no blow be struck; and the enlisting and drilling and marching bodies of men are sufficient overt acts of that treason, without coming to a battle or action. And, if this be the case, the actual conflict between such a body and the Queen's forces must, beyond all doubt, amount to a levying of war against the Queen,

under the statute of Edward. It was quite unnecessary to constitute the guilt of treason that the tumultuous multitude should be accompanied with the pomp and pageantry of war, or with military array. Insurrection and rebellion are more humble in their first infancy; but all such external marks of pomp will not fail to be added with the first gleam of success. The treasonable design once established by the proper evidence, the man who instigated, incited, procured, or persuaded others to commit the act, though not present in person at the commission of it, is equally a traitor, to all intents and purposes, as the man by whose hand the act of treason is committed. He who leads the armed multitude towards the point of attack, and then retires before the blow is struck—he who remains at home, planning and directing the proceedings, but leaving the actual execution of such plans to more daring hands—he who, after treason has been committed, knowingly harbours or conceals the traitor from the punishment due to him, all these are equally guilty in the eye of the law of the crime of high treason."

The head of treason applicable to the facts of the case under consideration is the third in statute 25 Edward III. c. 2, which concisely declares it to exist "*if a man do levy war against our lord the King in his realm.*" This has been the law of the land for just five centuries, *i. e.* since the year 1351. But in the application of these words, of fearful significance, the object with which arms are taken up must be a GENERAL one—"the *universality of the design* making it a rebellion against the state, a usurpation of the power of Government, and an insolent invasion of the King's authority"—"under pretence to reform religion and the laws, or to remove evil counsellors, or other grievances, whether real or pretended."^[6] Or, to adopt the definition of Mr Kelly, in addressing the jury in this very case, it is necessary to prove "that the prisoner levied war against her Majesty, with intent by force to alter the law, and subvert the constitution of the realm."^[7] To appreciate the position of the prisoner, and the difficulties with which his counsel had to struggle, it may here be mentioned, that he admitted the prisoner to be a Chartist, as it was called—that is, a supporter of the following five points of sweeping change in the political institutions of the country,—"*Universal suffrage, vote by ballot, annual parliaments, no property qualification, and*

payment of members of parliament." This was also, during the trial, avowed by the prisoner.^[8]

Having thus got a clear view of the law, let us briefly indicate the *facts*—the palpable, notorious, leading facts, known to be such by the prisoner's counsel, as soon as they had perused their briefs.

A body of ten thousand men, principally miners from the surrounding country, headed, in three divisions, by Frost, and two other men, Jones and Williams, (Frost having five thousand under his command,) and armed indiscriminately with muskets, pikes, axes, staves, and other weapons, was to make a descent upon the peaceful town of Newport, during the night of Sunday, the 3d November 1839! Tempestuous weather prevented the preconcerted junction of these three bands; but, between eight and nine o'clock on the Monday morning, Frost's division, five thousand strong, marched into the town—and, headed after a fashion by him, commenced an attack upon a small inn, where they knew that a handful of troops was stationed, about thirty in number, under command of a lieutenant. As soon as the mob, who formed steadily, saw the soldiers drawn up in the room—the windows of which were thrown open—they cruelly fired into it, and also rushed through the doors into the passage. On this, the lieutenant gave the word of command to fire. He was obeyed—and with deadly effect, as far as regarded some thirty or forty, known to have received the fire, many of whom were shot dead on the spot. But this cool promptitude and determination of the troops put an end *instantly* to the insane insurrection. This vast body of supposed desperadoes fled panic-struck in every direction; and Frost himself, who was unquestionably on the very spot at the very time when and where the attack commenced, fled in ridiculous terror,^[9] and was arrested that evening at a friend's house adjoining his own, armed with three loaded pistols, and having on him a powder-flask and a quantity of balls. His brother heroes, Williams and Jones, were also arrested, together with many others; and there ended the formidable outbreak, which had more astounded than alarmed the public; leaving, however, the instigators and conductors to a speedy and very dismal reckoning with that same public. The active management of matters by Frost was beyond all doubt, and it seemed never to have been wished to conceal it. He was the Jack Cade of the affair. He planned the order of march; the time, place, and mode of attack; and explained the immediate

and ulterior objects of the movement. Shortly before the outbreak, he was asked by one of his adherents, "*what he intended to do?*" He answered,—

"First, they should go to the new poor-house and take soldiers and arms; then, he said, there was a storehouse, where there was plenty of powder; then, they would blow up the bridge, that would stop the Welsh mail which did run to the north, and that would be tidings; and they would commence there in the north on Monday night, and he should be able to see two or three of his friends or enemies in Newport."—(vol. i., p. 36.)

Similar observations he made to another of his followers, who asked him, on hearing him give orders for the guns to take the front, the pikes next, the bludgeons next,—"*in the name of God, what was he going to do? was he going to attack any place or people?*" he said,—

"He was going to attack Newport, and take it—and blow up the bridge, and prevent the Welsh mail from proceeding to Birmingham: that there would be three delegates there, to wait for the coach an hour and a half after the time; and if the mail did not arrive there, the attack was to commence at Birmingham, and be carried thence to the North of England, and Scotland, *and that was to be the signal for the whole nation.*"—(vol. i., p. 33.)

The coal and iron trade in these parts, from which the population derived their subsistence, had seldom been more prosperous than at the time when this movement was concerted and made: employment was easily obtained; wages were high; and those concerned in the affair had no private grievances to redress. At the same time, it was notorious that political agitation, on the subject of the Charter aforesaid, had for some time prevailed there—that the population had been organised for combined and effective action by affiliated societies; and Frost, the prime mover—a pestilent agitator, who, occupying the position of a decent tradesman, a linendraper, in Newtown, had been rashly raised to the local magistracy, from which he was soon degraded for sedition—declared his object to be, to make the Charter the law of the land. All these, and many other facts, which had been elicited during the preliminary examinations, were known to the prisoner's counsel, who had copies of all the depositions which had been

made by the witnesses; and also knew the precise terms in which the indictment was framed, and the name, calling, and residence of every witness to be produced in proof of that indictment.

How was this towering array of facts to be encountered, with these enlightened judges to conduct the inquiry, and guide the jury, and very able and determined counsel to elicit and arrange the facts, and enforce them on the jury—and *have the last word* with the jury in so doing? We may well imagine how anxious and disheartening were the consultations of the prisoner's counsel before going into court. Neither they, nor their attorneys, could disguise from themselves the desperate nature of the case in which they were concerned. They would probably determine to cross-examine the witnesses very cautiously and rigorously, with a view to breaking down important links in the case; and it is likely that their paramount object in conducting the defence, would be to aim at supplying Frost with some other than *a general object*—something else than establishing the Charter as the law of the land. A hopeful prospect! But besides all this, it must have been determined, of course, to throw no single chance away, whereon—however, whenever it presented itself—to fight the fearful case for the Crown inch by inch, and foot by foot—contesting every technical point, with a view to detecting any possible slip in either the preliminary or any other part of the proceedings of the experienced and watchful Crown officers. Here, again, was a hopeful prospect! Their proceedings had been doubtless advised beforehand by the Attorney and Solicitor General, and conducted by Mr Maule, the Solicitor of the Treasury, in person—himself a barrister, and consummately qualified for his post. He was also a humane man, always anxious to discharge his duties firmly, but at the same time to afford a prisoner every degree of consideration and indulgence consistent with the public interest. By this time the reader may be aware how very serious a thing is the conduct, on the part of the Crown, of a prosecution of high treason, in every one of its stages—in the slightest particulars—especially where the great *facts* of the case are so clear against the prisoner, as to compel his advocate to watch and test every link in the chain fixed around his client. Here, in fact, correlative duties are cast on the opposing parties—to *take* every possible objection; and to be beforehand *prepared for* every possible objection, by vigilant exactitude in complying with every legal requisite.

On the *eleventh* day of December 1839, the Grand Jury returned a true bill for high treason, against John Frost and thirteen of his followers; and on the very next day—viz., Thursday the *twelfth*, in order to oblige the prisoner, by giving him the longest possible time for availing himself of the important information contained in the *indictment*, and the *jury list*—copies of these instruments were delivered to him by the Solicitor of the Treasury. On the ensuing Tuesday, the 17th, he delivered to the prisoner a *list of the witnesses*; and, the trial having been appointed to take place on the 31st December, five days previously to the latter day—viz., on the 26th December—Sir Frederick Pollock and Mr Kelly were assigned to John Frost, as his counsel, on his application pursuant to the statute to Mr Bellamy, the clerk of the Crown. It is here essential, in order to appreciate the immense importance of the earliest moves in this life-and-death game, to weigh every word in the following brief enactment, under which the above documents were delivered to the prisoner: the humane object of the legislature being to afford him ample time to prepare his defence.—"When any person is indicted for high treason, a list of the *witnesses*, and of the *jury*, mentioning the names, profession, and place of abode of the said witnesses and jurors, be also given at the same time that the copy of the indictment is delivered to the party indicted—which copy of the indictment shall be delivered ten days before the trial."^[10] Thus it will be seen that as the trial was to take place on Tuesday the 31st December, Mr Maule might have delayed delivering these documents to the prisoner till the 20th, and perhaps till the 21st December; but, solely to favour the prisoner, he delivered two of them—viz., the indictment and jury list—so early as the 12th, and the list of witnesses so early as the 17th December. Let us see, by and by, whether anything comes of this, and of the lengthened study, by the prisoner's counsel, of these three documents.

On Tuesday the 31st December 1839, all the fourteen prisoners were arraigned on an indictment consisting of four counts: two for levying war against her Majesty in her realm; a third for compassing to depose the Queen from her royal throne; and the last, for compassing to levy war against the Queen, with intent to compel her to change her measures. To this indictment each of the fourteen prisoners pleaded not guilty; and it is to be particularly observed that they all did so without making any objection on any score. Thus was taken the first move by the Crown counsel, who may possibly, for aught we can at present see, have thereby gained some

very great advantage. Let us now conceive the solemnly-exciting scene of the court house at Monmouth, on this memorable trial. Three judges sitting, in their imposing scarlet and ermine vestments, calm and grave; a phalanx of counsel sitting beneath them; the prisoners standing at the bar, on their deliverance, silent as the grave, while the fate-fraught procedure of the court was methodically going on; the spectators crowding every part of the court that they could occupy, and all silent, nothing heard but official voices; while without that court all was excitement—repressed, however, by the stern presence of the civil and military power; detachments of troops at that moment scouring the adjacent hills in quest of malcontents, and preventing any fresh rising of the population.

The first step taken by the prisoner's counsel was to state that they appeared for John Frost alone, and should challenge the jury separately: on which all the other prisoners were removed from the bar, John Frost remaining to take his trial alone. Then came the swearing of the jury—the name of every one, with his calling in life, and place of abiding, being known to the prisoner and his counsel, who objected to the very first step taken by the clerk of the Crown. He had begun to call over the names in their alphabetical order on the panel—the usual course for a great series of years; but Sir Frederick Pollock objected to his doing so, insisting on each juror's name being taken from the ballot-box. The Lord Chief-Justice was about to have overruled the objection; but the Attorney-General intimated that he consented to the course proposed by the prisoner's counsel. Each witness was sworn first on the *voir dire*, (*i. e. dicere verum*) as to his qualification, before he was sworn to try. First came a juryman who was challenged peremptorily on the part of the Crown; but the prisoner's counsel, doubtless for very good reasons, wishing him to remain on the jury, insisted, first, that the Crown had no such right—an objection at once overruled; secondly, that the crown was too late, as the juror had actually got the New Testament into his hand to be sworn to try before the Crown challenged. But, on the court's inquiry, it turned out that the witness had himself taken the book, without having been directed to do so by the clerk of the Crown. Under these circumstances, the court decided that the Crown were in time with their challenge—and the juryman was excluded. In this kind of out-skirmishing the whole of the first day was consumed!—a full jury not having been sworn till the evening, when they were "charged" with the prisoner and then dismissed for the night—but with the unpleasant information from the

court, that they themselves were thenceforth prisoners (though with every kind of proper indulgence) till the trial was over.

On the next morning, just as the Attorney-General was rising to state the case of the Crown, he was interrupted by Sir Frederick Pollock, and doubtless sufficiently astonished by what fell from him: "I feel myself bound, at the earliest moment—and this is the first opportunity that I have had,—to take an objection which must occur the moment that the first witness is put into the box,—namely, that the prisoner has never had a list of the witnesses, *pursuant to the statute*, and that therefore *no witness can be called!*" What could be the meaning of this? inquired the Attorney-General's companions among themselves, with no little anxiety; but he himself somewhat sternly censured the interruption, as premature, (as it certainly was,) and proceeded with his address to the jury. He made a lucid and very temperate statement of the case—drawing attention prominently to the necessity imposed on him of proving that what had been done by Frost and his companions was with a *general*, and not a particular object,—a *public*, and not a private purpose. His proposed proof was crushing: but immediately on the Solicitor-General's calling the name of the first witness, Sir Frederick Pollock rose, and required him to prove the delivery of a list of the witnesses, containing the particular one in question, pursuant to the statute. The Attorney-General then called Mr Maule, who proved having done what has already been explained: whereupon Sir Frederick Pollock disclosed the exact objection, which he himself had been the first to detect—that whereas the statute required all these documents,—*i. e.*, the indictment, the jury list, and witness list—to be delivered "*at the same time*," in the present instance that had not been done, the first two having been delivered on the 12th, and the list of witnesses on the 17th December! This was a very formidable move on the part of the prisoner: who stood at the bar on his deliverance—the jury being bound to convict or acquit according to evidence, and none could be offered them! If that *were* so, he must of necessity be pronounced not guilty, and be for ever safe. The objection was urged with extreme tenacity and ingenuity by both the prisoner's counsel, who insisted on the statute of Anne receiving a strict literal construction of the words "*at the same time*,"—admitting the benevolent intentions by which Mr Maule had been actuated. The Attorney-General argued very earnestly against this startling objection, denying that it had any validity—asserting that the statute had been substantially

complied with; and that the objection, if valid, had been waived; and that it was made too late—viz., not till after the prisoner had pleaded to the indictment, and the jury been charged with the prisoner. The Attorney-General's astute argument, however, was interrupted by the Lord Chief-Justice, stating that the court had a sufficient degree of doubt on the point to reserve it for further consideration by the judges at Westminster, should it become necessary: for, if their objection were valid, it affected every one of the fourteen prisoners awaiting their trial! Then came another desperate attempt of Sir Frederick Pollock, to secure his client the benefit of an *acquittal*, in the event of the judges ultimately deciding that the objection ought to have been decided in the prisoner's favour at the trial. This, however, the Attorney-General again strongly opposed; and the court cautiously ruled, that, in the event contemplated, the prisoner would be entitled then to the same benefit to which he would have been entitled at the trial—without saying what that would have been. The witness thus provisionally objected to was then admitted; but only to be, at first, sworn on the *voir dire*, on which a lengthened examination and some argument ensued—each of the judges delivering judgment on the excessively refined and astute objection to the manner in which the witness's place of abode had been described in the list—which was such as that it was just imaginable, and nothing more, that an inquirer might have been misled! The objection was overruled in the case of the first witness; but on the ensuing two witnesses—and most important witnesses—being called, a similar objection was taken, but too successfully, and their evidence, consequently, altogether excluded!—excluded solely on account of the anxious "*over-particularity*" of the Crown! Nor were these the only witnesses whose testimony was, on such grounds, rendered unavailable to the Crown.

Then came the usual contests, from time to time, as to acts and declarations of third parties, which were offered as evidence against the prisoner, though done and said in his absence, and before and after the actual outbreak—viz., to what extent he had rendered himself liable for the consequences of such acts and declarations, by embarking in a common enterprise, having a common intent with these third parties. The result of such contests was practically this,—The court acted on the rule of law, as rule established, that, in treason and conspiracy, the Crown may prove either the conspiracy, which renders admissible as evidence the acts and declarations of the co-conspirators; or the acts and declarations of the different persons, and so

prove the conspiracy. A witness, for instance, said that he was at a party at a Chartists' lodge on the 2d November, when a man named *Reed* gave them directions to go to Newport on the following night, and explained for what purpose they were to go: but the witness did not see Frost till two days *afterwards*, when on his march to Newport. The Lord Chief-Justice overruled the objections of Sir F. Pollock and Mr Kelly, and received the evidence which they had attempted to exclude.

A great mass of proof was given during the trial, establishing most satisfactorily the acts and doings of Frost, throughout the progress of the conspiracy, and down to the very moment of the actual attack on the inn, and the Queen's troops stationed in it—a mass of proof on which the attempt to make an impression seemed absurd. There was only one faint ray of hope for the prisoner's counsel, throughout the palpable obscure—that they might be able to escape from the generality and publicity of object attributed to the prisoner, by persuading the jury that the object was a private, temporary, and specific one—viz., to effect the release of one Vincent, a Chartist, then in confinement at Monmouth! To pave the way for this hopeful line of defence, first, an artful turn was sought, in cross-examination, to be given to one of the early witnesses. He swore that he had heard one of those who attacked the inn, exclaim at the time, presenting his gun at one of the special constables at the door, "Surrender *yourselves* our prisoners;" to which the gallant answer was, "No, never!" On this Mr Kelly very warily cross-examined the witness, with a view of showing that, in the confusion, he could not hear very distinctly, so as to report distinctly, as to precise expressions; that the mob intended merely to rescue Vincent; and that the expressions used must have been, not "Surrender *yourselves* our prisoners," but "Surrender up our prisoners!" or simply, "Surrender our prisoners,"—thus rejecting, from the witness's answer, the single significant word "yourselves." The attempt, however, was wholly ineffectual; but out of two other witnesses were extorted on cross-examination, the following (so to speak) crumbs of comfort: from one—"I have heard Vincent's name mentioned many times; I have heard Williams (one of the leaders of the three bands forming the ten thousand) say that Vincent was a prisoner at Monmouth: the people there liked him very much; the people knew he was in jail. I have heard them speak about him." Another witness said,—"I knew of Vincent's being sent to prison: I believe the Chartists took a great interest in his fate: I do recollect something of dissatisfaction about Vincent's

treatment, and about a petition to be drawn up: I recollect people's minds being dissatisfied about it." Another witness, however, said "that at midnight on the Sunday, (the 3d November,) Williams came to his house with a number of armed men:" the witness inquired, "Where are you going?"—"Why do you ask?" said Williams. "Because," answered the witness, "some of the men who were with me have told me, this morning, that they were going to Monmouth, to draw Vincent out of prison."—"No," replied Williams, "*we do not attempt it*: we are going to give a turn as far as Newport."

The Attorney-General closed his case with the arrest of Frost, heavily armed, and in concealment, on the evening of the day on which he had attacked the inn with his five thousand men; and thus stood the matter, when, after a considerable interval for repose and reflection, courteously conceded by the Lord Chief-Justice, at the implied request of Sir Frederick Pollock, that most able and upright advocate rose to address the jury for the defence. Judging from the specimens afforded us by Mr Townsend, Sir Frederick Pollock's address appears to have been pervaded by a strain of dignified and earnest eloquence, and also characterised by a candour in dealing with facts which was in the highest degree honourable to him, and also equally advantageous to the prisoner, on whose behalf such conduct was calculated to conciliate both the judges and the jury. His line of defence was, that, admitting enormous indiscretion on the part of Frost in assembling so vast a body of men, and marching and appearing with them as he did at Newport, there was no satisfactory evidence of his having done so with a *treasonable* purpose. He had been guilty of a heinous misdemeanour; but the treasonable declarations and exclamations put into his and their mouths, in order to give the affair a treasonable complexion, had been either misunderstood or perverted by the witnesses. The sole object of Frost and his friends was the release of Vincent; that they had never dreamed of *taking*, or *attacking* the town of Newport—least of all, as an act of general rebellion; that all they had meant was to take a "turn" as far as Newport, to get Vincent out of prison; and that "that was the true character of the whole proceedings;" that Frost did not know that the military were in the inn; and that, the instant they had become visible, and had fired, the crowd succumbed, threw down their arms, and ran away—*i. e.* they did this "the very moment there was any prospect of what they were doing being construed into treason." That Frost could not have

contemplated treason, and throwing the whole country into confusion, would be evidenced by proof, and his having made provision for the payment of a bill of exchange, and actually paying it on the very Monday on which the outbreak occurred. Sir Frederick Pollock properly insisted on the burthen of proving treason lying on the Crown, and not of disproof on the prisoner. Then were called one or two witnesses, with a view to showing expressions of the crowd that they had come to Newport in quest of their prisoners who were there; but the evidence proved ridiculously insufficient and contradictory. Then was read, with the Attorney-General's consent, a letter of Frost's in the previous September, to one of the visiting magistrates of the gaol of Monmouth, requesting some relaxation of the prison discipline to which Vincent and other prisoners were subject; and it appeared, also, that a similar application had been made to the Lord-Lieutenant of the county. Then was proved Frost's having taken up his acceptance on the 4th November; and his character for humanity as specially instanced in his having protected Lord Granville Somerset from personal violence, during the Reform riots of 1832. Finally was called a witness, with the view of negating the design imputed to Frost of preventing the Welsh mail from going to Birmingham, by showing the absurdity of that course, since a new and different mail started from Bristol to Birmingham, and not the same coach which had come from Newport. But to this witness were put the following significant, and probably unsuspected, questions:—

"Attorney-General.—You took an interest, I suppose, in Vincent?—*A.* I did so.

"Attorney-General.—You had not been told that there was to be any meeting for Vincent on the 4th of November, had you?—*A.* No.

"Attorney-General.—You, living at Newport, can tell us that there was no notice by placard, or in any other way, of a meeting to be held on the 4th November?—*A.* *I never saw any.*

"Attorney-General.—*Nor heard of any?*—*A.* *No.*"

Such was the meagre case in behalf of the prisoner in point of evidence. And at its close, his second counsel, Mr Kelly, rose to address the jury on his behalf—a privilege accorded to no prisoner, except one tried on a charge

of high treason. We shall present the reader with an extract from the opening passage in Mr Kelly's address, inasmuch as it is highly characteristic of that eminent counsellor's style of advocacy—of his imposing display of fervent confidence in his case—his terse and nervous expression, and the clearness and precision of his reasoning. We have some ground for believing that the following is exactly what fell from his lips:—

"The Attorney-General, in his opening, seemed to anticipate that we might deviate from the straight and honourable course before us, in defending the prisoner, into something like an attempt to induce you to depart from the strict letter of the law. So far from this, it is in the law, in the strict undeviating performance of the law, that I place my hope, my only trust. It is my prayer, therefore, that you should follow it; that you should be guided and governed by it; that you should attend and adhere to the law, and to the law alone; because I feel that, by that law, I shall prove to you, clearly and satisfactorily, that the prisoner, whatever may have been his misconduct in other respects, however high the crimes and misdemeanours for which in another form he might have been indicted or punished—I feel that, by the law of high treason, he is as guiltless as any one of you, whose duty, I hope, it will soon be so to pronounce him. Gentlemen, if the prisoner at the bar be at this moment in any jeopardy or danger, it is from the law not prevailing, or not being clearly and perfectly understood. It is because the facts, which are in evidence before you, undoubtedly disclose a case of guilt against him; because they do prove that he has committed a great and serious violation of the law; because he has subjected himself to indictment and to punishment, that the danger exists—a danger from which it is for me, by all the humble efforts I can command, to protect him—that you, finding that he has offended against the justice of the country, should condemn him, not for the misdemeanour which he has really committed, but for the great and deadly crime with which he is charged by this indictment. I therefore, Gentlemen, beseech your calm and patient attention, while I endeavour as shortly, as concisely, and, I will venture to add, as fairly and candidly as I can, to lay before you, subject to the correction of

their Lordships, the law, as it affects this high and serious charge. And if I should be fortunate enough to do so, I undertake then to satisfy you—to convince the most doubting among you, if there be any more doubting than the rest, when I shall refer you to the testimony of the witnesses,—that this charge is not only not proved, but that it is absolutely and totally disproved, even by the evidence for the prosecution. The question here is,—not whether a great and alarming riot has been committed; the question is, not whether blood has been shed, whether crimes, which are, as they ought to be, punishable by law, have been perpetrated by many who may be the subjects of this indictment; but the question is, whether the prisoner at the bar has, by competent legal proof, been proved, beyond all reasonable doubt in the mind of any one of you, to have levied war against Her Majesty, with the treasonable intent which is stated in this indictment? The Crown must satisfy you that the prisoner at the bar has levied war; that he has levied war against Her Majesty—that is, that he has conducted these armed multitudes, and committed, if he has committed, outrages with them, and concerted with them, or engaged them, to commit them; and not merely that he has done all these acts, but that he has done them against the Queen, that he has levied war against the Queen and her Government. And then, further, it must be proved to you that that was done with the intent, with the design, which is stated in this indictment."—(I. p. 52, 53.)

Mr Kelly's speech was long, elaborate, eloquent, and most ingenious—adhering closely to the line of defence taken by Sir Frederick Pollock—pressing on the jury in every possible way, with many varied illustrations, the improbability of Frost having contemplated the rebellious objects imputed to him, and the alleged certainty that his only view had been—the rescue of Vincent. He vehemently assailed the credibility of those witnesses who had given the strongest evidence against Frost; and concluded with a most impassioned appeal to the feelings of the jury. When he had concluded, the Lord Chief-Justice accorded still another privilege to Frost—viz., that of himself then addressing the jury, after both his counsel had done so; to which Frost prudently replied—"My Lord, I am so well satisfied

with what my counsel have said, that I decline saying anything upon this occasion."^[11]

The Solicitor-General then rose to reply on the part of the Crown; and if any one inexperienced in forensic contests were incredulous as to the potency of *the last word* (from competent lips) in any case, civil or criminal, let him read the outline of this reply, with the copious specimens of it, given with much judgment by Mr Townsend. It is true that Sir Thomas Wilde's case was in itself crushing, but his dealing with it made that crushing character fearfully clear to the plainest capacity. Its opening passages seem tintured by some sternness of allusion to the concluding topics of Mr Kelly's address; but the remainder of the reply is characterised by mingled moderation and power; by irresistible closeness and cogency of argument, and by extraordinary skill in dealing with facts, in combining and contrasting them, and pointing out a significancy lurking in them, which the prisoner's counsel had possibly not chosen to see, or skilfully striven to conceal. Our limits restrict us to one or two samples of the present Lord Chancellor's mode of advocacy when at the bar. After explaining that it was the real object contemplated by the prisoner—viz., to raise, rebellion—with which the jury had to deal, the Solicitor-General thus pithily disposed of all arguments which had been drawn from the prisoner's want of power to do all that he intended:—

"It is also immaterial to this Case whether or not he had the power to do all he intended. We need not talk of punishing successful rebellion—it is unsuccessful rebellion that comes under the cognisance of the law. I cannot restrain the expression of some surprise at the course of argument that was taken by the learned counsel who last addressed you. His course of argument was this: when the prisoner was interrupted in what he was doing, 'Look and see what he has done;' where he has accomplished his purpose, 'Do not believe the witnesses.' The party having been dispersed by the soldiers, the learned gentleman says, 'see if they went to the post-office; see if they went to the bridge; see if they went to other places'—he knowing that they were stopped before they reached those places; 'but as to marching there with arms to take the town, that I dispose of by asking you not to believe the witnesses; so that,

as regards what was prevented, I ask you to see what was done; and as regards what was done, I ask you to disbelieve the witnesses, and there is an end of the charge."—(I. p. 75.)

This single paragraph annihilated a third of the case set up on behalf of Frost; as did the following a second third:—

"They could not have raised these men with a view to relieve the prisoners at the Westgate, because at the time they collected on the mountain they had not been taken. But had it any relation to Vincent? What is their intention? We have been told again and again that Mr Frost must not be supposed likely to do absurd things; that he is a man of the world and a man of intelligence. What then, gentlemen, do you think of an attempt to induce the Monmouthshire magistrates to relax the prison discipline in favour of a person who has been convicted of sedition, or seditious libel, or something of that sort, by marching into Newport with ten thousand men armed? What do you think of a man of the world resorting to that mode of inducing the magistrates to relax in favour of a prisoner? Is Mr Frost a man of intelligence? Is he a man of the world? Suppose he had been the worst foe that Vincent ever had, suppose that he had desired to procure additional restrictions to be put upon him, and had wished that he should sustain the last hour of the sentence which had been pronounced upon him, could he have resorted to a more maliciously effective mode than by showing that those who were connected with Vincent were persons so little acquainted with their duty, so little obedient to the law, so little to be depended upon for their peaceable conduct, as that they would march at that hour of the night into a town, alarming and frightening every body?"—(I. p. 79.)

Again:—

"Gentlemen, will you judge of the criminal intentions of persons engaged in an insurrection by the probability of their success? If you do, you will judge of a mob by a rule that never was found correct yet. They always imagine—and they would not begin if they did not imagine, though they always imagine wrong, but

they never will learn wisdom—they always imagine that they can accomplish more than they can; of course they begin, not with the idea of fastening a halter round their necks, but with the idea that they shall succeed, and by their success escape. With those thousands of men (you will see as I pass on what the number of the soldiers were,) was it an unnatural thing that, coming at between one and two o'clock in the morning, they should surprise the poor-house; that the soldiers, not being aware that they were coming, might not be prepared—might be taken by surprise—might be either overcome or murdered before they could put themselves in a condition to defend themselves?

"Are their sayings inconsistent? What conspiracy ever was consistent? You would indeed give the most perfect freedom to conspiracy, rebellion, and treason, if you disbelieved witnesses coming to prove declarations inconsistent if made at the same time, though not inconsistent when made at different times. They may at first think the soldiers to be Chartists and their friends, and, in the next moment, talk of attacking them in their barracks. But will you give a *carte blanche* to conspirators and traitors by saying, that if witnesses prove inconsistent declarations, they are not to be believed? It is not, gentlemen, the inconsistency of the witnesses, but of those engaged in transactions, the conduct and management of which must vary from hour to hour according as circumstances arise; and that which a man may contemplate one minute, may the following minute or the next hour be inconsistent with the views that had prevailed arising out of the then existing circumstances."—(I. p. 89.)

The circumstance of Frost's having been found with the loaded pistols, and not having attempted to use them, is thus significantly disposed of:—

"Give him the benefit of the circumstance that *he did not use* the three loaded pistols which he had about him. But I think, unfortunately, that they speak much more strongly as indicating violent intentions *when those pistols were provided*, than they

speaking peaceable intentions when he was apprehended."—(I. p. 24.)

There has been no counsel at the English bar, in modern times, whose reply was more dreaded by an opponent than Sir Thomas Wilde; and that reply, in Frost's case, abundantly shows how well founded was that apprehension.

Thus, then, the counsel on both sides having played out their parts in the case, it stood awaiting the intervention of the Lord Chief-Justice—the very model of judicial excellence. Tranquil, grave, patient; exact, ready, profound in legal knowledge, and of perfect impartiality—all these high qualities and qualifications were exhibited by him in his luminous and masterly summing-up on this occasion. In order to give all due weight to the sole substantial suggestion offered on behalf of the prisoner—*i. e.*, that his object had been the liberation of Vincent—the Lord Chief-Justice read to the jury the following important passage from that great authority, Sir Matthew Hale—"If men levy war to break prisons, to deliver *one or more particular persons* out of prison, this was ruled, on advice of the judges, to be not high treason, but only a great riot; but if it was to break prisons, or deliver *persons generally* out of prison, this is treason."^[12] Having taken at once a minute and comprehensive view of the evidence, he left the following as the exact question for their determination,—"*Whether it was Frost's object, by the terror which bodies of armed men would inspire, to seize and keep possession of the town of Newport, making this a beginning of an extensive rebellion, which would be high treason; or whether he had no more in view than to effect, by the display of physical force, the amelioration of the condition of Vincent and his companions in Monmouth jail, if not their liberation, which would be a dangerous misdemeanour only; and the jury were to look at the evidence with all possible candour and fairness, and see if the Crown had conclusively disproved this limited object and design.*"^[13] We conceive that neither Frost nor any one of his ten thousand dupes, on that "day of dupes" which led to this inquiry, could have taken objection to this mode of submitting the all-critical question to his jury—a jury of his peers, with the selection of whom he himself had had as much concern as the Crown.

That jury retired from court for half-an-hour, and then returned, amidst the solemn excited silence of the court—crowded to suffocation—with the fatal verdict, "Guilty;" adding, "My lords, we wish to recommend the prisoner to

the merciful consideration of the court." Sentence was not immediately passed upon him. He was removed from court; and on its re-assembling on the ensuing morning, Zephaniah Williams was placed at the bar, tried, and in due course found guilty; on which William Jones was in like manner arraigned, tried, and found guilty; each being recommended by the jury to mercy. Scared by this result, five of the ringleaders resolved to throw themselves on the mercy of the Crown, withdrawing their pleas of not guilty, and pleading guilty—it having been intimated that the sentence of death should be commuted into transportation for life. The Attorney-General thought it expedient, in the case of the remaining four prisoners, who were less deeply implicated, to allow a verdict of not guilty to be recorded.

On the 16th January, Frost, Williams, and Jones were brought up to the bar to receive sentence of death, which the Lord Chief-Justice prefaced by a very solemn address, listened to in breathless silence. An imposing scene of judicial solemnity and terror, indeed, the court at that agitating moment exhibited. Without were strong detachments of soldiery, foot and horse, guarding the public peace: within were an anxious auditory, commanded to keep silence under pain of fine and imprisonment, while sentence of death was being passed upon the prisoners. There were, in the midst of the throng, two groups awfully contrasted in character and position—the three prisoners, standing pale and subdued; and, sitting opposite, the three judges, each wearing his black cap; while the following heart-sickening words fell from the lips of the Lord Chief-Justice:—

"And now nothing more remains than the duty imposed upon the court—to all of us a most painful duty—to declare the last SENTENCE OF THE LAW; which is that you, John Frost, and you, Zephaniah Williams, and you, William Jones, be taken hence to the place whence you came, and be thence drawn on a hurdle to the place of execution, and that each of you be there hanged by the neck until you be dead; *and that afterwards the head of each of you shall be severed from his body, and the body of each, divided into four quarters, shall be disposed of, as her majesty shall think fit. And may Almighty God have mercy on your souls!*"

Whether the words placed in italics should ever again be pronounced on such an occasion, barbarously prescribing a revolting outrage on the dead, which it is known, at the time, cannot be perpetrated in these days of enlightened humanity, is a point which cannot admit of debate. The practice ought forthwith to be abolished, and by statute, if such be necessary.

Under the mortal pressure of this capital sentence remained these three unhappy and misguided men, from the 16th till the 28th of January. On the 25th, an elaborate argument was had at Westminster before the fifteen judges, which lasted till the 28th, on a case framed by Lord Chief-Justice Tindal for their opinion, on the point which had been raised at the trial by Sir Frederick Pollock. The Chief-Justice submitted these two questions for consideration,—"*First*, whether the service of the list of witnesses was a good service, under the statute 7 Anne, c. 21, § 11; *secondly*, whether, at all events, the objection was taken in due time." There was a great array of counsel on both sides; but the argument was conducted by the Attorney-General alone, on behalf of the Crown; and by Sir Frederick Pollock, Sir William Follett, and Mr Kelly on behalf of the prisoners. The utmost possible ingenuity was displayed on both sides; and with such effect, that at the close of the argument the Lord Chief-Justice of the Common Pleas wrote a letter to the Secretary of State for the Home Department, (the Marquis of Normanby,) announcing the following somewhat perplexing result,—that, "first, a majority of the Judges, in the proportion Of NINE to SIX, were of opinion that the delivery of the list of witnesses was NOT a good delivery in point of law:

"But, *secondly*, a majority of the Judges, in the proportion of nine to six, are of opinion that the OBJECTION to the delivery of the list of witnesses was *not taken in due time*.

"All the Judges agreed, that if the objection had been made in time, the effect of it would have been a postponement of the trial, in order to give time for a proper delivery of the list."

The AYES on this occasion were—

Justices Littledale, Patteson, Williams, Coleridge, Colins, Erskine; Barons Parke, Alderson, Rolfe.

The NOES—

Lord Chief-Justice Denman, Lord Chief-Justice Tindal, Lord Chief-Baron Abinger; *Justices* Bosanquet and Maule, and Baron Gurney.

Those last (the NOES) decided also that the objection had not been taken in time; and three of the former class, (the AYES,) viz. Baron Alderson, Baron Rolfe, and Justice Coleridge, concurred in that decision. ^[14]

Here was a question for the Executive to decide! A capital conviction for high treason, with a decision of the majority of the Judges of the land, that a statutory requisition as to the period for delivery of a list of the witnesses had not been exactly complied with, but that the prisoner did not make the objection till the time had gone by for making it; and that, had he made it in time, the utmost effect would have been to cause a postponement of the trial for a few days. The prisoner's objection was avowedly *strictissimi juris*; and he did not affect to show that he had suffered the slightest detriment from the over-anxious kindness of the Crown solicitor. That, under these circumstances, the lives of the three traitors were absolutely at the mercy of the Ministry, is indisputable; and no one, we conceive, could have censured them, if they had allowed the capital sentence to be carried into effect. They inclined, however, to the merciful exercise of their anxious discretion; and the capital sentence was remitted, on the condition of the three prisoners being transported for the term of their natural lives. They have now been ten years at the Antipodes; and how many times, during that lengthened period of bitter, dishonoured existence, they have cursed their own folly and crime, who can tell?

Have they ever appreciated the skill and vigilance with which they were defended? It is true that this one chance objection—which it is wonderful should have occurred to any one at all—was ultimately pronounced, but only by a majority of the Judges after lengthened debate, to have been taken too late; but if it had not occurred to the vigilant advocate when it did—if no one had taken it at any time—would not the three traitors have been executed? Unquestionably: public justice, the public safety required it. Whether Sir Frederick Pollock purposely delayed making the objection till the moment when he did, (and the Attorney-General insinuated, before the fifteen Judges, that such was the case, ^[15]) thinking that course more advantageous to the prisoners, or whether the objection had not, in fact,

occurred to him till it was too late, we cannot at present say. This much, however, we can say in conclusion, that we are very much indebted to the late Mr Townsend for having enabled us to present this entertainment—for such we hope it has proved—to our readers; who may hereafter look with great interest on a great trial, especially if they have the opportunity of witnessing it. They may then appreciate the exquisite anxieties and responsibilities imposed on those concerned in conducting it—the difficulties with which they have to contend on the spot, without time for consideration, though life itself be the stake played for. They will also, probably, be of the opinion, that in the great game at Monmouth all the players played their parts well—may we not say admirably?—that the uttermost justice was done on both sides. Two practical deductions from the whole may yet be made: first, have a look-out, gentlemen prosecutors, in taking every single step of your course, however apparently unimportant at the time it may seem to you; bearing in mind that, in proportion to the desperate exigencies of the defence, will be the piercing scrutiny to which every formality will be subjected; so that a blot may be hit which might easily have been avoided, but, when hit, is fatal. Secondly, in your turn, gentlemen counsel, be encouraged by the result of this interesting and instructive trial, to watch every single step of your opponents—even those in which error, omission, or miscarriage is least likely—with sleepless vigilance, and be prompt in action. Thus much for the trial of John Frost.

MY NOVEL; OR, VARIETIES IN ENGLISH LIFE.

BY PISISTRATUS CAXTON.

CHAPTER X.

In my next chapter I shall present Squire Hazeldean in patriarchal state—not exactly under the fig-tree he has planted, but before the stocks he has reconstructed.—Squire Hazeldean and his family on the village green! The canvass is all ready for the colours.

But in this chapter I must so far afford a glimpse into antecedents as to let the reader know that there is one member of the family whom he is not likely to meet at present, if ever, on the village green at Hazeldean.

Our squire lost his father two years after his birth; his mother was very handsome—and so was her jointure; she married again at the expiration of her year of mourning—the object of her second choice was Colonel Egerton.

In every generation of Englishmen (at least since the lively reign of Charles II.) there are a few whom some elegant Genius skims off from the milk of human nature, and reserves for the cream of society. Colonel Egerton was one of these *terque, quaterque beati*, and dwelt apart on a top shelf in that delicate porcelain dish—not bestowed upon vulgar buttermilk—which persons of fashion call The Great World. Mighty was the marvel of Pall Mall, and profound was the pity of Park Lane, when this supereminent personage condescended to lower himself into a husband. But Colonel Egerton was not a mere gaudy butterfly; he had the provident instincts ascribed to the bee. Youth had passed from him—and carried off much solid property in its flight; he saw that a time was fast coming when a home, with a partner who could help to maintain it, would be conducive to his comforts, and an occasional humdrum evening by the fireside beneficial to his health. In the midst of one season at Brighton, to which gay place he had

accompanied the Prince of Wales, he saw a widow who, though in the weeds of mourning, did not appear inconsolable. Her person pleased his taste—the accounts of her jointure satisfied his understanding; he contrived an introduction, and brought a brief wooing to a happy close. The late Mr Hazeldean had so far anticipated the chance of the young widow's second espousals, that, in case of that event, he transferred, by his testamentary dispositions, the guardianship of his infant heir from the mother to two squires whom he had named his executors. This circumstance combined with her new ties somewhat to alienate Mrs Hazeldean from the pledge of her former loves; and when she had born a son to Colonel Egerton, it was upon that child that her maternal affections gradually concentrated.

William Hazeldean was sent by his guardians to a large provincial academy, at which his forefathers had received their education time out of mind. At first he spent his holidays with Mrs Egerton; but as she now resided either in London, or followed her lord to Brighton to partake of the gaities at the Pavilion—so, as he grew older, William, who had a hearty affection for country life, and of whose bluff manners and rural breeding Mrs Egerton (having grown exceedingly refined) was openly ashamed, asked and obtained permission to spend his vacations either with his guardians or at the old hall. He went late to a small college at Cambridge, endowed in the fifteenth century by some ancestral Hazeldean; and left it, on coming of age, without taking a degree. A few years afterwards he married a young lady, country born and bred like himself.

Meanwhile his half-brother, Audley Egerton, may be said to have begun his initiation into the *beau monde* before he had well cast aside his coral and bells; he had been fondled in the lap of duchesses, and galloped across the room astride on the canes of ambassadors and princes. For Colonel Egerton was not only very highly connected—not only one of the *Dii majoris* of fashion—but he had the still rarer good fortune to be an exceedingly popular man with all who knew him;—so popular, that even the fine ladies whom he had adored and abandoned forgave him for marrying out of "the set," and continued to be as friendly as if he had not married at all. People who were commonly called heartless, were never weary of doing kind things to the Egertons.—When the time came for Audley to leave the preparatory school, at which his infancy budded forth amongst the stateliest of the little lilies of the field, and go to Eton, half the fifth and sixth forms

had been canvassed to be exceedingly civil to young Egerton. The boy soon showed that he inherited his father's talent for acquiring popularity, and that to this talent he added those which put popularity to use. Without achieving any scholastic distinction, he yet contrived to establish at Eton the most desirable reputation which a boy can obtain—namely, that among his own contemporaries—the reputation of a boy who was sure to do something when he grew to be a man. As a gentleman commoner at Christ Church, Oxford, he continued to sustain this high expectation, though he won no prizes and took but an ordinary degree; and at Oxford the future "something" became more defined—it was "something in public life" that this young man was to do.

While he was yet at the university, both his parents died—within a few months of each other. And when Audley Egerton came of age, he succeeded to a paternal property which was supposed to be large, and indeed had once been so, but Colonel Egerton had been too lavish a man to enrich his heir, and about £1500 a-year was all that sales and mortgages left of an estate that had formerly approached a rental of ten thousand pounds.

Still, Audley was considered to be opulent, and he did not dispel that favourable notion by any imprudent exhibition of parsimony. On entering the world of London, the Clubs flew open to receive him: and he woke one morning to find himself, not indeed famous—but the fashion. To this fashion he at once gave a certain gravity and value—he associated as much as possible with public men and political ladies—he succeeded in confirming the notion that he was 'born to ruin or to rule the State.'

Now, his dearest and most intimate friend was Lord L'Estrange, from whom he had been inseparable at Eton; and who now, if Audley Egerton was the fashion, was absolutely the rage in London.

Harley Lord L'Estrange was the only son of the Earl of Lansmere, a nobleman of considerable wealth, and allied by intermarriages to the loftiest and most powerful families in England. Lord Lansmere, nevertheless, was but little known in the circles of London. He lived chiefly on his estates, occupying himself with the various duties of a great proprietor, and rarely came to the metropolis; so that he could afford to give his son a very ample allowance, when Harley, at the age of sixteen, (having already attained to the sixth form at Eton,) left school for one of the regiments of the Guards.

Few knew what to make of Harley L'Estrange—and that was, perhaps, the reason why he was so much thought of. He had been by far the most brilliant boy of his time at Eton—not only the boast of the cricket-ground, but the marvel of the school-room—yet so full of whims and oddities, and seeming to achieve his triumphs with so little aid from steadfast application, that he had not left behind him the same expectations of solid eminence which his friend and senior, Audley Egerton, had excited. His eccentricities—his quaint sayings and out-of-the-way actions, became as notable in the great world as they had been in the small one of a public school. That he was very clever there was no doubt, and that the cleverness was of a high order might be surmised not only from the originality but the independence of his character. He dazzled the world, without seeming to care for its praise or its censure—dazzled it, as it were, because he could not help shining. He had some strange notions, whether political or social, which rather frightened his father. According to Southey, "A man should be no more ashamed of having been a republican than of having been young." Youth and extravagant opinions naturally go together. I don't know whether Harley L'Estrange was a republican at the age of eighteen; but there was no young man in London who seemed to care less for being heir to an illustrious name and some forty or fifty thousand pounds a-year. It was a vulgar fashion in that day to play the exclusive, and cut persons who wore bad neckcloths and called themselves Smith or Johnson. Lord L'Estrange never cut any one, and it was quite enough to slight some worthy man because of his neckcloth or his birth, to ensure to the offender the pointed civilities of this eccentric successor to the Dorimonts and the Wildairs.

It was the wish of his father that Harley, as soon as he came of age, should represent the borough of Lansmere, (which said borough was the single plague of the Earl's life.) But this wish was never realised. Suddenly, when the young idol of London still wanted some two or three years of his majority, a new whim appeared to seize him. He withdrew entirely from society—he left unanswered the most pressing three-cornered notes of inquiry and invitation that ever strewed the table of a young Guardsman; he was rarely seen anywhere in his former haunts—when seen, was either alone or with Egerton; and his gay spirits seemed wholly to have left him. A profound melancholy was written in his countenance, and breathed in the listless tones of his voice. At this time the Guards were achieving in the Peninsula their imperishable renown; but the battalion to which Harley

belonged was detained at home; and whether chafed by inaction or emulous of glory, the young Lord suddenly exchanged into a cavalry regiment, from which a recent memorable conflict had swept one half the officers. Just before he joined, a vacancy happening to occur for the representation of Lansmere, he made it his special request to his father that the family interest might be given to his friend Egerton—went down to the Park, which adjoined the borough, to take leave of his parents—and Egerton followed, to be introduced to the electors. This visit made a notable epoch in the history of many personages who figure in my narrative; but at present I content myself with saying, that circumstances arose which, just as the canvass for the new election commenced, caused both L'Estrange and Audley to absent themselves from the scene of action, and that the last even wrote to Lord Lansmere expressing his intention of declining to contest the borough.

Fortunately for the parliamentary career of Audley Egerton, the election had become to Lord Lansmere not only a matter of public importance, but of personal feeling. He resolved that the battle should be fought out, even in the absence of the candidate, and at his own expense. Hitherto the contest for this distinguished borough had been, to use the language of Lord Lansmere, "conducted in the spirit of gentlemen,"—that is to say, the only opponents to the Lansmere interest had been found in one or the other of two rival families in the same county; and as the Earl was a hospitable courteous man, much respected and liked by the neighbouring gentry, so the hostile candidate had always interlarded his speeches with profuse compliments to his Lordship's high character, and civil expressions as to his Lordship's candidate. But, thanks to successive elections, one of these two families had come to an end, and its actual representative was now residing within the Rules of the Bench; the head of the other family was the sitting member, and, by an amicable agreement with the Lansmere interest, he remained as neutral as it is in the power of any sitting member to be amidst the passions of an intractable committee. Accordingly, it had been hoped that Egerton would come in without opposition, when, the very day on which he had abruptly left the place, a handbill, signed "Haverill Dashmore, Captain R.N., Baker Street, Portman Square," announced, in very spirited language, the intention of that gentleman to emancipate the borough from the unconstitutional domination of an oligarchical faction, not with a view to his own political aggrandisement—indeed, at great personal

inconvenience—but actuated solely by abhorrence to tyranny, and patriotic passion for the purity of election.

This announcement was followed, within two hours, by the arrival of Captain Dashmore himself, in a carriage-and-four covered with yellow favours, and filled, inside and out, with harum-scarum looking friends who had come down with him to aid the canvass and share the fun.

Captain Dashmore was a thorough sailor, who had, however, taken a disgust to the profession from the date in which a Minister's nephew had been appointed to the command of a ship to which the Captain considered himself unquestionably entitled. It is just to the Minister to add, that Captain Dashmore had shown as little regard for orders from a distance, as had immortalized Nelson himself; but then the disobedience had not achieved the same redeeming success as that of Nelson, and Captain Dashmore ought to have thought himself fortunate in escaping a severer treatment than the loss of promotion. But no man knows when he is well off; and retiring on half-pay, just as he came into unexpected possession of some forty or fifty thousand pounds, bequeathed by a distant relation, Captain Dashmore was seized with a vindictive desire to enter parliament, and inflict oratorical chastisement on the Administration.

A very few hours sufficed to show the sea-captain to be a most capital electioneerer for a small and not very enlightened borough. It is true that he talked the saddest nonsense ever heard from an open window; but then his jokes were so broad, his manner so hearty, his voice so big, that in those dark days, before the schoolmaster was abroad, he would have beaten your philosophical Radical and moralising Democrat hollow. Moreover he kissed all the women, old and young, with all the zest of a sailor who has known what it is to be three years at sea without sight of a beardless lip; he threw open all the public-houses, asked a numerous committee every day to dinner, and, chucking his purse up in the air, declared "he would stick to his guns while there was a shot in the locker." Till then, there had been but little political difference between the candidate supported by Lord Lansmere's interest and the opposing parties—for country gentlemen, in those days, were pretty much of the same way of thinking, and the question had been really local—viz., whether the Lansmere interest should or should not prevail over that of the two squirearchical families who had alone, hitherto, ventured to oppose it. But though Captain Dashmore was really a very loyal

man, and much too old a sailor to think that the State (which, according to established metaphor, is a vessel, *par excellence*,) should admit Jack upon quarterdeck, yet, what with talking against lords and aristocracy, jobs and abuses, and searching through no very refined vocabulary for the strongest epithets to apply to those irritating nouns-substantive, his bile had got the better of his understanding, and he became fuddled, as it were, by his own eloquence. Thus, though as innocent of Jacobinical designs as he was incapable of setting the Thames on fire, you would have guessed him, by his speeches, to be one of the most determined incendiaries that ever applied a match to the combustible materials of a contested election; while, being by no means accustomed to respect his adversaries, he could not have treated the Earl of Lansmere with less ceremony if his Lordship had been a Frenchman. He usually designated that respectable nobleman by the title of "Old Pompous;" and the Mayor, who was never seen abroad but in top-boots, and the Solicitor, who was of a large build, received from his irreverent wit the joint soubriquet of "Tops and Bottoms!" Hence the election had now become, as I said before, a personal matter with my Lord, and, indeed, with the great heads of the Lansmere interest. The Earl seemed to consider his very coronet at stake in the question. "The man from Baker Street," with his preternatural audacity, appeared to him a being ominous and awful—not so much to be regarded with resentment, as with superstitious terror: he felt as felt the dignified Montezuma, when that ruffianly Cortez, with his handful of Spanish rascallions, bearded him in his own capital, and in the midst of his Mexican splendour.—"The gods were menaced if man could be so insolent!" wherefore said my Lord, tremulously,—"The Constitution is gone if the Man from Baker Street comes in for Lansmere!"

But, in the absence of Audley Egerton, the election looked extremely ugly, and Captain Dashmore gained ground hourly, when the Lansmere Solicitor happily bethought him of a notable proxy for the missing candidate. The Squire of Hazeldean, with his young wife, had been invited by the Earl in honour of Audley; and in the Squire the Solicitor beheld the only mortal who could cope with the sea-captain,—a man with a voice as burly, and a face as bold—a man who, if permitted for the nonce by Mrs Hazeldean, would kiss all the women no less heartily than the Captain kissed them; and who was, moreover, a taller, and a handsomer, and a younger man—all three, great recommendations in the kissing department of a contested

election. Yes, to canvass the borough, and to speak from the window, Squire Hazeldean would be even more popularly presentable than the London-bred and accomplished Audley Egerton himself.

The Squire, applied to and urged on all sides, at first said bluntly, "that he would do anything in reason to serve his brother, but that he did not like, for his own part, appearing, even in proxy, as a Lord's nominee; and moreover, if he was to be sponsor for his brother, why, he must promise and vow, in his name, to be staunch and true to the land they lived by; and how could he tell that Audley, when once he got into the House, would not forget the land, and then he, William Hazeldean, would be made a liar, and look like a turncoat!"

But these scruples being overruled by the arguments of the gentlemen and the entreaties of the ladies, who took in the election that intense interest which those gentle creatures usually do take in all matters of strife and contest, the Squire at length consented to confront the Man from Baker Street, and went accordingly into the thing with that good heart and old English spirit with which he went into everything whereon he had once made up his mind.

The expectations formed of the Squire's capacities for popular electioneering were fully realised. He talked quite as much nonsense as Captain Dashmore on every subject except the landed interest;—there he was great, for he knew the subject well—knew it by the instinct that comes with practice, and compared to which all your showy theories are mere cobwebs and moonshine.

The agricultural outvoters—many of whom, not living under Lord Lansmere, but being small yeomen, had hitherto prided themselves on their independence, and gone against my Lord—could not in their hearts go against one who was every inch the farmer's friend. They began to share in the Earl's personal interest against the Man from Baker Street; and big fellows, with legs bigger round than Captain Dashmore's tight little body, and huge whips in their hands, were soon seen entering the shops, "intimidating the electors," as Captain Dashmore indignantly declared.

These new recruits made a great difference in the muster-roll of the Lansmere books; and when the day for polling arrived, the result was a fair question for even betting. At the last hour, after a neck-and-neck contest, Mr

Audley Egerton beat the Captain by two votes. And the names of these voters were John Avenel, resident freeman, and his son-in-law, Mark Fairfield, an outvoter, who, though a Lansmere freeman, had settled in Hazeldean, where he had obtained the situation of head carpenter on the Squire's estate.

These votes were unexpected; for, though Mark Fairfield had come to Lansmere on purpose to support the Squire's brother, and though the Avenels had been always staunch supporters of the Lansmere Blue interest, yet a severe affliction (as to the nature of which, not desiring to sadden the opening of my story, I am considerably silent) had befallen both these persons, and they had left the town on the very day after Lord L'Estrange and Mr Egerton had quitted Lansmere Park.

Whatever might have been the gratification of the Squire, as a canvasser and a brother, at Mr Egerton's triumph, it was much damped when, on leaving the dinner given in honour of the victory at the Lansmere Arms, and about, with no steady step, to enter the carriage which was to convey him to his Lordship's house, a letter was put into his hands by one of the gentlemen who had accompanied the Captain to the scene of action; and the perusal of that letter, and a few whispered words from the bearer thereof, sent the Squire back to Mrs Hazeldean a much soberer man than she had ventured to hope for. The fact was, that on the day of nomination, the Captain having honoured Mr Hazeldean with many poetical and figurative appellations—such as "Prize Ox," "Tony Lumpkin," "Blood-sucking Vampire," and "Brotherly Warming-Pan," the Squire had retorted by a joke about "Salt Water Jack;" and the Captain, who, like all satirists, was extremely susceptible and thin-skinned, could not consent to be called "Salt Water Jack" by a "Prize Ox" and a "Blood-sucking Vampire." The letter, therefore, now conveyed to Mr Hazeldean by a gentleman, who, being from the Sister Country, was deemed the most fitting accomplice in the honourable destruction of a brother mortal, contained nothing more nor less than an invitation to single combat; and the bearer thereof, with the suave politeness enjoined by etiquette on such well-bred homicidal occasions, suggested the expediency of appointing the place of meeting in the neighbourhood of London, in order to prevent interference from the suspicious authorities of Lansmere.

The natives of some countries—the French in particular—think little of that formal operation which goes by the name of DUELLING. Indeed, they seem rather to like it than otherwise. But there is nothing your thorough-paced Englishman—a Hazeldean of Hazeldean—considers with more repugnance and aversion, than that same cold-blooded ceremonial. It is not within the range of an Englishman's ordinary habits of thinking. He prefers going to law—a much more destructive proceeding of the two. Nevertheless, if an Englishman must fight, why, he will fight. He says "it is very foolish;" he is sure "it is most unchristianlike;" he agrees with all that Philosopher, Preacher, and Press have laid down on the subject; but he makes his will, says his prayers, and goes out, like a heathen!

It never, therefore, occurred to the Squire to show the white feather upon this unpleasant occasion. The next day, feigning excuse to attend the sale of a hunting stud at Tattersall's, he ruefully went up to London, after taking a peculiarly affectionate leave of his wife. Indeed, the Squire felt convinced that he should never return home except in a coffin. "It stands to reason," said he to himself, "that a man who has been actually paid by the King's Government for shooting people ever since he was a little boy in a midshipman's jacket, must be a dead hand at the job. I should not mind if it was with double-barrelled Mantons and small shot; but, ball and pistol! they arn't human nor sportsmanlike!" However, the Squire, after settling his worldly affairs, and hunting up an old College friend who undertook to be his second, proceeded to a sequestered corner of Wimbledon Common, and planted himself, not sideways, as one ought to do in such encounters, (the which posture the Squire swore was an unmanly way of shirking,) but full front to the mouth of his adversary's pistol, with such sturdy composure, that Captain Dashmore, who, though an excellent shot, was at bottom as good-natured a fellow as ever lived, testified his admiration by letting off his gallant opponent with ball in the fleshy part of the shoulder; after which he declared himself perfectly satisfied. The parties then shook hands, mutual apologies were exchanged, and the Squire, much to his astonishment to find himself still alive, was conveyed to Limmer's Hotel, where, after a considerable amount of anguish, the ball was extracted, and the wound healed. Now it was all over, the Squire felt very much raised in his own conceit; and, when he was in a humour more than ordinarily fierce, that perilous event became a favourite allusion with him.

He considered, moreover, that his brother had incurred at his hand the most lasting obligations; and that, having procured Audley's return to Parliament, and defended his interests at the risk of his own life, he had an absolute right to dictate to that gentleman how to vote—upon all matters at least connected with the landed interest. And when, not very long after Audley took his seat in Parliament, (which he did not do for some months,) he thought proper both to vote and to speak in a manner wholly belying the promises the Squire had made on his behalf, Mr Hazeldean wrote him such a trimmer, that it could not but produce an unconciliatory reply. Shortly afterwards, the Squire's exasperation reached the culminating point; for, having to pass through Lansmere on a market day, he was hooted by the very farmers whom he had induced to vote for his brother; and, justly imputing the disgrace to Audley, he never heard the name of that traitor to the land mentioned without a heightened colour and an indignant expletive. Monsieur de Roqueville—who was the greatest wit of his day—had, like the Squire, a half-brother, with whom he was not on the best of terms, and of whom he always spoke as his "*frère de loin*." Audley Egerton was thus Squire Hazeldean's "*distant-brother!*"—Enough of these explanatory antecedents,—let us return to the Stocks.

CHAPTER XI.

The Squire's carpenters were taken from the park pales, and set to work at the parish stocks. Then came the painter and coloured them a beautiful dark blue, with a white border—and a white rim round the holes—with an ornamental flourish in the middle. It was the gayest public edifice in the whole village—though the village possessed no less than three other monuments of the Vitruvian genius of the Hazeldeans:—to wit, the alms-house, the school, and the parish pump.

A more elegant, enticing, coquettish pair of stocks never gladdened the eye of a justice of the peace.

And Squire Hazeldean's eye was gladdened. In the pride of his heart he brought all the family down to look at the stocks. The Squire's family (omitting the *frère de loin*) consisted of Mrs Hazeldean, his wife; next, of Miss Jemima Hazeldean, his first cousin; thirdly, of Master Francis Hazeldean, his only son; and fourthly, of Captain Barnabas Higginbotham,

a distant relation—who, indeed, strictly speaking, was not of the family, but only a visitor ten months in the year. Mrs Hazeldean was every inch the lady,—the lady of the parish. In her comely, florid, and somewhat sunburnt countenance, there was an equal expression of majesty and benevolence; she had a blue eye that invited liking, and an aquiline nose that commanded respect. Mrs Hazeldean had no affectation of fine airs—no wish to be greater and handsomer and cleverer than she was. She knew herself, and her station, and thanked heaven for it. There was about her speech and manner something of that shortness and bluntness which often characterises royalty; and if the lady of a parish is not a queen in her own circle, it is never the fault of the parish. Mrs Hazeldean dressed her part to perfection. She wore silks that seemed heirlooms—so thick were they, so substantial and imposing. And over these, when she was in her own domain, the whitest of aprons; while at her waist was seen no fiddle-faddle *chatelaine*, with *breloques* and trumpery, but a good honest gold watch to mark the time, and a long pair of scissors to cut off the dead leaves from her flowers, for she was a great horticulturist. When occasion needed, Mrs Hazeldean could, however, lay by her more sumptuous and imperial raiment for a stout riding-habit of blue Saxony, and canter by her husband's side to see the hounds throw off. Nay, on the days on which Mr Hazeldean drove his famous fast-trotting cob to the market town, it was rarely that you did not see his wife on the left side of the gig. She cared as little as her lord did for wind and weather, and, in the midst of some pelting shower, her pleasant face peeped over the collar and capes of a stout dreadnought, expanding into smiles and bloom as some frank rose, that opens from its petals, and rejoices in the dews. It was easy to see that the worthy couple had married for love; they were as little apart as they could help it. And still, on the First of September, if the house was not full of company which demanded her cares, Mrs Hazeldean "stepped out" over the stubbles by her husband's side, with as light a tread and as blithe an eye as when in the first bridal year she had enchanted the Squire by her genial sympathy with his sports.

So there now stands Harriet Hazeldean, one hand leaning on the Squire's broad shoulder, the other thrust into her apron, and trying her best to share her husband's enthusiasm for his own public-spirited patriotism, in the renovation of the parish stocks. A little behind, with two fingers leaning on the thin arm of Captain Barnabas, stood Miss Jemima, the orphan daughter of the Squire's uncle, by a runaway imprudent marriage with a young lady

who belonged to a family which had been at war with the Hazeldeans since the reign of Charles I., respecting a right of way to a small wood (or rather spring) of about an acre, through a piece of furze land, which was let to a brickmaker at twelve shillings a-year. The wood belonged to the Hazeldeans, the furze land to the Sticktorights, (an old Saxon family if ever there was one.) Every twelfth year, when the faggots and timber were felled, this feud broke out afresh; for the Sticktorights refused to the Hazeldeans the right to cart off the said faggots and timber, through the only way by which a cart could possibly pass. It is just to the Hazeldeans to say that they had offered to buy the land at ten times its value. But the Sticktorights, with equal magnanimity, had declared that they would not "alienate the family property for the convenience of the best squire that ever stood upon shoe leather." Therefore, every twelfth year, there was always a great breach of the peace on the part of both Hazeldeans and Sticktorights, magistrates and deputy-lieutenants though they were. The question was fairly fought out by their respective dependants, and followed by various actions for assault and trespass. As the legal question of right was extremely obscure, it never had been properly decided; and, indeed, neither party wished it to be decided, each at heart having some doubt of the propriety of its own claim. A marriage between a younger son of the Hazeldeans, and a younger daughter of the Sticktorights, was viewed with equal indignation by both families; and the consequence had been that the runaway couple, unblessed and unforgiven, had scrambled through life as they could, upon the scanty pay of the husband, who was in a marching regiment, and the interest of £1000, which was the wife's fortune independent of her parents. They died and left an only daughter, upon whom the maternal £1000 had been settled, about the time that the Squire came of age and into possession of his estates. And though he inherited all the ancestral hostility towards the Sticktorights, it was not in his nature to be unkind to a poor orphan, who was, after all, the child of a Hazeldean. Therefore, he had educated and fostered Jemima with as much tenderness as if she had been his sister; put out her £1000 at nurse, and devoted, from the ready money which had accrued from the rents during his minority, as much as made her fortune (with her own accumulated at compound interest) no less than £4000, the ordinary marriage portion of the daughters of Hazeldean. On her coming of age, he transferred this sum to her absolute disposal, in order that she might feel herself independent, see a little more of the world than she could at

Hazeldean, have candidates to choose from if she deigned to marry; or enough to live upon if she chose to remain single. Miss Jemima had somewhat availed herself of this liberty, by occasional visits to Cheltenham and other watering places. But her grateful affection to the Squire was such, that she could never bear to be long away from the Hall. And this was the more praise to her heart, inasmuch as she was far from taking kindly to the prospect of being an old maid. And there were so few bachelors in the neighbourhood of Hazeldean, that she could not but have that prospect before her eyes whenever she looked out of the Hall windows. Miss Jemima was indeed one of the most kindly and affectionate of beings feminine—and if she disliked the thought of single blessedness, it really was from those innocent and womanly instincts towards the tender charities of hearth and home, without which a lady, however otherwise estimable, is little better than a Minerva in bronze. But whether or not, despite her fortune and her face, which last, though not strictly handsome, was pleasing—and would have been positively pretty if she had laughed more often, (for when she laughed, there appeared three charming dimples, invisible when she was grave)—whether or not, I say, it was the fault of our insensibility or her own fastidiousness, Miss Jemima approached her thirtieth year, and was still Miss Jemima. Now, therefore, that beautifying laugh of hers was very rarely heard, and she had of late become confirmed in two opinions, not at all conducive to laughter. One was a conviction of the general and progressive wickedness of the male sex, and the other was a decided and lugubrious belief that the world was coming to an end. Miss Jemima was now accompanied by a small canine favourite, true Blenheim, with a snub nose. It was advanced in life and somewhat obese. It sate on its haunches, with its tongue out of its month, except when it snapped at the flies. There was a strong Platonic friendship between Miss Jemima and Captain Barnabas Higginbotham; for he too was unmarried, and he had the same ill opinion of your sex, my dear madam, that Miss Jemima had of ours. The Captain was a man of a slim and elegant figure;—the less said about the face the better, a truth of which the Captain himself was sensible, for it was a favourite maxim of his—"that in a man, everything is a slight, gentlemanlike figure." Captain Barnabas did not absolutely deny that the world was coming to an end, only he thought it would last his time.

Quite apart from all the rest, with the nonchalant survey of virgin dandyism, Francis Hazeldean looked over one of the high starched neckcloths which

were then the fashion—a handsome lad, fresh from Eton for the summer holidays, but at that ambiguous age, when one disdains the sports of the boy, and has not yet arrived at the resources of the man.

"I should be glad, Frank," said the Squire, suddenly turning round to his son; "to see you take a little more interest in duties which, one day or other, you may be called upon to discharge. I can't bear to think that the property should fall into the hands of a fine gentleman, who will let things go to rack and ruin, instead of keeping them up as I do."

And the Squire pointed to the stocks.

Master Frank's eye followed the direction of the cane, as well as his cravat would permit; and he said, drily—

"Yes, sir; but how came the stocks to be so long out of repair?"

"Because one can't see to everything at once," retorted the Squire, tartly. "When a man has got eight thousand acres to look after, he must do a bit at a time."

"Yes," said Captain Barnabas. "I know that by experience."

"The deuce you do!" cried the Squire, bluntly. "Experience in eight thousand acres!"

"No—in my apartments in the Albany. No. 3 A. I have had them ten years, and it was only last Christmas that I bought my Japan cat."

"Dear me," said Miss Jemima; "a Japan cat! that must be very curious! What sort of a creature is it?"

"Don't you know? Bless me, a thing with three legs, and holds toast! I never thought of it, I assure you, till my friend Cosey said to me, one morning when he was breakfasting at my rooms—'Higginbotham, how is it that you, who like to have things comfortable about you, don't have a cat?' 'Upon my life,' said I, 'one can't think of everything at a time;' just like you, Squire."

"Pshaw," said Mr Hazeldean, gruffly—"not at all like me. And I'll thank you another time, Cousin Higginbotham, not to put me out, when I'm speaking on matters of importance; poking your cat into my stocks! They look something like now—don't they, Harry? I declare that the whole village

seems more respectable. It is astonishing how much a little improvement adds to the—to the—"

"Charm of a landscape;" put in Miss Jemima sentimentally.

The Squire neither accepted nor rejected the suggested termination; but leaving his sentence uncompleted, broke suddenly off with

"And if I had listened to Parson Dale—"

"You would have done a very wise thing;" said a voice behind, as the Parson presented himself in the rear.

"Wise thing! Why surely, Mr Dale," said Mrs Hazeldean with spirit, for she always resented the least contradiction to her lord and master; perhaps as an interference with her own special right and prerogative! "why, surely if it is necessary to have stocks, it is necessary to repair them."

"That's right, go it, Harry!" cried the Squire, chuckling, and rubbing his hands as if he had been setting his terrier at the Parson: "St—St—at him! Well, Master Dale, what do you say to that?"

"My dear ma'am," said the Parson, replying in preference to the lady, "there are many institutions in the country which are very old, look very decayed, and don't seem of much use; but I would not pull them down for all that."

"You would reform them, then;" said Mrs Hazeldean, doubtfully, and with a look at her husband, as much as to say, "He is on politics now—that's your business."

"No, I would not, ma'am;" said the Parson stoutly.

"What on earth would you do, then?" quoth the Squire.

"Just let 'em alone," said the Parson. "Master Frank, there's a Latin maxim which was often in the mouth of Sir Robert Walpole, and which they ought to put into the Eton grammar—'*Quieta non movere*.' If things are quiet, let them be quiet! I would not destroy the stocks, because that might seem to the ill-disposed like a license to offend, and I would not repair the stocks, because that puts it into people's heads to get into them."

The Squire was a staunch politician of the old school, and he did not like to think that in repairing the stocks he had perhaps been conniving at revolutionary principles.

"This constant desire of innovation," said Miss Jemima, suddenly mounting the more funereal of her two favourite hobbies, "is one of the great symptoms of the approaching crash. We are altering, and mending, and reforming, when in twenty years at the utmost the world itself may be destroyed!" The fair speaker paused, and—

Captain Barnabas said, thoughtfully—"Twenty years!—the insurance offices rarely compute the best life at more than fourteen." He struck his hand on the stocks as he spoke, and added with his usual consolatory conclusion:—"The odds are, that it will last our time, Squire."

But whether Captain Barnabas meant the stocks or the world, he did not clearly explain, and no one took the trouble to inquire.

"Sir," said Master Frank, to his father, with that furtive spirit of quizzing, which he had acquired amongst other polite accomplishments at Eton.—"Sir, it is no use now considering whether the stocks should or should not have been repaired. The only question is, whom you will get to put into them."

"True," said the Squire, with much gravity.

"Yes, there it is!" said the Parson, mournfully. "If you would but learn '*non quieta movere!*'"

"Don't spout your Latin at me, Parson!" cried the Squire, angrily; "I can give you as good as you bring any day.

""Propria quæ maribus tri buuntur mascula dicas.—
As in præsentī, perfectum format in avi.""

"There," added the Squire, turning triumphantly towards his Harry, who looked with great admiration at this unprecedented burst of learning on the part of Mr Hazeldean—"There, two can play at that game! And now that we have all seen the stocks, we may as well go home, and drink tea. Will you come up and play a rubber, Dale? No!—hang it, man, I've not offended you—you know my ways."

"That I do, and they are among the things I would not have altered," cried the Parson—holding out his hand cheerfully. The Squire gave it a hearty shake, and Mrs Hazeldean hastened to do the same. "Do come; I am afraid

we've been very rude; we are sad blunt folks. Do come; that's a dear good man; and of course poor Mrs Dale too." Mrs Hazeldean's favourite epithet for Mrs Dale was *poor*, and that for reasons to be explained hereafter.

"I fear my wife has got one of her bad headaches, but I will give her your kind message, and at all events you may depend upon me."

"That's right," cried the Squire, "in half-an-hour, eh?—How d'ye do, my little man?" as Lenny Fairfield, on his way home from some errand in the village, drew aside and pulled off his hat with both hands. "Stop—you see those stocks—eh? Tell all the bad little boys in the parish to take care how they get into them—a sad disgrace—you'll never be in such a quandary!"

"That at least I will answer for," said the Parson.

"And I too," added Mrs Hazeldean, patting the boy's curly head. "Tell your mother I shall come and have a good chat with her to-morrow evening."

And so the party passed on, and Lenny stood still on the road, staring hard at the stocks, which stared back at him from its four great eyes.

But Lenny did not remain long alone. As soon as the great folks had fairly disappeared, a large number of small folks emerged timorously from the neighbouring cottages, and approached the site of the stocks with much marvel, fear, and curiosity.

In fact, the renovated appearance of this monster—*à propos de bottes*, as one may say—had already excited considerable sensation among the population of Hazeldean. And even as when an unexpected owl makes his appearance in broad daylight, all the little birds rise from tree and hedgerow, and cluster round their ominous enemy, so now gathered all the much excited villagers round the intrusive and portentous Phenomenon.

"D'ye know what the diggins the Squire did it for, Gaffer Solomons?" asked one many-childed matron, with a baby in arms, an urchin of three years old clinging fast to her petticoat, and her hand maternally holding back a more adventurous hero of six, who had a great desire to thrust his head into one of the grisly apertures. All eyes turned to a sage old man, the oracle of the village, who, leaning both hands on his crutch, shook his head bodingly.

"Maw be," said Gaffer Solomons, "some of the boys ha' been robbing the orchards."

"Orchards"—cried a big lad who seemed to think himself personally appealed to—"why, the bud's scarce off the trees yet!"

"No more it in't!" said the dame with many children, and she breathed more freely.

"Maw be," said Gaffer Solomons, "some o' ye has been sitting snares."

"What for?" said a stout sullen-looking young fellow, whom conscience possibly pricked to reply. "What for, when it beant the season? And if a poor man did find a hear in his pocket i' the hay-time, I should like to know if ever a squire in the world would let un off wi' the stocks—eh?"

That last question seemed a settler, and the wisdom of Gaffer Solomons went down fifty per cent in the public opinion of Hazeldean.

"Maw be," said the Gaffer, this time with a thrilling effect, which restored his reputation—"Maw be some o' ye ha' been getting drunk, and making beestises o' yourselves!"

There was a dead pause, for this suggestion applied too generally to be met with a solitary response. At last one of the women said, with a meaning glance at her husband, "God bless the Squire; he'll make some on us happy women if that's all!"

There then arose an almost unanimous murmur of approbation among the female part of the audience; and the men looked at each other, and then at the Phenomenon, with a very hang-dog expression of countenance.

"Or, maw be," resumed Gaffer Solomons, encouraged to a fourth suggestion by the success of its predecessor—"Maw be some o' the Misseses ha' been making a rumpus, and scolding their goodmen. I heard say in my granfeythir's time, that arter old Mother Bang nigh died o' the ducking-stool, them 'ere stocks were first made for the women, out o' compassion like! And every one knows the Squire is a koind-hearted man, God bless un!"

"God bless un!" cried the men heartily; and they gathered lovingly round the Phenomenon, like heathens of old round a tutelary temple. But then rose one shrill clamour among the females, as they retreated with involuntary steps towards the verge of the green, whence they glared at Solomons and the Phenomenon with eyes so sparkling, and pointed at both with gestures

so menacing, that Heaven only knows if a morsel of either would have remained much longer to offend the eyes of the justly enraged matronage of Hazeldean, if fortunately Master Stirn, the Squire's right-hand man, had not come up in the nick of time.

Master Stirn was a formidable personage—more formidable than the Squire himself—as, indeed, a squire's right-hand is generally more formidable than the head can pretend to be. He inspired the greater awe, because, like the stocks, of which he was deputed guardian, his powers were undefined and obscure, and he had no particular place in the out-of-door establishment. He was not the steward, yet he did much of what ought to be the steward's work; he was not the farm-bailiff, for the Squire called himself his own farm-bailiff, nevertheless, Mr Hazeldean sowed and ploughed, cropped and stocked, bought and sold, very much as Mr Stirn condescended to advise. He was not the park-keeper, for he neither shot the deer nor superintended the preserves; but it was he who always found out who had broken a park-pale or snared a rabbit. In short, what may be called all the harsher duties of a large landed proprietor devolved by custom and choice upon Mr Stirn. If a labourer was to be discharged, or a rent enforced, and the Squire knew that he should be talked over, and that the steward would be as soft as himself, Mr Stirn was sure to be the avenging ἀγγελος or messenger, to pronounce the words of fate; so that he appeared to the inhabitants of Hazeldean like the Poet's *Sæva Necessitas*, a vague incarnation of remorseless power, armed with whips, nails, and wedges. The very brute creation stood in awe of Mr Stirn. The calves knew that it was he who singled out which should be sold to the butcher, and huddled up into a corner with beating hearts at his grim footstep; the sow grunted, the duck quacked, the hen bristled her feathers and called to her chicks when Mr Stirn drew near. Nature had set her stamp upon him. Indeed, it may be questioned whether the great M. de Chambray himself, surnamed the Brave, had an aspect so awe-inspiring as that of Mr Stirn; albeit the face of that hero was so terrible, that a man who had been his lackey, seeing his portrait after he had been dead twenty years, fell a trembling all over like a leaf!

"And what the plague are you all doing here?" said Mr Stirn, as he waved and smacked a great cart-whip which he held in his hand, "making such a hullabaloo, you women, you! that I suspect the Squire will be sending out to know if the village is on fire. Go home, will ye? High time indeed to have

the stocks ready, when you get squalling and conspiring under the very nose of a justice of the peace, just as the French Revolutioners did afore they cut off their King's head; my hair stands on end to look at ye." But already, before half this address was delivered, the crowd had dispersed in all directions—the women still keeping together, and the men sneaking off towards the ale-house. Such was the beneficent effect of the fatal stocks on the first day of their resuscitation!

However, in the break up of every crowd there must be always some one who gets off the last; and it so happened that our friend Lenny Fairfield, who had mechanically approached close to the stocks, the better to hear the oracular opinions of Gaffer Solomons, had no less mechanically, on the abrupt appearance of Mr Stirn, crept, as he hoped, out of sight, behind the trunk of the elm tree which partially shaded the stocks; and there now, as if fascinated, he still cowered, not daring to emerge in full view of Mr Stirn, and in immediate reach of the cart-whip,—when the quick eye of the right-hand man detected his retreat.

"Hallo, you sir—what the deuce, laying a mine to blow up the stocks! just like Guy Fox and the Gunpowder Plot, I declares! What ha' you got in your willanous little fist there?"

"Nothing, sir," said Lenny, opening his palm.

"Nothing—um!" said Mr Stirn much dissatisfied; and then, as he gazed more deliberately, recognising the pattern boy of the village, a cloud yet darker gathered over his brow; for Mr Stirn, who valued himself much on his learning—and who, indeed, by dint of more knowledge as well as more wit than his neighbours, had attained his present eminent station in life—was extremely anxious that his only son should also be a scholar; that wish,

"The gods dispersed in empty air."

Master Stirn was a notable dunce at the Parson's school, while Lenny Fairfield was the pride and boast of it; therefore Mr Stirn was naturally, and almost justifiably ill-disposed towards Lenny Fairfield, who had appropriated to himself the praises which Mr Stirn had designed for his son.

"Um!" said the right-hand man, glowering on Lenny malignantly, "you are the pattern boy of the village, are you? Very well, sir—then I put these here stocks under your care—and you'll keep off the other boys from sitting on 'em, and picking off the paint, and playing three holes and chuck farthing, as I declare they've been a-doing, just in front of the elewation. Now you knows your 'sponsibilities, little boy—and a great honour they are too, for the like o' you. If any damage be done, it is to you I shall look; d'ye understand? and that's what the Squire says to me. So you sees what it is to be a pattern boy, Master Lenny!"

With that Mr Stirn gave a loud crack of the cart-whip, by way of military honours, over the head of the vicegerent he had thus created, and strode off to pay a visit to two young unsuspecting pups, whose ears and tails he had graciously promised their proprietor to crop that evening. Nor, albeit few charges could be more obnoxious than that of deputy governor or *chargé-d'affaires extraordinaire* to the Parish Stocks, nor one more likely to render Lenny Fairfield odious to his contemporaries, ought he to have been insensible to the signal advantage of his condition over that of the two sufferers, against whose ears and tails Mr Stirn had no especial motives of resentment. To every bad there is a worse—and fortunately for little boys, and even for grown men, whom the Stirns of the world regard malignly, the majesty of law protects their ears, and the merciful forethought of nature deprived their remote ancestors of the privilege of entailing tails upon them. Had it been otherwise—considering what handles tails would have given to the oppressor, how many traps envy would have laid for them, how often they must have been scratched and mutilated by the briars of life, how many good excuses would have been found for lopping, docking, and trimming them—I fear that only the lap-dogs of fortune would have gone to the grave tail-whole.

CHAPTER XII.

The card-table was set out in the drawing-room at Hazeldean Hall; though the little party were still lingering in the deep recess of the large bay window—which (in itself of dimensions that would have swallowed up a moderate-sized London parlour) held the great round tea-table, with all appliances and means to boot—for the beautiful summer moon shed on the sward so silvery a lustre, and the trees cast so quiet a shadow, and the flowers and new-mown hay sent up so grateful a perfume, that, to close the windows, draw the curtains, and call for other lights than those of heaven, would have been an abuse of the prose of life which even Captain Barnabas, who regarded whist as the business of town and the holiday of the country, shrank from suggesting. Without, the scene, beheld by the clear moonlight, had the beauty peculiar to the garden ground round those old-fashioned country residences which, though a little modernised, still preserve their original character: the velvet lawn, studded with large plots of flowers, shaded and scented here to the left by lilacs, laburnums, and rich seringas—there, to the right, giving glimpses, over low-clipped yews, of a green bowling alley, with the white columns of a summerhouse built after the Dutch taste, in the reign of William III.; and in front—stealing away under covert of those still cedars, into the wilder landscape of the well-wooded undulating park. Within, viewed by the placid glimmer of the moon, the scene was no less characteristic of the abodes of that race which has no parallel in other lands, and which, alas, is somewhat losing its native idiosyncrasies in this—the stout country gentleman, not the fine gentleman of the country—the country gentleman somewhat softened and civilised from the mere sportsman or farmer, but still plain and homely, relinquishing the old hall for the drawing-room, and with books not three months' old on his table, instead of *Fox's Martyrs* and *Baker's Chronicle*—yet still retaining many a sacred old prejudice, that, like the knots in his native oak, rather adds to the ornament of the grain than takes from the strength of the tree. Opposite to the window, the high chimney-piece rose to the heavy cornice of the ceiling, with dark panels glistening against the moonlight. The broad and rather clumsy chintz sofas and settees of the reign, of George III., contrasted at intervals with the tall backed chairs of a far more distant generation, when ladies in fardingales, and gentlemen in trunk-hose, seem never to have indulged in horizontal positions. The walls, of shining

wainscot, were thickly covered, chiefly with family pictures; though now and then some Dutch fair, or battle-piece, showed that a former proprietor had been less exclusive in his taste for the arts. The pianoforte stood open near the fireplace; a long dwarf bookcase, at the far end, added its sober smile to the room. That bookcase contained what was called "The Lady's Library," a collection commenced by the Squire's grandmother, of pious memory, and completed by his mother, who had more taste for the lighter letters, with but little addition from the bibliomaniac tendencies of the present Mrs Hazeldean—who, being no great reader, contented herself with subscribing to the Book Club. In this feminine Bodleian, the sermons collected by Mrs Hazeldean, the grandmother, stood cheek-by-jowl beside the novels purchased by Mrs Hazeldean, the mother.

'Mixtaque ridenti fundet colocasia acantho!'

But to be sure, the novels, in spite of very inflammatory titles, such as "Fatal Sensibility," "Errors of the Heart," &c., were so harmless that I doubt if the sermons could have had much to say against their next-door neighbours—and that is all that can be expected by the best of us.

A parrot dozing on his perch—some gold fish fast asleep in their glass bowl—two or three dogs on the rug, and Flimsey, Miss Jemima's spaniel, curled into a ball on the softest sofa—Mrs Hazeldean's work-table, rather in disorder, as if it had been lately used—the *St James's Chronicle* dangling down from a little tripod near the Squire's arm-chair—a high screen of gilt and stamped leather fencing off the card-table; all these, dispersed about a room large enough to hold them all and not seem crowded, offered many a pleasant resting-place for the eye, when it turned from the world of nature to the home of man.

But see, Captain Barnabas, fortified by his fourth cup of tea, has at length summoned courage to whisper to Mrs Hazeldean, "don't you think the Parson will be impatient for his rubber?" Mrs Hazeldean glanced at the Parson, and smiled; but she gave the signal to the Captain, and the bell was rung, lights were brought in, the curtains let down; in a few moments more the group had collected round the card-tables. The best of us are but human—that is not a new truth, I confess, but yet people forget it every day of their lives—and I dare say there are many who are charitably thinking at

this very moment, that my Parson ought not to be playing at whist. All I can say to those rigid disciplinarians is, "Every man has his favourite sin: whist was Parson Dale's!—ladies and gentlemen, what is yours?" In truth, I must not set up my poor parson, now-a-days, as a pattern parson—it is enough to have one pattern in a village no bigger than Hazeldean, and we all know that Lenny Fairfield has bespoken that place,—and got the patronage of the stocks for his emoluments! Parson Dale was ordained, not indeed so very long ago, but still at a time when churchmen took it a great deal more easily than they do now. The elderly parson of that day played his rubber as a matter of course, the middle-aged parson was sometimes seen riding to cover, (I knew a schoolmaster, a doctor of divinity, and an excellent man, whose pupils were chiefly taken from the highest families in England, who hunted regularly three times a-week during the season,) and the young parson would often sing a capital song—not composed by David—and join in those rotary dances, which certainly David never danced before the ark.

Does it need so long a prolegomenon to excuse thee, poor Parson Dale, for turning up that ace of spades with so triumphant a smile at thy partner? I must own that nothing that well could add to the Parson's offence was wanting. In the first place, he did not play charitably, and merely to oblige other people. He delighted in the game—he rejoiced in the game—his whole heart was in the game—neither was he indifferent to the mammon of the thing, as a Christian pastor ought to have been. He looked very sad when he took his shillings out of his purse, and exceedingly pleased when he put the shillings that had just before belonged to other people into it. Finally, by one of those arrangements common with married people, who play at the same table, Mr and Mrs Hazeldean were invariably partners, and no two people could play worse; while Captain Barnabas, who had played at Graham's with honour and profit, necessarily became partner to Parson Dale, who himself played a good steady parsonic game. So that, in strict truth, it was hardly fair play—it was almost swindling—the combination of these two great dons against that innocent married couple! Mr Dale, it is true, was aware of this disproportion of force, and had often proposed either to change partners or to give odds, propositions always scornfully scouted by the Squire and his lady; so that the Parson was obliged to pocket his conscience, together with the ten points which made his average winnings.

The strangest thing in the world is the different way in which whist affects the temper. It is no test of temper, as some pretend—not at all! The best tempered people in the world grow snappish at whist; and I have seen the most testy and peevish in the ordinary affairs of life bear their losses with the stoicism of Epictetus. This was notably manifested in the contrast between the present adversaries of the Hall and the Rectory. The Squire, who was esteemed as choleric a gentleman as most in the county, was the best-humoured fellow you could imagine when you set him down to whist opposite the sunny face of his wife. You never heard one of these incorrigible blunderers scold each other; on the contrary, they only laughed when they threw away the game, with four by honours in their hands. The utmost that was ever said was a "Well, Harry, that was the oddest trump of yours. Ho—ho—ho!" or a "Bless me, Hazeldean—why, they made three tricks, and you had the ace in your hand all the time! Ha—ha—ha!"

Upon which occasions Captain Barnabas, with great good humour, always echoed both the Squire's ho—ho—ho! and Mrs Hazeldean's ha—ha—ha!

Not so the Parson. He had so keen and sportsmanlike an interest in the game, that even his adversaries' mistakes ruffled him. And you would hear him, with elevated voice and agitated gestures, laying down the law, quoting Hoyle, appealing to all the powers of memory and common sense against the very delinquencies by which he was enriched—a waste of eloquence that always heightened the hilarity of Mr and Mrs Hazeldean. While these four were thus engaged, Mrs Dale, who had come with her husband despite her headache, sate on the sofa beside Miss Jemima, or rather beside Miss Jemima's Flimsey, which had already secured the centre of the sofa, and snarled at the very idea of being disturbed. And Master Frank—at a table by himself—was employed sometimes in looking at his pumps, and sometimes at Gilray's Caricatures, with which his mother had provided him for his intellectual requirements. Mrs Dale, in her heart, liked Miss Jemima better than Mrs Hazeldean, of whom she was rather in awe, notwithstanding they had been little girls together, and occasionally still called each other Harry and Carry. But those tender diminutives belonged to the "Dear" genus, and were rarely employed by the ladies, except at those times when—had they been little girls still, and the governess out of the way—they would have slapped and pinched each other. Mrs Dale was still a very pretty woman, as Mrs Hazeldean was still a very fine woman. Mrs

Dale painted in water colours and sang, and made card-racks and pen-holders, and was called an "elegant accomplished woman." Mrs Hazeldean cast up the Squire's accounts, wrote the best part of his letters, kept a large establishment in excellent order, and was called "a clever, sensible woman." Mrs Dale had headaches and nerves, Mrs Hazeldean had neither nerves nor headaches. Mrs Dale said, "Harry had no real harm in her, but was certainly very masculine." Mrs Hazeldean said, "Carry would be a good creature, but for her airs and graces." Mrs Dale said Mrs Hazeldean was "just made to be a country squire's lady." Mrs Hazeldean said, "Mrs Dale was the last person in the world who ought to have been a parson's wife." Carry, when she spoke of Harry to a third person, said, "Dear Mrs Hazeldean." Harry, when she referred incidentally to Carry, said, "Poor Mrs Dale." And now the reader knows why Mrs Hazeldean called Mrs Dale "poor," at least as well as I do. For, after all, the word belonged to that class in the female vocabulary which may be called "obscure significants," resembling the Konx Ompax, which hath so puzzled the inquirers into the Eleusinian Mysteries; the application is rather to be illustrated than the meaning to be exactly explained.

"That's really a sweet little dog of yours, Jemima," said Mrs Dale, who was embroidering the word CAROLINE on the border of a cambric pocket-handkerchief, but edging a little farther off, as she added, "he'll not bite, will he?" "Dear me, no!" said Miss Jemima; but (she added, in a confidential whisper,) "don't say *he*—'tis a lady dog!" "Oh," said Mrs Dale, edging off still farther, as if that confession of the creature's sex did not serve to allay her apprehensions—"oh, then, you carry your aversion to the gentlemen even to lap-dogs—that is being consistent indeed, Jemima!"

MISS JEMIMA.—"I had a gentleman dog once—a pug!—they are getting very scarce now. I thought he was so fond of me—he snapped at every one else;—the battles I fought for him! Well, will you believe,—I had been staying with my friend Miss Smilecox at Cheltenham. Knowing that William is so hasty, and his boots are so thick, I trembled to think what a kick might do. So, on coming here, I left Buff—that was his name—with Miss Smilecox." (A pause.)

MRS DALE, looking up languidly.—"Well, my love."

MISS JEMIMA.—"Will you believe it, I say, when I returned to Cheltenham, only three months afterwards, Miss Smilecox had seduced his affections from me, and the ungrateful creature did not even know me again. A pug, too—yet people say pugs are faithful!!! I am sure they ought to be, nasty things. I have never had a gentleman dog since—they are all alike, believe me—heartless, selfish creatures."

MRS DALE.—"Pugs? I dare say they are!"

MISS JEMIMA, with spirit.—"MEN!—I told you it was a gentleman dog!"

MRS DALE, apologetically.—"True, my love, but the whole thing was so mixed up!"

MISS JEMIMA.—"You saw that cold-blooded case of Breach of Promise of Marriage in the papers—an old wretch, too, of sixty-four. No age makes them a bit better. And when one thinks that the end of all flesh is approaching, and that—"

MRS DALE, quickly, for she prefers Miss Jemima's other hobby to that black one upon which she is preparing to precede the bier of the universe.—"Yes, my love, we'll avoid that subject, if you please. Mr Dale has his own opinions, and it becomes me, you know, as a parson's wife," (said smilingly; Mrs Dale has as pretty a dimple as any of Miss Jemima's, and makes more of that one than Miss Jemima of three,) "to agree with him—that is, in theology."

MISS JEMIMA, earnestly.—"But the thing is so clear, if you would but look into—"

MRS DALE, putting her hand on Miss Jemima's lips playfully.—"Not a word more. Pray, what do you think of the Squire's tenant at the Casino, Signor Riccabocca? An interesting creature, is not he?"

MISS JEMIMA.—"Interesting! Not to me. Interesting? Why is he interesting?"

Mrs Dale is silent, and turns her handkerchief in her pretty little white hands, appearing to contemplate the R in Caroline.

MISS JEMIMA, half pettishly, half coaxingly.—"Why is he interesting? I scarcely ever looked at him; they say he smokes, and never eats. Ugly, too!"

MRS DALE.—"Ugly—no. A fine head—very like Dante's—but what is beauty?"

MISS JEMIMA.—"Very true; what is it indeed? Yes, as you say, I think there is something interesting about him; he looks melancholy, but that may be because he is poor."

MRS DALE.—"It is astonishing how little one feels poverty when one loves. Charles and I were very poor once—before the Squire——." Mrs Dale paused, looked towards the Squire, and murmured a blessing, the warmth of which brought tears into her eyes. "Yes," she added, after a pause, "we were very poor, but we were happy even then, more thanks to Charles than to me," and tears from a new source again dimmed those quick lively eyes, as the little woman gazed fondly on her husband, whose brows were knit into a black frown over a bad hand.

MISS JEMIMA.—"It is only those horrid men who think of money as a source of happiness. I should be the last person to esteem a gentleman less because he was poor."

MRS DALE.—"I wonder the Squire does not ask Signor Riccabocca here more often. Such an acquisition we find him!"

The Squire's voice from the card table.—"Whom ought I to ask more often, Mrs Dale?"

Parson's voice impatiently.—"Come—come—come, Squire: play to my queen of diamonds—do!"

SQUIRE.—"There, I trump it—pick up the trick, Mrs H."

PARSON.—"Stop! stop! trump my diamond?"

The Captain, solemnly.—"Trick turned—play on, Squire."

SQUIRE.—"The king of diamonds."

MRS HAZELDEAN.—"Lord! Hazeldean—why, that's the most barefaced revoke—ha—ha—ha! trump the queen of diamonds and play out the king! well I never—ha—ha—ha!"

CAPTAIN BARNABAS, in tenor.—"Ha, ha, ha!"

SQUIRE.—"And so I have, bless my soul—ho, ho, ho!"

CAPTAIN BARNABAS, in bass.—"Ho—ho—ho."

Parson's voice raised, but drowned by the laughter of his adversaries and the firm clear tone of Captain Barnabas:—"Three to our score!—game!"

SQUIRE, wiping his eyes.—"No help for it, Harry—deal for me! Whom ought I to ask, Mrs Dale? (waxing angry.) First time I ever heard the hospitality of Hazeldean called in question!"

MRS DALE.—"My dear sir, I beg a thousand pardons, but listeners—you know the proverb."

SQUIRE, growling like a bear.—"I hear nothing but proverbs ever since we have had that Mounseer among us. Please to speak plainly, marm."

MRS DALE, sliding into a little temper at being thus roughly accosted.—"It was of Mounseer, as you call him, that I spoke, Mr Hazeldean."

SQUIRE.—"What! Rickeybockey?"

MRS DALE, attempting the pure Italian accentuation.—"Signor Riccabocca."

PARSON, slapping his cards on the table in despair.—"Are we playing at whist, or are we not?"

The Squire, who is fourth player, drops the king to Captain Higginbotham's lead of the ace of hearts. Now the Captain has left queen, knave, and two other hearts—four trumps to the queen and nothing to win a trick with in the two other suits. This hand is therefore precisely one of those in which, especially after the fall of that king of hearts in the adversary's hand, it becomes a matter of reasonable doubt whether to lead trumps or not. The Captain hesitates, and not liking to play out his good hearts with the certainty of their being trumped by the Squire, nor, on the other hand, liking to open the other suits in which he has not a card that can assist his partner, resolves, as becomes a military man, in such dilemma, to make a bold push and lead out trumps, in the chance of finding his partner strong, and so bringing in his long suit.

SQUIRE, taking advantage of the much meditating pause made by the Captain—"Mrs Dale, it is not my fault. I have asked Rickeybockey—time out of mind. But I suppose I am not fine enough for those foreign chaps—he won't come—that's all I know!"

PARSON, aghast at seeing the Captain play out trumps, of which he, Mr Dale, has only two, wherewith he expects to ruff the suit of spades of which he has only one, (the cards all falling in suits) while he has not a single other chance of a trick in his hand.—"Really, Squire, we had better give up playing if you put out my partner in this extraordinary way—jabber—jabber—jabber!"

SQUIRE.—"Well, we must be good children, Harry. What!—trumps, Barney? Thank ye for that!" And the Squire might well be grateful, for the unfortunate adversary has led up to ace king knave—with two other trumps. Squire takes the Parson's ten with his knave, and plays out ace king; then, having cleared all the trumps except the Captain's queen and his own remaining two, leads off tierce major in that very suit of spades of which the Parson has only one,—and the Captain, indeed, but two—forces out the Captain's queen, and wins the game in a canter.

PARSON, with a look at the Captain which might have become the awful brows of Jove, when about to thunder.—"That, I suppose, is the newfashioned London play! In my time the rule was 'First save the game, then try to win it.'"

CAPTAIN.—"Could not save it, sir."

PARSON, exploding.—"Not save it!—two ruffs in my own hand—two tricks certain till you took them out! Monstrous! The rashest trump"—Seizes the cards—spreads them on the table, lip quivering, hands trembling—tries to show how five tricks could have been gained—(N.B. it is *short* whist, which Captain Barnabas had introduced at the Hall) can't make out more than four—Captain smiles triumphantly—Parson in a passion, and not at all convinced, mixes all the cards together again, and falling back in his chair, groans, with tears in his voice.—"The cruellest trump! the most wanton cruelty!"

The Hazeldeans in chorus.—"Ho—ho—ho! Ha—ha—ha!"

The Captain, who does not laugh this time, and whose turn it is to deal, shuffles the cards for the conquering game of the rubber with as much caution and prolixity as Fabius might have employed in posting his men. The Squire gets up to stretch his legs, and, the insinuation against his hospitality recurring to his thoughts, calls out to his wife—"Write to

Rickeybockey to-morrow yourself, Harry, and ask him to come and spend two or three days here. There, Mrs Dale, you hear me?"

"Yes," said Mrs Dale, putting her hands to her ears in implied rebuke at the loudness of the Squire's tone. "My dear sir, do remember that I'm a sad nervous creature."

"Beg pardon," muttered Mr Hazeldean, turning to his son, who, having got tired of the caricatures, had fished out for himself the great folio County History, which was the only book in the library that the Squire much valued, and which he usually kept under lock and key, in his study, together with the field-books and steward's accounts, but which he had reluctantly taken into the drawing-room that day, in order to oblige Captain Higginbotham. For the Higginbothams—an old Saxon family, as the name evidently denotes—had once possessed lands in that very county. And the Captain—during his visits to Hazeldean Hall—was regularly in the habit of asking to look into the County History, for the purpose of refreshing his eyes, and renovating his sense of ancestral dignity with the following paragraph therein:—"To the left of the village of Dunder, and pleasantly situated in a hollow, lies Botham Hall, the residence of the ancient family of Higginbotham, as it is now commonly called. Yet it appears by the county rolls, and sundry old deeds, that the family formerly styled itself Higgess, till, the Manor House lying in Botham, they gradually assumed the appellation of Higgess-in-botham, and in process of time, yielding to the corruptions of the vulgar, Higginbotham."

"What, Frank! my County History!" cried the Squire. "Mrs H. he has got my County History!"

"Well, Hazeldean, it is time he should know something about the County."

"Ay, and History too," said Mrs Dale, malevolently—for the little temper was by no means blown over.

FRANK.—"I'll not hurt it, I assure you, sir. But I'm very much interested just at present."

The CAPTAIN, putting down the cards to cut.—"You've got hold of that passage about Botham Hall, page 706, eh?"

FRANK.—"No; I was trying to make out how far it is to Mr Leslie's place, Rood Hall. Do you know, mother?"

MRS HAZELDEAN.—"I can't say I do. The Leslie's don't mix with the county; and Rood lies very much out of the way."

FRANK.—"Why don't they mix with the county?"

MRS HAZELDEAN.—"I believe they are poor, and therefore I suppose they are proud: they are an old family."

PARSON, thrumming on the table with great impatience.—"Old fiddledee!—talking of old families when the cards have been shuffled this half hour!"

CAPTAIN BARNABAS.—"Will you cut for your partner, ma'am?"

SQUIRE, who has been listening to Frank's inquiries with a musing air.—"Why do you want to know the distance to Rood Hall?"

FRANK, rather hesitatingly.—"Because Randal Leslie is there for the holidays, sir."

PARSON.—"Your wife has cut for you, Mr Hazeldean. I don't think it was quite fair; and my partner has turned up a deuce—deuce of hearts. Please to come and play, if you *mean* to play."

The Squire returns to the table, and in a few minutes the game is decided by a dexterous finesse of the Captain against the Hazeldeans. The clock strikes ten: the servants enter with a tray; the Squire counts up his own and his wife's losings; and the Captain and Parson divide sixteen shillings between them.

SQUIRE.—"There, Parson, I hope now you'll be in a better humour. You win enough out of us to set up a coach and four."

"Tut!" muttered the Parson; "at the end of the year, I'm not a penny the richer for it all."

And, indeed, monstrous as that assertion seemed, it was perfectly true, for the Parson portioned out his gains into three divisions. One-third he gave to Mrs Dale, for her own special pocket-money; what became of the second third he never owned, even to his better half—but certain it was, that every time the Parson won seven-and-sixpence, half-a-crown, which nobody could account for, found its way to the poor-box; while the remaining third, the Parson, it is true, openly and avowedly retained: but I have no manner

of doubt that, at the year's end, it got to the poor quite as safely as if it had been put into the box.

The party had now gathered round the tray, and were helping themselves to wine and water, or wine without water—except Frank, who still remained poring over the map in the County History, with his head leaning on his hands, and his fingers plunged in his hair.

"Frank," said Mrs Hazeldean, "I never saw you so studious before."

Frank started up, and coloured, as if ashamed of being accused of too much study in anything.

The SQUIRE, with a little embarrassment in his voice.—"Pray, Frank, what do you know of Randal Leslie?"

"Why, sir, he is at Eton."

"What sort of a boy is he?" asked Mrs Hazeldean.

Frank hesitated, as if reflecting, and then answered—"They say he is the cleverest boy in the school. But then he saps."

"In other words," said Mr Dale, with proper parsonic gravity, "he understands that he was sent to school to learn his lessons, and he learns them. You call that sapping—I call it doing his duty. But pray, who and what is this Randal Leslie, that you look so discomposed, Squire?"

"Who and what is he?" repeated the Squire, in a low growl. "Why, you know, Mr Audley Egerton married Miss Leslie the great heiress; and this boy is a relation of hers. I may say," added the Squire, "that he is as near a relation of mine, for his grandmother was a Hazeldean. But all I know about the Leslies is, that Mr Egerton, as I am told, having no children of his own, took up young Randal, (when his wife died, poor woman,) pays for his schooling, and has, I suppose, adopted the boy as his heir. Quite welcome. Frank and I want nothing from Mr Audley Egerton, thank heaven."

"I can well believe in your brother's generosity to his wife's kindred," said the Parson sturdily, "for I am sure Mr Egerton is a man of strong feeling."

"What the deuce do you know about Mr Egerton? I don't suppose you could ever have even spoken to him."

"Yes," said the Parson, colouring up, and looking confused, "I had some conversation with him once;" and observing the Squire's surprise, he added—"when I was curate at Lansmere—and about a painful business connected with the family of one of my parishioners."

"Oh! one of your parishioners at Lansmere—one of the constituents Mr Audley Egerton threw over, after all the pains I had taken to get him his seat. Rather odd you should never have mentioned this before, Mr Dale!"

"My dear sir," said the Parson, sinking his voice, and in a mild tone of conciliatory expostulation, "you are so irritable whenever Mr Egerton's name is mentioned at all."

"Irritable!" exclaimed the Squire, whose wrath had been long simmering, and now fairly boiled over.—"Irritable, sir! I should think so: a man for whom I stood godfather at the hustings, Mr Dale! a man for whose sake I was called a 'prize ox,' Mr Dale! a man for whom I was hissed in a market-place, Mr Dale! a man for whom I was shot at, in cold blood, by an officer in his Majesty's service, who lodged a ball in my right shoulder, Mr Dale! a man who had the ingratitude, after all this, to turn his back on the landed interest—to deny that there was any agricultural distress in a year which broke three of the best farmers I ever had, Mr Dale!—a man, sir, who made a speech on the Currency which was complimented by Ricardo, a Jew! Good heavens! a pretty parson you are, to stand up for a fellow complimented by a Jew! Nice ideas you must have of Christianity. Irritable, sir!" now fairly roared the Squire, adding to the thunder of his voice the cloud of a brow, which evinced a menacing ferocity that might have done honour to Bussy d'Amboise or Fighting Fitzgerald. "Sir, if that man had not been my own half-brother, I'd have called him out. I have stood my ground before now. I have had a ball in my right shoulder. Sir, I'd have called him out."

"Mr Hazeldean! Mr Hazeldean! I'm shocked at you," cried the Parson; and, putting his lips close to the Squire's ear, he went on in a whisper—"What an example to your son! You'll have him fighting duels one of these days, and nobody to blame but yourself."

This warning cooled Mr Hazeldean; and, muttering, "Why the deuce did you set me off?" he fell back into his chair, and began to fan himself with his pocket-handkerchief.

The Parson skilfully and remorselessly pursued the advantage he had gained. "And now, that you may have it in your power to show civility and kindness to a boy whom Mr Egerton has taken up, out of respect to his wife's memory—a kinsman, you say, of your own—and who has never offended you—a boy whose diligence in his studies proves him to be an excellent companion to your son;—Frank," (here the Parson raised his voice,) "I suppose you wanted to call on young Leslie, as you were studying the county map so attentively?"

"Why, yes," answered Frank, rather timidly, "if my father did not object to it. Leslie has been very kind to me, though he is in the sixth form, and, indeed, almost the head of the school."

"Ah," said Mrs Hazeldean, "one studious boy has a fellow-feeling for another; and though you enjoy your holidays, Frank, I am sure you read hard at school."

Mrs Dale opened her eyes very wide, and stared in astonishment.

MRS HAZELDEAN retorted that look with great animation. "Yes, Carry," said she, tossing her head, "though you may not think Frank clever, his masters find him so. He got a prize last half. That beautiful book, Frank—hold up your head, my love—what did you get it for?"

FRANK, reluctantly.—"Verses, ma'am."

MRS HAZELDEAN, with triumph.—"Verses!—there, Carry, verses!"

FRANK, in a hurried tone.—"Yes, but Leslie wrote them for me."

MRS HAZELDEAN, recoiling.—"O Frank! a prize for what another did for you—that was mean."

FRANK, ingenuously.—"You can't be more ashamed, mother, than I was when they gave me the prize."

MRS DALE, though previously provoked at being snubbed by Harry, now showing the triumph of generosity over temper.—"I beg your pardon, Frank. Your mother must be as proud of that shame as she was of the prize."

Mrs Hazeldean puts her arm round Frank's neck, smiles beamingly on Mrs Dale, and converses with her son in a low tone about Randal Leslie. Miss Jemima now approached Carry, and said in an "aside,"—"But we are

forgetting poor Mr Riccabocca. Mrs Hazeldean, though the dearest creature in the world, has such a blunt way of inviting people—don't you think if you were to say a word to him, Carry?"

MRS DALE kindly, as she wraps her shawl round her.—"Suppose you write the note yourself. Meanwhile, I shall see him, no doubt."

PARSON, putting his hand on the Squire's shoulder.—"You forgive my impertinence, my kind friend. We parsons, you know, are apt to take strange liberties, when we honour and love folks, as I do you."

"Pish!" said the Squire, but his hearty smile came to his lips in spite of himself.—"You always get your own way, and I suppose Frank must ride over and see this pet of my—"

"*Brother's*," quoth the Parson, concluding the sentence in a tone which gave to the sweet word so sweet a sound that the Squire would not correct the Parson, as he had been about to correct himself.

Mr Dale moved on; but as he passed Captain Barnabas, the benignant character of his countenance changed sadly.

"The cruellest trump, Captain Higginbotham!" said he sternly, and stalked by—majestic.

The night was so fine that the Parson and his wife, as they walked home, made a little *détour* through the shrubbery.

MRS DALE.—"I think I have done a good piece of work to-night."

PARSON, rousing himself from a reverie.—"Have you, Carry?—it will be a very pretty handkerchief."

MRS DALE.—"Handkerchief!—nonsense, dear. Don't you think it would be a very happy thing for both, if Jemima and Signor Riccabocca could be brought together?"

PARSON.—"Brought together!"

MRS DALE.—"You do snap one up so, my dear—I mean if I could make a match of it."

PARSON.—"I think Riccabocca is a match already, not only for Jemima, but yourself into the bargain."

MRS DALE, smiling loftily.—"Well, we shall see. Was not Jemima's fortune about £4000?"

PARSON dreamily, for he is relapsing fast into his interrupted reverie;—"Ay—ay—I daresay."

MRS DALE.—"And she must have saved! I dare say it is nearly £6000 by this time;—eh! Charles dear, you really are so—good gracious, what's that!"

As Mrs Dale made this exclamation, they had just emerged from the shrubbery, into the village green.

PARSON.—"What's what?"

MRS DALE pinching her husband's arm very nippingly.—"That thing—there—there."

PARSON.—"Only the new stocks, Carry; I don't wonder they frighten you, for you are a very sensible woman. I only wish they would frighten the Squire."

CHAPTER XIII.

Supposed to be a letter from Mrs Hazeldean to——Riccabocca, Esq., The Casino; but edited, and indeed composed, by Miss Jemima Hazeldean.

"Dear Sir,—To a feeling heart it must always be painful to give pain to another, and (though I am sure unconsciously) you have given the *greatest* pain to poor Mr Hazeldean and myself, indeed to *all* our little circle, in so cruelly refusing our attempts to become better acquainted with a gentleman we so highly ESTEEM. Do, pray, dear sir, make us the *amende honorable*, and give us the *pleasure* of your company for a few days at the Hall! May we expect you Saturday next?—our dinner hour is six o'clock.

"With the best compliments of Mr and Miss Jemima Hazeldean,

"Believe me, my dear Sir,
yours truly,

H. H.

HAZELDEAN HALL."

Miss Jemima having carefully sealed this note, which Mrs Hazeldean had very willingly deputed her to write, took it herself into the stable-yard, in order to give the groom proper instructions to wait for an answer. But while she was speaking to the man, Frank, equipped for riding with more than his usual dandyism, came also into the yard, calling for his pony in a loud voice, and singling out the very groom whom Miss Jemima was addressing—for, indeed, he was the smartest of all in the Squire's stables—told him to saddle the grey pad, and accompany the pony.

"No, Frank," said Miss Jemima, "you can't have George; your father wants him to go on a message—you can take Mat."

"Mat, indeed!" said Frank, grumbling with some reason; for Matt was a surly old fellow, who tied a most indefensible neckcloth, and always contrived to have a great patch in his boots;—besides, he called Frank "Master," and obstinately refused to trot down hill;—"Mat, indeed!—let Mat take the message, and George go with me."

But Miss Jemima had also her reasons for rejecting Mat. Mat's foible was not servility, and he always showed true English independence in all houses where he was not invited to take his ale in the servants' hall. Mat might offend Signor Riccabocca, and spoil all. An animated altercation ensued, in the midst of which the Squire and his wife entered the yard, with the intention of driving in the conjugal gig to the market town. The matter was referred to the natural umpire by both the contending parties.

The Squire looked with great contempt on his son. "And what do you want a groom at all for? Are you afraid of tumbling off the pony?"

FRANK.—"No, sir; but I like to go as a gentleman, when I pay a visit to a gentleman!"

SQUIRE, in high wrath.—"You precious puppy! I think I'm as good a gentleman as you, any day, and I should like to know when you ever saw me ride to call on a neighbour, with a fellow jingling at my heels, like that upstart Ned Spankie, whose father kept a cotton-mill. First time I ever heard of a Hazeldean thinking a livery-coat was necessary to prove his gentility!"

Mrs HAZELDEAN observing Frank colouring, and about to reply.—"Hush, Frank, never answer your father,—and you are going to call on Mr Leslie?"

"Yes, Ma'am, and I am very much obliged to my father for letting me," said Frank, taking the Squire's hand.

"Well, but Frank," continued Mrs Hazeldean, "I think you heard that the Leslies were very poor."

FRANK.—"Eh, mother?"

MRS HAZELDEAN.—"And would you run the chance of wounding the pride of a gentleman, as well born as yourself, by affecting any show of being richer than he is?"

SQUIRE with great admiration.—"Harry, I'd give £10 to have said that!"

FRANK, leaving the Squire's hand to take his mother's.—"You're quite right, mother—nothing could be more *snobbish*!"

SQUIRE.—"Give us your fist too, sir; you'll be a chip of the old block, after all."

Frank smiled, and walked off to his pony.

MRS HAZELDEAN to Miss Jemima.—"Is that the note you were to write for me?"

MISS JEMIMA.—"Yes, I supposed you did not care about seeing it, so I have sealed it, and given it to George."

MRS HAZELDEAN.—"But Frank will pass close by the Casino on his way to the Leslies'. It may be more civil if he leaves the note himself."

MISS JEMIMA hesitatingly.—"Do you think so?"

MRS HAZELDEAN.—"Yes, certainly. Frank—Frank—as you pass by the Casino, call on Mr Riccabocca, give this note, and say we shall be heartily glad if he will come."

Frank nods.

"Stop a bit," cried the Squire. "If Rickeybockey's at home, 'tis ten to one if he don't ask you to take a glass of wine! If he does, mind, 'tis worse than

asking you to take a turn on the rack. Faugh! you remember, Harry?—I thought it was all up with me."

"Yes," cried Mrs Hazeldean, "for heaven's sake, not a drop! Wine indeed!"

"Don't talk of it," cried the Squire, making a wry face.

"I'll take care, sir!" said Frank, laughing as he disappeared within the stable, followed by Miss Jemima, who now coaxingly makes it up with him, and does not leave off her admonitions to be extremely polite to the poor foreign gentleman, till Frank gets his foot into the stirrup; and the pony, who knows whom he has got to deal with, gives a preparatory plunge or two, and then darts out of the yard.

MILITARY LIFE IN NORTH AFRICA. [\[16\]](#)

In days of national antipathy, now happily bygone, it was a vulgar English prejudice that Frenchmen were great only as cooks and dancing-masters. In popular belief, the fiddle and the frying-pan were their insignia, pirouettes and fricassees their highest achievements. Peace and steam have exploded these exaggerated notions in the minds even of the least intelligent. They would be inexcusable in the days of cheap excursions to Paris and electric telegraphs beneath the billows of the Channel. Moreover, Englishmen have learned to rival what they once contemned; native talent has been encouraged; Britain glories in cooks who will lower their culinary flag to no foreign kickshaw-compounder that ever stirred a sauce or frothed a *soufflé*; and in professors of the choregraphic who would scorn to be excelled by any Gaul that ever carried a kit. A higher standard has been fixed for the capacity of Frenchmen. Rivalled in cookery and capers, their claims are admitted to first-rate excellence in two nobler sciences—the military, namely, and the dramatic. Sometimes they unite the two. Witness Napoleon, the greatest warrior and most consummate actor France can boast. Certainly Frenchmen show nowhere to such advantage as on the stage or in the field, by the light of the foot-lamps or through the smoke of the bivouac. So strongly, indeed, are they imbued with the military and dramatic essences, that these are continually perceptible when they are engaged in pursuits of a most opposite character. The conscription and national-guard system give to the whole nation a martial tinge, from which the most pacific callings are no preservative. In France, men whose existence passes in the measurement of calico or the parcelling of groceries, often seem, in tone, costume, and mustache, to pertain to the camp rather than the counter. And in the gravest occupations, as in the most commonplace passages of life, a large majority of Frenchmen appear to us English to be continually acting. Their love of effect, contrast, and epigram, gives a theatrical air to their most ordinary as to their most important proceedings. Nations, like individuals, view each other through their own peculiar spectacles; and the French are as much struck and amused with English phlegm and reserve as we are with their vehemence, gesticulations, and demonstrativeness. We are not, however,

here preluding to a dissertation on national character, but to a notice of some pleasant military sketches by a French officer. We have the highest opinion of Frenchmen as soldiers, not merely on account of their bravery, which is universally admitted—by none more freely than by those who have fought and beaten them—but by reason of their many other excellent military qualities—of their discipline, temperance, subordination, and of that sentiment of soldierly honour which we believe to pervade the French troops to an extent never exceeded, and rarely equalled, in any other European army. The works of our own military historians abound with traits of French chivalry and heroism, as they also do with acknowledgments of their peculiar aptitude for war, of their cheerfulness on the march, their patience under privations, their skill—and this is no slight virtue in soldiers—in shifting for themselves, and making the most of a bad bivouac, uncomfortable quarters, or a scanty ration. All these qualities are well displayed in M. de Castellane's sketches of French military life. The date of his campaigns is recent, the scene Africa; his opponents were Arabs and Kabyles; his comrades, Spahis, Zouaves, Chasseurs d'Orleans, and Chasseurs d'Afrique. To some, a brief explanation of these terms may be useful. Spahis are Arab cavalry in the French service, officered by Frenchmen, and with an admixture of European soldiers in the ranks. The Zouaves are a crack infantry corps, similarly composed, and attired, like the Spahis, in Oriental costume. The Chasseurs of Orleans are light infantry, wonderfully active, and wearing dark uniforms. Finally, the Chasseurs of Africa are a very fine body of French cavalry, raised expressly for African service, dressed in light blue, well mounted, and armed with carbine and sabre, some with lances. Like the Zouaves, this last-named corps is a favourite with adventurous volunteers, ambitious of distinction and the epaulet. In its fourth squadron, the author of these sketches held an officer's commission. He writes like a gentleman and a soldier; his style is pointed and to the purpose, and free from egotism and affectation. He himself shared in some of the warlike episodes he tells of; others are derived from the verbal or written narratives of his comrades. They comprise a great variety of details, and fully initiate us into the phases of a soldier's life in Africa. Numerous as are the works, French, English, and German, of which French conquest and colonisation in Africa have furnished the theme, there was still abundant room for this one, taking up, as it does, that branch of the subject which writers generally have had least opportunity of appreciating

—the joys and sorrows, hardships and exploits, perils and sufferings, of the French soldier in Algeria. A fresh interest is also imparted to it by the prominent part lately and still taken in public affairs in France by men who have risen into distinction through their valour and military talents during the long struggle with the Arabs. Comparatively inattentive as we in England were to the razzias and skirmishes of the African campaigns, the names of Changarnier, Cavaignac, and Lamoricière can hardly be said to have dwelt in our memories until revolution and civil strife in their own country brought them to the front. It now is interesting to revert to those earlier days of their career, when they fought the Bedouin on the arid plains and in the perilous defiles of North Africa, fostering in that rough school the sternness and tenacity of character which they since have more than once had occasion usefully to display amidst the turmoil of domestic discord.

"At four days' march from Milianah," says M. de Castellane, "in the heart of the valley of the Cheliff, stand some old Roman walls, bearing mute testimony to the power of the ancient rulers of the land. At the foot of these walls, not far from tracts of stubble and dried herbs, delicious gardens and orchards, orange and pomegranate trees, and limpid springs, invite a halt; whilst luxuriant vines, trailing from branch to branch, form bowers of verdure, and offer delightful shelter to the fatigued wayfarer. It was at this spot that General Changarnier's column, consisting of twelve hundred infantry, three hundred regular cavalry, and four hundred Arab horsemen, was reposing, in the month of September 1842, from its numerous expeditions under a burning sun, protecting by its presence the tribes that had recently made their submission, and giving the *aman* to those numerous ones which came to implore it.^[17] The column had been for some time at *El-Arour*, (the name of these gardens), when a letter reached the camp from our Aga in the south. Menaced by Abd-el-Kader, Ahmeur-ben-Ferrah asked succour of General Changarnier, entreating him to arrive speedily if he did not wish soon to learn the ruin and massacre of the tribes to whom France owed protection. It was of the utmost importance to go quickly to his assistance. To pass by Milianah was to lengthen the journey four days; through the mountains, on the other hand, in two marches they would be near enough to support him. The tribes seemed peacefully disposed. The Arab chiefs assured the French that not a shot would be fired at them. They spoke of a very difficult defile, but two hours, they said, would take the troops through it. Besides, it was dangerous only in case of hostility from

the tribes adjacent to the river, whose chiefs, only the evening before, had visited the camp in friendship. Finally, the general had under his orders Zouaves, Chasseurs of Orleans, and Chasseurs of Africa, commanded by Colonel Cavaignac, Major Forey, and Colonel Morris. With such valiant troops, and such lieutenants, no danger was to be dreaded; General Changarnier's decision was soon taken; he would pass through the mountains."

On the 17th of the month the little band set out, marched the 18th, receiving the submission of several tribes, and early on the morning of the 19th reached the Oued-Foddha river. There a halt of some duration was ordered, preparatory to entering the defile through which the river flows. The cavalry and a small party of infantry went out foraging. Presently, a well-sustained fire of musketry was heard, and an officer, sent to reconnoitre, saw the foragers defending themselves bravely against a host of white-draped Kabyles, headed by officers of the Arab regulars, dressed in red, who ran from group to group, exciting the men to the combat. This furious attack was rather a contrast with the peaceable passage promised by the Arab chiefs. But retreat could not be thought of. It would be a signal for the spread and consolidation of the revolt, and would occasion as much loss of life as a forward movement. The order was given to march, and the head of the column plunged boldly into the frightful gorge of the Oued-Foddha.

"Meanwhile, on the right (the left bank of the river, for they were marching southwards, whilst the Oued-Foddha flows towards the north,) Captain Ribain's company of Chasseurs d'Orleans, sent to cover the foraging, steadily retired upon the column; from brushwood to brushwood, from tree to tree, each man retreated, seeking a favourable position, a good ambuscade; and often the same obstacle concealed a Kabyle on one side, and a chasseur on the other, each seeking an opportunity to kill his opponent. When they reached the last platform the bugle sounded the gymnastic step, and forthwith the chasseurs, rolling and sliding down the slopes, rapidly rejoined the rearguard, now about to enter the pass. The real combat was beginning; already the Kabyles shouted from the summits on either hand, 'You have entered your tomb, and will never leave it:' but they reckoned without our soldiers, without the chief who commanded them. Calm, impassible, General Changarnier rode with the rearguard, wrapped in his little *caban* of white wool,^[18] a target for every bullet, giving his orders

with a coolness and precision that reassured the troops and redoubled their ardour. A description of the ground is essential to a clear comprehension of this terrible struggle. A hundred feet wide of sandy soil, furrowed by the bed of the torrent, was the ground they fought upon; right and left were steep slaty precipices, fringed with pine-trees; from the peaks of the mountains, which towered like obelisks, the balls poured down: such was the theatre of the combat. Imagine this ravine, these rocks, these mountains, covered with a multitude exciting themselves by their own yells, intoxicating themselves with the smell of powder, blind to danger, and rushing upon a handful of men, who opposed the coolness of energy, and the regular action of discipline, to their disorderly fury. But never for a moment did our soldiers cease to be worthily commanded. The officers set the example; the chief had not hesitated an instant, but had at once made up his mind, and imparted to his troops his own promptitude and decision. His plan was to march quickly, so as to pass the peaks, which were separated by impenetrable ravines, before the mass of Kabyles could get from one to the other: to effect this he occupied one of those positions indispensable to the safety of the column; and the rearguard, when too hard pressed, extricated itself by vigorous charges with the bayonet.

"Fortunately the tribes to the east did not take part in the attack, so that the defence was at first confined to the right. Nevertheless, the column was advancing with difficulty, when it reached one of those passages that must be occupied. Some rocky precipices impended over the bed of the river, in front of a marabout or tomb, surrounded by lentisk trees; the rifle company of the Chasseurs d'Orleans were ordered to take these rocks; they sprang forward, full of ardour, but the steeps were frightful, and a week's provisions are a heavy load. Their lieutenant, Ricot, who had rushed forward without looking whether he was followed, was the first upon the platform. Two balls pierced his breast. Lieutenant Martin and two men, hastening to his assistance, were likewise shot down. The surviving officer, hurrying in their footsteps, was checked by a terrible wound. The company, deprived of their officers and sergeant major, and exposed, without guide or leader, to a storm of bullets, was compelled to retreat, rescuing M. Martin, who was still alive. The other wounded were torn to pieces in sight of the column, amidst the ferocious cries of the Kabyles.

"The General immediately ordered a halt; the Zouaves and three companies of the Chasseurs of Orleans were to assault the position, whilst the cavalry drove back the enemy in the bed of the river. The charge was sounded, with Colonel Cavaignac and Major Forey at the head of the troops; the General sprang forward and surmounted the steep flanks of the mountain, closely followed by his eager soldiers. Fury was at its height, and the struggle terrible. M. Laplanche, a staff officer attached to the Zouaves, was killed, a major had his horse killed, a captain his epaulet shot off; the General himself was indebted for his life to a bugler, who killed a Kabyle whose musket-muzzle was at his breast. At last we were masters of the position. In the river the charge of cavalry had also been completely successful: numerous dead bodies lay there, including some of women, who threw themselves on our soldiers, mixed with the Kabyles, fighting like men, and cutting off, for bloody trophies, the heads of the slain.

"These two vigorous offensive movements procured us a little respite; soon, however, the combat was renewed with fresh ardour. The officers, foremost in danger, were also the first hit. Five officers of Zouaves, three of the Chasseurs d'Orleans, had already fallen, and it was but the middle of the day. Colonel Cavaignac, with his Zouaves, persisted in revenging his officers. It was no longer courage, but fury; every man was worth a score, and seemed to multiply himself to face all perils. As to the General, the bullets and the danger only increased his audacious coolness; his eyes beamed, and wherever he passed he inspired all with new energy. Amidst the noise of the musketry, which the mountain echoes repeated like the howling of a storm, the column advanced; the cavalry marching in front, with orders to halt, towards nightfall, in the first favourable position.

"The troops had reached a spot where the two lofty banks of the ravine, bending inwards, again left but a narrow passage. Both banks were now occupied by the Kabyles; and whilst two companies were sent to repel them on the left, Captain Ribains, with a detachment of Chasseurs d'Orleans, was ordered to occupy the right-hand position. It was a vertical cascade of rocks and slaty soil, covered with firs and brushwood; a rivulet flowed across and soaked the ground, upon its way to the river. The captain dislodged the Arabs, occupied the position, thus assuring the free passage of the column; but, when he would have rejoined the main body, the Kabyles threw themselves upon his little band. A few men, the foremost files, tried to

descend in a straight line; their feet slipped upon the slope, rendered slippery by the water, and nine of them were precipitated from an elevation of eighty feet. They rolled from rock to rock, from cliff to cliff, trying, but in vain, to cling to the bushes, and fell at last into the bed of the river. The rest of the company had inclined to the right towards a ravine, letting themselves drop from tree to tree, to rejoin the column. One soldier, Calmette by name, separated from his comrades and surrounded by Kabyles, was driven to the brink of the precipice. With his rifle he shot down one, two others fell by his bayonet; then, finding that he must fall, he seized two Kabyles, and sought to avenge his fate by making them share it. The rock was perpendicular; they fell from its summit, and, by unheard of good luck, the Kabyle to whom the chasseur most closely clung fell under him, and by his death saved his enemy's life. As to Captain Ribains, he was descending last of all, and seemed to defy the hostile bullets, when three Kabyles rushed upon him, fired, and fractured his shoulder. Fortunately his men managed to carry him off. All who witnessed still remember his being borne past the General, who congratulated him on his glorious conduct; his energetic countenance expressed the legitimate pride of duty done, and blood nobly poured out."

At last night approached, and the bivouac was established at a place where the bed of the river expanded. Tents were pitched for the General and the wounded; the soldiers received fresh ammunition; a battalion was ordered to march, in profound silence, at two in the morning, to occupy the heights along the river bank, by which the morrow's march would lead. The French, still excited by the contest, conversed eagerly round their bivouac fires. Their Arab allies were discouraged, and sat gloomily beside their saddled horses, wrapped in their *burnous* and without fire. There were but three surgeons in the camp, and their hands were full. Most of the wounds had been received at the musket's muzzle, and were very painful. Eight amputations took place during the night. The quarter of the bivouac where the hospital was established, resounded with groans and cries of anguish. Examples of heroic endurance were not wanting. "For three quarters of an hour the chief surgeon probed and tortured the arm of Captain Ribains, saving the limb by his skill. During this long operation, the captain, seated on a biscuit box, amidst the dead and dying, showed as much fortitude as he had previously displayed courage. Not a complaint did he utter; only, from time to time, he could not help turning to the surgeon and saying—'Really,

doctor, you hurt me.' Amongst the wounded of the 4th Chasseurs d'Afrique was a soldier named Cayeux. Feeling his death approach, he sent for his captain. After giving him a last message for his mother: 'Give my thanks, also,' said the soldier, 'to Colonel Tartas; he is a good man—he has always loved those he commanded; tell him that one of his soldiers thanks him with his dying breath.'" An affecting trait, honourable alike to soldier and to chief. There was much to do that night: it was all done, and well done. Litters were required for the wounded: trees were cut down, and the litters were made. The dead were to be buried: an hour before daybreak they were collected; a detachment of engineers, diverting the course of the stream, dug a hole, in which the bodies were deposited, and over which the water was again allowed to flow. This was to protect the corpses from Kabyle profanation. At dawn the march was resumed, amidst the shouts of the Kabyles, summoning each other to the massacre of the French. Their surprise and rage were excessive on finding the positions along the line of march all occupied. Notwithstanding the disadvantage of ground, the French now had the best of it, and several times during that day's march they turned upon their pursuers with terrible effect, the Zouaves especially distinguishing themselves. "After one of these rallies, they passed, to the great joy of all, through some magnificent vines, and quenched their thirst with the ripe grapes—the General himself, to whom the soldiers hastened to offer the first-fruits of the vintage, setting the example. Just then Colonel Cavaignac passed by. 'Here, my dear colonel,' said General Changarnier, offering him a splendid bunch of grapes, 'you must need refreshment after such glorious fatigues.' And they fell into chat, the balls falling thickly around them, until Colonel Cavaignac was called away to one of his captains, shot down at a few paces' distance, and who wished to recommend to him his mother and sister, and to give him his cross of officer of the Legion of Honour."

A short time brought the column out of the defile upon ground which, although mountainous, appeared by contrast an open plain, and where the cavalry could act with advantage. The Kabyles were beaten off; and the next day halt was made, to rest the men, look after the wounded, and execute a plan of reprisals devised by Changarnier. His spies had informed him where the flocks and families of his late antagonists were assembled. A razzia was ordered in the night, and its result was eight hundred prisoners and twelve thousand head of cattle. Thus encumbered with captives, spoil,

and wounded, the little band, which originally numbered barely two thousand men, now notably reduced by two days' severe fighting, completed a march of fifty leagues, to the utter astonishment of the natives, who could not believe that such a handful of troops had made their way, amidst the storm of Kabyle bullets, through those terrible ravines, which the Arabs designate the defiles of death. The affair of the Oued-Foddha is still celebrated in the French army as one of the most heroic achievements of the African war. All who were engaged did their duty well, taking example from their commander, of whom M. de Castellane speaks in the highest terms. Eight months after this affair the Kabyles had made their submission, and the war was at an end in the province—for a time, at least. General Changarnier was about to return to France. M. de Castellane accompanied him to the coast.

"I well remember that, on our road from Milianah to Algiers, the Arab chiefs came to greet him on his passage, and amongst them I met an old Caïd of the Hadjouts, whom I had known at Blidah. We spoke of the numerous razzias and nocturnal expeditions that had destroyed his warlike tribe. 'His name, with us,' he said to me, speaking of General Changarnier, 'signifies the *subduer of pride, the conqueror of enemies*;^[19] and he has justified his name.' Then pointing to the long line of mountains which border the Mitidja from Chenouan to the sea, 'When the storm comes,' he continued, 'the lightning runs in an instant along all those mountains, penetrating their inmost recesses. Thus did his glance discover us. And when he had seen us, the bullet reaches not its aim more rapidly!' The old Arab spoke the truth. General Changarnier's characteristics are a quick and sound judgment, and dauntless energy: he knows how to command. His courage rises with danger; then, if you approach him, his vigour communicates itself to you, and you cannot doubt of success. At Constantina he first distinguished himself, and since then he has never for a day been inferior to the glorious reputation he there acquired. If ever you find yourself at the bivouac, or under the soldier's little tent, with one of those old African bands, get them to talk to you of their numerous expeditions under his orders, and you will see what they say of him."

It was in March 1843 that M. de Castellane and some other officers left Algiers for Blidah, there to join General Changarnier, and commence, under his orders, a campaign in the interior. Their mid-day halt was at Bouffarik,

an unwholesome town, frequently ravaged by fever, but which, nevertheless, enjoys a certain degree of prosperity, due to its central position. Here they refreshed themselves, according to invariable custom, at the celebrated coffee-house of *la Mère Gaspard*, a veteran sutler, who, after following the drum ever since the first landing of the French in 1830, had wearied of wandering, and pitched her tent at Bouffarik. There she greatly prospered, and in a few years had land of her own, a splendid hotel and coffee-house. "The place was adorned with paintings, marbles, and mirrors, and especially with some very fine engravings from Horace Vernet's pictures, which had been placed there by the hand of the celebrated artist. One day, dying of thirst, Vernet alighted at Mother Gaspard's. There he was offered drink, and land to buy. He drank and he bought some land, but, when signing the bargain, he perceived that the walls were covered with wretched lithographs after his pictures. Like a good neighbour, he promised to send the engravings, and he kept his word. Mother Gaspard, proud of the gift, never fails to relate the incident, and in my turn I repeat the tale." Between Bouffarik and Blidah, the traveller comes to a monument erected in honour of a sergeant and fifteen men who perished there in 1840. They and five others were escorting the post-bag from Bouffarik, when they were set upon by some four hundred mounted Arabs. Forming a miniature square, they made a valiant defence, but five only survived when a squadron of Spahis came to the rescue.

At Blidah, a perfect labyrinth of streets, squares and lanes, the travellers were greatly puzzled to find the General's quarters, when an obliging Arab volunteered to guide them to the residence of the *Changarlo*. It was a very humble habitation for the commander of a great province. A single sentry stood at the door; a great fig tree, the refuge of countless pigeons, shot up in the middle of the court; a small chamber, the only one upon the first floor, was the General's sleeping room; upon the ground floor, a large apartment answered the double purpose of orderly-room and of an aide-de-camp's bed-chamber. Two tolerably furnished rooms were allotted to visitors. At Blidah, as in camp, General Changarnier's hospitality was proverbial, even amongst the Arabs. M. de Castellane and his comrades found a cordial reception. But they were not long to enjoy themselves beneath the shadow of the General's fig-tree. The march was ordered for the next morning; Blidah's quiet streets and unfrequented shops swarmed with soldiers, providing themselves with coffee and tobacco, and such other comforts as

their pocket-money allowed. The French soldier receives twopence half-penny every five days—no great fund for luxuries. On all sides, fatigue-parties were hurrying to the stores; and at night, until tattoo was beaten, every wine-house, was thronged for a parting carouse. At daybreak, with well-packed knapsacks and a week's rations on their backs, the column set out for Milianah. No apprehensions of perils or fatigues ruffled their joyous humour. They were all old soldiers, hardened in many campaigns; and besides, as they themselves said, in their barrack-room style, "with Changarnier there is always a smell of mutton." The allusion was to the numerous flocks they had captured under his orders. The success of his frequent razzias had made the saying proverbial amongst the troops. "On the 13th June 1849, the sixth battalion of Chasseurs, who had so long served under General Changarnier in Africa, having received orders to charge the insurgents in the streets of Paris, set off laughing and repeating to each other, to the great astonishment of the national guards, the old African proverb: "This smells of mutton."

The town of Milianah had twice been preserved to the French by the skill and enterprise of General Changarnier. In June 1840, that officer was colonel of the 2d Light Infantry, a regiment celebrated in African annals, and whose exploits have been repeatedly recorded on the canvass of Horace Vernet. The French army, commanded by Marshal Valée, was assembled, exhausted by many fatigues, beneath the walls of Medeah. Milianah, then but recently occupied by the French, was in want of provisions. All the generals deemed its relief impossible; the distance was too great, the men were too weary. Colonel Changarnier thought otherwise, and volunteered the service. By a march of twenty-four leagues in thirty hours, he evaded the enemy and accomplished his task, returning to Medeah four days afterwards, to receive the congratulations of the whole army. The stores and succours thus thrown into Milianah would suffice, it was hoped and expected, until the end of the autumn. But the hot season brought sickness in its train; vermin destroyed part of the provisions; the cattle died: famine was imminent.

"Pent up within the ramparts and hard pressed by hunger, the soldiers ate whatever they could lay hands upon, even boiling and devouring weeds and mallows. This unwholesome nourishment, acting on the brain, induced nostalgia and suicide. Of twelve hundred men, seven hundred and fifty had

perished; four hundred were in hospital, the others were little better than invalids, and had hardly strength to carry their muskets. The officers themselves were obliged to stand sentry, and the fatal day was near at hand when, for want of defenders, the town must be taken. No letters, no news—the spies had all been killed. At last a despatch from the governor escaped the Arabs, and intelligence reached Algiers of the sad condition of the garrison. Colonel Changarnier, who had become general since his first relief of Milianah, had increased, by further feats, his reputation for skill and audacity, and to him Marshal Valée again had recourse. Only two thousand men could be spared, wherewith to brave the attacks of the whole forces of Abd-el-Kader, who then had scarcely passed the zenith of his power. But Changarnier did not hesitate. The greater the peril, the more glorious the success."

By spreading reports of a march in a contrary direction, the daring leader gained a day upon the enemy, and then cut his way to Milianah, reaching it in time to save the remnant of the unfortunate garrison. But three years had greatly changed the aspect of affairs; and when M. de Castellane reached Milianah in 1843, he found five thousand effective soldiers waiting the orders of Changarnier. There ensued a period of idleness for the men, but of great activity for the General and staff. The plan of campaign was to be sketched out; information was to be obtained concerning the nature of the country.

"Everyday the Aga of the Beni-Menacers, Ben-Tifour, came to the General's quarters with men of his tribe, and there, by dint of questioning, by asking the same things ten times over and of ten different individuals, the chief of the province succeeded in obtaining exact notions of the country, the halting places, the water, the bivouacs. During this time a constant communication was kept up with Cherchell by means of spies. Some of the letters sent cost five hundred francs postage, for the carriers risked their lives. At last, after mature reflection, the General's plan was decided upon and written down; and his orders were given with that clearness and precision which leaves no doubt or ambiguity. This was one of General Changarnier's characteristics. With him obedience was always easy, because the duty was never doubtful."

At Milianah the French officers had a club, a pleasant pavilion in the middle of a garden. A library and a coffee house were attached to it. For evening

amusement there was the theatre. Ay, a theatre at Milianah! How could Frenchmen, even in the heart of Algeria, exist without a vaudeville? The soldiers were actors. The *vivandières* lent their caps and gowns to dress up the female characters. "I well remember," says M. de Castellane, "seeing *Le Caporal et la Payse* played at Milianah. The Dejazet of the company, a mettlesome *Artémise*, excited the laughter of the whole audience, even that of General Changarnier, who often attended the performance, in his box of painted paper. It is impossible to say how much these amusements, which some may deem futile, contributed to keep up the spirits of the troops, and to dispel those gloomy ideas which in Africa are often the forerunners of nostalgia and death."

Not all these diversions and resources, however, could reconcile M. de Castellane to a fortnight's halt at Milianah. He beguiled his anxiety for action by researches into the history of certain Arab tribes. The three principal families of Milianah were those of Omar, Sidi-Embarek, and Ouled-ben-Yousef. At that time, Sidi-Embarek was organising amongst the Kabyles a vigorous resistance to the French, to whom Omar was friendly. The recent annals of the Omars are highly curious, and form a chapter of the purest Oriental romance. In the valley of the Cheliff, "at Oued-Boutan, the new Hakem of the town of Milianah, Omar Pacha, of the illustrious family of the pacha of that name, was waiting for us. There we had a fresh proof of the deep traces the Turks have left in this country. After more than thirteen years, the remembrance of them is still so lively amongst the people, that the son of the Pacha Omar was surrounded by the respect of all these chiefs as in the day of his family's power."

"The most celebrated of the Omars was one of those Turkish soldiers, each one of whom may say, when he dons the uniform—'If it is written, I shall be a pacha!' Mehemet Ali, putting into Metelin on his way to Egypt, met Omar, whose brother had for some years past held high office under the Pacha of Algiers. Mehemet Ali and Omar formed a close friendship, and set out together to seek their fortune, but scarcely had they reached Egypt when Omar received a letter from his brother Mahomed, summoning him to his side. The two friends parted, with a vow that the first who succeeded in life should share his prosperity with the other. At Oran, where his brother had become Caliphate of the Bey, Omar's fine figure, his eye, whose gaze none could endure, his long black mustaches, and his brilliant beauty, procured

him the surname of *chaous*. Soon afterwards, the daughter of a Turk of Milianah, named Jemna, whom all cited as a marvel of loveliness, became his wife. But Omar's prosperity was of short duration. His brother Mahomed, whose credit with the Pacha of Algiers gave umbrage to the Bey of Oran, was thrown into prison, and the Bey ordered his death. Omar was compelled to share his brother's dungeon, and when the executioner entered, he would have defended him; but Mahomed prevented it. 'The hour of my death is come,' he said. 'It is not given to man to resist the power of the Most High; but pray to him daily that he may choose thee as my avenger; and bear in mind that you are the husband of my wife and the father of my children.' Thenceforward, revenge was Omar's sole thought; and when, by the Pacha's order, the Bey sent him to Algiers, he used all his efforts to elevate himself, in order to hasten the hour of retaliation. Soon he became Caïd of the Arabs; and his wife Jemna, who at first had been prevented leaving Oran, managed to join him, through a thousand dangers, escorted by her father, Si-Hassan, and by a faithful servant, Baba-Djelloull.

"The troops of Tunis marched against Algiers; a battle took place, and the Turks were giving way, when Omar, dashing forward with thirty horsemen, made a daring charge, rallied the army by his example, and decided the victory. On his return to Algiers, the troops clamorously demanded him as their Aga. Meanwhile, Mehemet Ali's fortune had also made progress. The massacre of the Mamelukes consolidated his power, and he testified his recollection of his friend, by sending him a magnificent tent.

"The country flourished under the administration of the new Aga. Stone bridges were built over the Isser and the Cheliff. In the words of the Arab chronicle, victory everywhere accompanied Omar. His name was a terror to his enemies, and he was blessed by all the people, when the Bey of Oran, still detesting the brother of Mahomed, and dreading this new power, persuaded the Pacha of Algiers that Omar was planning to usurp his throne. Fortunately, an intercepted letter warned Omar, who hurried to the barracks, and assembled the troops. 'It is you who have raised me,' he said, 'and in none others do I recognise the right to cast me down. I place myself in your hands; either kill me or deliver me from my enemies.' The furious soldiery ran to the Pacha's palace, stabbed him, (1810) and would have named Omar in his stead; but Omar refused, and the *khrasnadj*i, or treasurer, was then elected. All-powerful, Omar saw the hour of revenge at hand. The Bey of

Oran having revolted, he marched against him, took his enemy prisoner, and had him flayed alive. In the province of Oran you are still told of *Bey el messeloug*, the flayed Bey.

"In 1816, fearing the Coulouglis,^[20] the Pacha planned their massacre, and confided his project to Omar, who, far from countenancing it, had the Pacha stifled in his bath. This time he was obliged to accept the Pachalik. When sending the customary present to the Porte, he intrusted Si-Hassan and his son Mahomed with rich presents for Mehemet Ali, who was named Pacha almost at the same time. For the space of two years, Omar made head against all manner of misfortunes—against the plague, the locusts, and Lord Exmouth's bombardment; but poor Jemna had lost her peace of mind, for she knew that all Deys die a violent death. In 1818, she was in the pains of childbed when she heard discharges of artillery. Seized with alarm, she desired to see Omar, and, contrary to etiquette, she sent her faithful attendant, old Baba-Djelloull, to seek him; but the old man soon returned, and returned alone. Jemna understood, and swooned away. At the same instant, numerous blows were struck on the door of her apartments. It was the *chaous* of the new Dey, coming to take possession of Omar's treasures."

The treasures were enormous in amount. M. Roche, the French consul-general at Tangiers, to whom M. de Castellane declares himself indebted for this very interesting history of the Omar family, derived his account of them from a son of Jemna, apparently that one whose birth she was hourly expecting when she was shocked by the intelligence of her husband's violent death. "Omar's palace contained a hundred negroes, three hundred negresses, ten Georgians, twenty Abyssinians, forty thoroughbred horses, ten mares from the Desert. The entire furniture of one saloon was of gold and silver, adorned with precious stones; another room was full of chests of gold and silver coin, silk brocade, and cloth of gold. Jemna changed her dress every week, and attached to each costume was a complete set of diamonds, consisting of a diadem, an aigret and earrings, a collar of fifteen rows of pearls, two clasps, bracelets, twelve rings for the fingers and two for the ankles, and a tunic of cloth-of-gold, studded with precious stones." Omar's murderer and successor would fain have wedded his widow, but she spurned his offer. He then seized her treasures, and, in the moment of good-humour which their great amount occasioned him, he allowed her to retire with her children to Milianah, where her father had property. After a few

months' sway, the new Pacha was assassinated in his turn, and his successor, Hadj-Mohamed, went to inhabit the Casbah palace, in defiance of a prophetic inscription announcing an invasion by Christians during the reign of a Pacha whose residence should be the Casbah.

He died of the plague; and Hassan, who succeeded him, and who had been an *iman* under Omar, showed his gratitude to his former master by magnificent presents to his widow, and great kindness to his sons. Jemna had almost forgotten past sorrows in present happiness, when the arrival of the French brought her fresh disasters and sufferings. Her sons allied themselves with the invaders, thereby incurring hatred and persecution from Abd-el-Kader. They were stripped of all they possessed: Omar, the youngest of them, was loaded with fetters, and placed in a dungeon; Jemna escaped the bastinado only by the mercy of an executioner, who inflicted it upon a negress in her stead. At last the intervention of some Arab chiefs procured the liberty of both mother and son, and the progress of the French enabled them to take up their residence in safety at Milianah, where Omar was appointed *hakem*, an office equivalent to mayor. In 1843, M. de Castellane was present at an interview between Marshal Bugeaud and Jemna, whose countenance, in spite of lapse of years and many sorrows, still retained traces of great beauty.

The chief of the Sidi-Embarek, a family which, although of Arab race, had enjoyed great respect and influence in the country for some centuries before Turkish rule was terminated by French usurpation, had actively stimulated the persecution of the family of Omar, whose personal enemy he was. M. de Castellane gives the following account of the founder of the Sidi-Embarek:—"In 1580, a man of the Hachems of the west, named Si-Embarek, left his tribe, with two servants, and went to Milianah. There, on account of his poverty, he discharged his servants, who settled upon the banks of the Cheliff, and gave birth to the tribe of Hachems still existing there. Sidi-Embarek then went to Coleah, and engaged himself as *rhamès* (a sort of subordinate farmer) to a certain Ismael; but, instead of working, he slept; and meanwhile, marvellous to relate, the yoke of oxen intrusted to him ploughed by themselves, and, at the close of day, he had done more work than anybody else. This prodigy was reported to Ismael, who, desirous of witnessing it with his own eyes, hid himself one day, and saw Embarek sleeping under a tree whilst the oxen ploughed. Thereupon Ismael knelt

before him, and exclaimed—"You are the elect of God; 'tis I who am your servant, and you are my master;" and, taking him home, he treated him with profound respect. Embarek's reputation for holiness spread far and wide; multitudes thronged to solicit his prayers and make him offerings, and he speedily acquired great riches." The grandson, many times removed, of this miraculous ploughman, was a Marabout or saint by right of descent; but he was also a very considerable fighting man, and a most efficient lieutenant of Abd-el-Kader. We make his acquaintance under very striking circumstances, in the course of M. de Castellane's curious account of the Spahis of Mascara. The corps of Spahis had its origin in the necessities of African service. Excellent and most efficient as are the regiments of light dragoons known as *Chasseurs d'Afrique*, they were not all that was wanted in the way of cavalry. It was found expedient to make Arab fight Arab. Knowledge of the country, and of the habits of the foe, was as essential as good soldiership. The prospect of gain brought abundant recruits; the discipline exacted was less rigid than in French regiments; the sole uniform was a red *burnous*, stripped off in an instant, when desirable to conceal the military character of the wearer. Europeans not being excluded from the corps, many roving and desultory blades, tempted by the adventurous nature of the service, and to whom the routine and strict discipline of a more regular one would have been irksome, have, at different periods, served in the ranks of the Spahis, and sometimes sabred their way to a commission—"strange adventurers," says M. de Castellane, "whose lives resembled some tale of former days cut out of an old book." And he gives an account of two such persons whom he met with in the Mascara squadron, with which his own was for some time brigaded. One was a French *maréchal-de-logis* or sergeant, named Alfred Siquot, a man of good family and eccentric character,—a great humourist, whose gloomy air and silent laugh had procured him from his comrades the surname of Jovial. There does not appear, however, to have been mystery in his previous life, which was open to all, nor any particular romance or adventures in its incidents previously to his service in Africa. The case was very different with his comrade, Mohamed-Ould-Caïd-Osman, who had the rank of native officer. "The Arab name concealed a Prussian one, and an agitated life, full of duels and adventures—of condemnations to death, and executions in effigy. Clever and well-informed, there was a great charm in his bluntness of manner, and his bravery, justly celebrated, procured him the respect of

all. He was the very type of the officer of fortune—of the lansquenet of former days. His double-barrelled gun, as much dreaded by the Arabs as by the partridges—his dog Tom—his sorrel charger, a beast of famous bottom—were his sole friends in the field. In garrison, a fourth affection found a place in his heart—a little Spanish girl, who never opened her mouth, and was as devoted to him as his dog. Tom, the *Chica*, the Caïd, made but one. Their life, with its joys and sorrows, was in common. Now and then Siquot went and smoked his pipe in the midst of the three friends.

"As to the Caïd's African life, it was well known, and its accidents had more than once beguiled the leisure of the bivouac. He had been twice seen at Algiers, but in very different circumstances. The first time, in all his splendour, he was travelling with Prince Puckler-Muskau, who speaks of him in his *Letters*, designating him by his initials. The second time, in 1840, he had assumed the knapsack of the infantry soldier, and was marching to the defile of Mouzaia, in the ranks of the foreign legion."

The ruined gentleman, however, could not accustom himself to walking, and after a severe campaign, in which three-fourths of his company perished, he procured a substitute and left the legion. Once more a free agent, his roving propensities were checked for a while by the fascinations of a fair Moor. "Halfway up the hill leading to Mustapha, stood a cheerful white house, embowered in foliage and commanding a splendid view of the Bay of Algiers. The Armida of that enchanting spot was named Aïcha, and never did Eastern poet dream of a more charming creature. What wonder, then, if beneath these shades six months of peace, calm, and repose elapsed. Each morning the smiling beauty seated herself at Osman's feet, whilst he wrote, upon a little Arab table, in the midst of perfumes and flowers, the life of a Protestant missionary whom he had met in one of his rambles."^[21] The Rinaldo of the foreign legion might, one would think, have been well content to linger long in such a retreat and such society. Aïcha was fond and constant, and was rapidly acquiring German. But after six months of this Capuan existence, the vagabond again got the upper-hand in the restless soul of the Caïd. Like the celebrated Lord Lovel, he loved and he rode away; the horse, in this case, being represented by a steamer, which carried him off westwards one fine morning, his gun on his shoulder, and in his pocket a letter of recommendation, now two years old, for General Lamoricière, whom he had formerly known in command of a battalion of

Zouaves. What became of Aïcha—whether she cried her eyes out, or took arsenic, or another lover—the little dog, as Mr Commissary Capsicum would say, forgot to mention.

"The province of Oran, in 1841, was far from tranquil; a stout heart and a strong arm had then abundant opportunities of distinction. Mohamed-Ould-Caïd-Osman, inscribed under this Arab name on the muster-roll of the Spahis, and Siquot, who enlisted at the same period, did not miss such opportunities. Soon afterwards, Siquot was wounded, the Caïd had his horse killed under him, and their names appeared in the orders of the army. Heroes, whether illustrious or unknown, always find enviers; take as an example Sergeant Froidefond, a grumbling old trooper, who thought proper to tell the Caïd he was good for nothing but cleaning his nails. On their return to Mascara, they fought at twelve paces: Froidefond fired first, and the Caïd fell, shot through the buttock. The seconds ran forward to pick him up. 'Stop!' he cried, 'it is my turn to fire;' and raising himself on his elbow, he shot Froidefond dead. He himself was then carried to the hospital, where he found Siquot, who was getting cured of a wound. On hearing what had happened, the Chica—who had then been about a year mixed up in his existence, without very well knowing why, like the dogs who attach themselves to a squadron—hastened to the hospital to nurse him, and in three months he was on his legs again."

The Caïd had returned to his duty when, in 1813, M. de Castellane's regiment entered Mascara with trumpets sounding, escorting Marshal Bugeaud. Abd-el-Kader was at no great distance, and Generals Lamoricière and Tempoure had been operating against him until the cavalry of the province had great need of repose to recruit and remount. One night a Spanish deserter came over from the Emir, and gave Marshal Bugeaud important information, fully confirming the reports of the spies. An hour later, orders were given for an expedition in pursuit of Abd-el-Kader's battalions of regulars, of whom Sidi-Embarek had just taken the command. General Tempoure had charge of the column, which consisted of two battalions of infantry, four hundred and fifty French dragoons, fifty Spahis, including Siquot and the Caïd Osman, and a few irregular horse.

"If the official reports in the *Moniteur* were not there to confirm its truth, the narrative of this expedition would risk being deemed a fable. Cavalry and infantry marched three days and three nights: in the morning they

halted for one hour and a half—at night, from six o'clock till midnight. From the moment when the trail of the enemy was first struck, the drum was not once beaten. They followed the scent, like dogs pursuing their prey. Thirty Spahis, with some horsemen belonging to the Arab office at Mascara, preceded the column; they *read the earth* during the night. What all exciting time that was! We came to bivouacs whose fires were still burning; the enemy had left them only that morning, and in all haste we resumed our march. At last, after forty-eight hours, our Arab scouts, hovering round the flanks of the column, captured two Arabs of the tribe of Djaffra. These refused at first to speak; but a musket-muzzle, applied to their heads, untied their tongues, and we learned that the regulars were at Taouira on the previous evening. We were on the right road, therefore, and should end by overtaking them. The march was resumed, the Spahis still leading. Not a pipe was alight; profound silence was observed, broken only by the noise of a fall, when some sleepy foot-soldier stumbled over an obstacle. Day broke, and a slight smoke was seen; the fires had just expired, the regulars were gone. The hope which had hitherto sustained the soldiers' strength suddenly abandoned them; nothing was heard but cries and maledictions. Everyone grumbled at the general. The morning halt was called in a hollow, and whilst the soldiers ate, the scouts reported that the traces of the enemy were quite fresh. For a second General Tempoure hesitated; then his decision was taken, and the order for instant march given. A great clamour arose in the bivouac. 'He wants to kill us all!' cried the soldiers, who during seventy hours had had but a few moments of repose. They obeyed, however, and the march was resumed. In an hour's time, the track turned southwards. In that direction there was no certainty of water. No matter, advance we must. But the traces grew fresher and fresher: here a horse had been abandoned; a little farther, a jackass. 'We have got the rascals!' said the soldiers, and their strength revived. At last, towards eleven o'clock, whilst the column was passing through a deep ravine, a thick smoke was seen behind a hill. This time the enemy was assuredly there. Fatigue vanished as by enchantment. In an instant cloaks were rolled, priming renewed, horses girthed up; all was ready, and the troops formed for the attack. Three hundred infantry supported three columns of cavalry; the centre was commanded by Colonel Tartas of the 4th Chasseurs. The advance began; just then there was the report of a musket; it was a vedette whom our scouts had been unable to surprise. The Arab galloped up the hill,

waving his *burnous*. At the same moment, the drums of the regulars beat to arms; there was a stir in our ranks. The cavalry broke into a trot; the infantry, forgetting forced marches, followed at a run, and from the top of the hill we saw the two battalions of regulars, who had been unable to reach the opposite summit, halt half way up. Away went the cavalry, sabre in hand, horses at a gallop, Colonel Tartas at their head. They were met by a volley of musketry; some fell, but the avalanche broke through the obstacle, and the Arabs were cut down on all sides. Their horsemen try to escape—some flying to the left, others straight forward. They are pursued by all whose horses are not yet knocked up; and the Caïd Osman rolls over with his charger, which is hit in the head. M. de Caulaincourt, admirably mounted, continues the race; he kills one of the Emir's horsemen; but, separated by a ridge of ground from his soldiers, whom he has outstripped, he is surrounded by enemies. Without losing his presence of mind, he spurred his horse and broke through the circle, sabre in hand; when, just as he was about to rejoin his men, an Arab, issuing from a glade, shot him with a pistol, close to the eye. The horse galloped on, and carried back the wounded officer to his troop. The blood streamed, the flesh hung in shreds; M. de Caulaincourt, however, was still conscious. Lifted from his horse, a soldier took him on his back and carried him to the surgeon, traversing the scene of the combat, a true field of the dead. In a narrow space lay five hundred corpses, nearly all frightfully mutilated by the sabres of our chasseurs.

"A steep bank of rock had checked the progress of those horsemen who had fled to the left. Several alighted, and, jerking their horses with the bridle, surmounted the obstacle. Only one of them rode at a walk along the foot of this rocky wall. The whiteness of his garments and beauty of his equipments marked him as a chief. Siquot, a corporal of chasseurs, and Captain Cassaignoles, rode after him. The ground was very bad, full of impediments. The corporal was the first to reach him; just as his horse's nose touched the crupper of the Arab's charger, the horseman, turned round with the utmost coolness, took aim, and laid him dead on the spot. At the same moment Siquot came up and wounded the Arab, but received a pistol-ball through his left arm, the same shot killing the horse of Captain Cassaignoles, who was a little lower down the slope. The tall cavalier then rose in his stirrups, and struck Siquot on the head with his heavy pistol-butt, when Corporal Gerard of the Chasseurs, riding up on the top of the bank,

shot him through the breast. The horse was caught; it was a splendid animal, which a wound in the shoulder had alone prevented from saving its master's life. 'See if that Arab is blind of an eye,' cried Captain Cassaignoles. They looked; an eye was wanting. 'It is Sidi-Embarek; let his head be cut off.' And Gerard, with a knife, separated the head from the body, that the Arabs might not have a doubt of his death. Then all obeyed the recall, which was sounding. The chase was over; the regulars were broken and destroyed; cruel fatigue had been rewarded by complete success. General Tempoure returned to Mascara, and a month later each man received, according to the Arab expression, *the testimony of blood*, the cross so glorious to the soldier.

"The chances of war then separated us from the Caïd: I also learned the return of Siquot to France, where, by an odd coincidence, he received from his Paris friends the same surname as from his African comrades. As to the German lansquenet, he marked every corner of the province of Oran by some daring feat, and always fortunate, invariably escaped unhurt. Within three years of service, he was five times named in orders, and passed through the noncommissioned grades to the rank of cornet. When I next met with him in 1846, Tom, the horse, the Chica, formed, as before, his whole family. Poor Chica, who in all her life had never had but one ambition, that of wearing a silk dress! In garrison, Tom was purveyor; he and his master started at daybreak and returned at night, weary but content, and with a well-filled game-bag. The Chica, who had passed the day singing, laid the table, and the three friends supped together.

"Some months later, after an absence of three weeks, one of our squadrons returned to Mascara from the outposts. We were moving down the street that leads to the cavalry barracks, when we saw the officers of the garrison assembled before the Caïd's little house. They advanced to greet and shake hands with us, and they told us that the Chica, the Caïd's companion, the friend of all, was dead.

"The poor little thing had suffered for some time; the evening before, however, she had got up. There was a bright warm sun, and the air was full of perfume. 'Chico,' said she to the Caïd, 'give me your arm, I should like to see the sun once more.' She took a few steps, wept as she gazed on the budding foliage and the beauty of the day: then, as she returned to her arm-

chair, 'Ah! Chico,' she exclaimed, 'I am dying!' And in sitting down she expired, without agony or convulsion, still smiling and looking at the Caïd.

"At this moment the Chica's coffin was borne out of the house; all present uncovered their heads, and we joined the officers who followed her to her grave.

"The cemetery of Mascara, planted with olive and forest trees, is situated in the midst of gardens: everything there breathes peace, calm, and repose. The Chica's grave had been dug under a fig-tree. The Spahis who carried her stopped, all present formed a circle; two soldiers of the Engineers took the light bier, and lowered the poor Chica into her final dwelling-place. The Caïd was at the foot of the grave. One of the soldiers presented him with the spadeful of earth: the Spahi's hard hand trembled as he took it; and when the earth, falling on the coffin, made that dull noise so melancholy to hear, a big tear, but half suppressed, glistened in his eyes.

"Thenceforward Tom, whom the Chica loved, was the Caïd's only friend."

Some may suspect M. de Castellane of giving a romantic tint to his African experiences. We do not partake the suspicion. Even in the nineteenth century, generally esteemed prosaic and matter-of-fact, there is far more romance in real life than in books; and the Prussian-Arab Osman is but one of scores, perhaps hundreds, of military adventurers who have fought in various services during the last twenty years, and the events of whose career, truly noted, would in many cases be set down by the supporters of circulating libraries as overstrained and improbable fiction. In that chapter of M. de Castellane's work which consists of the journal of an officer of Zouaves, we find an account of another singular wanderer, who in the year 1840 deserted from the Arabs, (having previously served with the French,) and came into the town of Medeah, where the Zouaves were in garrison. He was a very young man, a Bavarian, of the name of Glockner, son of a former commissary in the service of France, and nephew of a Bavarian officer of the highest rank. "A cadet at the military school at Munich, he was sent, in consequence of some pranks he played, to serve in a regiment of light dragoons; but his ardent imagination and love of adventure led him to fresh follies; he deserted into France. Coldly received, as all deserters are, he was enrolled in the foreign legion. He had hardly reached Africa when he became disgusted with the service, and, yielding to the craving

after novelty which constantly tormented him, he deserted to the Arabs. He remained with them three years. Kidnapped at first by the Kabyles, he was taken to a market in the interior, and sold to a chief of the tribe of the Beni-Moussa. After being his servant for a year, he managed to escape from his master's tent, and, with legs bare, a *burnous* on his shoulders, a camel rope round his waist, and a pilgrim's staff in his hands, he marched at random in a southerly direction. In this manner he reached the Desert, passing his nights with the different tribes he encountered, amongst whom he announced himself by the Mussulman's habitual salutation, 'Eh! the master of the Douar! A guest of God!' Thereupon he was well received; food and shelter were given him, and he departed the next morning unquestioned as to his destination. It concerned no one, and no Arab ever asked the question. He followed his destiny. Thus did Glockner cross a part of the Sahara, and reach the town of Tedjini, Aïn Mhadi; thence he went to Boghar, Taza, Tekedempt, Mascara, Medeali, and Milianah; then, enrolled by force amongst the regulars of El Berkani, he made the campaigns of 1839 and 1840 in their ranks. Decorated by Abd-el-Kader in consequence of a wound received the 31st December 1839—a wound inflicted, as he believes, by a captain of the 2d Light Infantry—he again returned to us, after other adventures, like the prodigal child, lamenting his follies, weeping at thoughts of his family, especially of his father, and entreating as a favour to be received as a French soldier. They talked of sending him back to the foreign legion, but he begged to be admitted into the Zouaves, and was accordingly enlisted as an Arab, under the name of Joussef. He was then but one-and-twenty years old, was fresh as a child, timid as a young girl, and marvellously simple in his bearing and language." The end of this young fellow's history, as far as M. de Castellane became acquainted with it, is on a par with its commencement. "In the Zouaves his conduct was admirable. In every engagement in which he shared, his name deserved mention. Made a corporal, then a sergeant, he was sent to Tlemcen on the formation of a third battalion of Zouaves. Recommended by Colonel Cavaignac to General Bedeau, he rendered great services by his intelligence and knowledge of the Arab tongue. His father, to whom they had written in Bavaria, had confirmed the truth of his story. He was happy, and treated with consideration, when, one fine morning, he took himself off with a political prisoner who had just been set at liberty, and deserted into Morocco. He remained there a long time; then he went to Tangiers, and, denounced by

the French consul as a deserter, he was going to be tried by a court-martial, when, in consideration of his former services, they continued to treat him as an Arab. His mania for rambling is really extraordinary; and he declares that he cannot approach a strange country without being seized with a desire to explore it."

It is surprising that the African campaigns have not been more prolific of military sketches and memoirs from the pens of French officers. Although tolerably familiar for many years past with French literature, we can remember but few such works. *La Captivité d'Escoffier*, noticed, in conjunction with an English volume upon an analogous subject, in a former Number, [\[22\]](#) is the only French book of the kind we have met with for a long time; and that was of inferior class, and of less authentic appearance, than M. de Castellane's agreeable *Souvenirs*. We should have thought the war in Africa, the adventurous and often severe marches of the troops, the exploits of the hunting-field, the humours of garrison life, and the tales of the bivouac, would have found innumerable chroniclers amongst the better educated portion of French officers. The French soldier is a good study for painter or humourist; whether as the stolid recruit with the ploughman's slouch and the smell of the furrow still hanging about him, or the smart and wide-awake trooper of four or five years' service, or the weather-beaten old sergeant, all bronze and wrinkles, with his grizzled moustache, his scrap of red ribbon, his tough yarns and his mixture of simplicity and shrewdness, his lingering prejudices against English and Germans, and his religious veneration of Napoleon the Great. We believe M. de Castellane would be successful in portraiture of French military character and eccentricities, and we regret he has been so sparing of it. Here and there we find a characteristic bit of camp-life, or a pleasant sketch by the watch-fire.

"During our marches, we were never weary of admiring the constancy of the infantry-man, so heavily loaded that, in mockery of himself, he has taken the surname of the *Soldat-chameau*. It was really wonderful to see them make those long marches, under a burning sun, across frightful mountains, always gay and cheerful, and amusing themselves with the merest trifle.... It is on their arrival at the bivouac that their industry is displayed to the greatest advantage. Pause beside this little tent, and watch the chief of the squad; they bring him crabs, tortoises, water serpents, all manner of creatures that have no name, but a flavour, and which experience

teaches may be eaten without danger. Or they bring a mess-kettle full of bullock's blood. Thrice boiled and suffered to grow cold, bullock's blood forms a sort of black cheese. Spread upon biscuit, with a little salt, this is tolerable food, and a precious resource for famished stomachs." In presence of such messes as these, it is easy to understand the popularity of a general who, like Changarnier, classed a greasy haversack amongst a soldier's first necessities, and rarely allowed his men to lack mutton, of either Arab or Kabyle growth. For the loss of their flocks and herds the natives retaliated, when opportunity offered, by the theft of French horses. "In the night we had an alarm; we were in a friendly district, but our friends were not the less arrant thieves. Two horses were taken away. According to their custom, some bold fellows, stark naked and well anointed with grease, so as to slip through detaining fingers, glided between the tents, crawling like snakes. On coming to two fine horses, they cut the thongs that shackled them, jumped on their backs, and were off at a gallop, clearing all obstacles and crouched upon the animals' necks to avoid the bullets of the advanced sentries. A few hours later, another of these gentry was less fortunate. The soldier on guard over the piled muskets, remarked, as he perambulated his beat, a bush of dwarf palm. It was upon his right hand. A minute afterwards the bush had changed its place, and stood upon his left. This struck the sentry as looking like mischief. He took no notice, but quietly cocked his musket and continued his walk. The bush continued to change its place, gaining ground little by little; suddenly it made a rapid advance, and a Kabyle, dagger in hand, sprang upon the soldier; but the soldier received him on the point of his bayonet. The thrust was mortal, and the living bush rose no more." The Kabyles might have taken lessons from the Thugs of India and the Red men of North America. On a large scale, as well as in petty details, stratagem was a prominent feature of the war in Africa. Beneath the spacious tent of one of the Arab allies of the French, M. de Castellane listened one evening, in an atmosphere fragrant with the vapours of pipes and coffee, to the extempore stanzas of a native poet. When the improvisatore had come to an end, and had received his tribute of praise, an old sergeant of the Spahis of Orleansville narrated the death of the Aga of Ouarsenis.

"It was on the 20th July of this year," he said; "Hadj Hamet had gone, with his *goum*^[23] and twenty Spahis, to seek at Mazouna the betrothed of his son. His heart was joyful, and happiness reigned around him, when the

young girl was delivered to him. After a night of rejoicing, the escort set out. On arriving at Oued-Meroui, we saw at a distance a *goum* of Arabs. Hadj Hamet thought it was the Aga of the Sbehas, advancing with his horsemen to perform the *fantasia* before the bride, and at a sign from him his followers formed in two lines, to give the strangers free passage. The troop came up at a gallop, dashed in between the double row of horsemen, and then, turning right and left, sent a volley into their faces. It was Bon Maza in person. Thus unexpectedly attacked, the *goum* broke and fled; the Spahis alone stood by old Hadj Hamet, who defended his daughter until loss of blood, which already flowed from several wounds, left him no longer strength. At last he fell dead. Of the twenty Spahis, ten had fallen; all was over; the other ten cut their way through, and reached Orleansville."

Formidable as many of the Arabs are—owing to their excellent horsemanship and skill in arms—in single-handed conflicts, in large bodies they rarely await the charge even of far inferior numbers of disciplined cavalry. Near the confluence of the Cheliff and the Mina, on an October day in 1845, two squadrons of dragoons, under Colonel Tartas, were in quest of the aforesaid Bou Maza, who had been committing razzias upon tribes friendly to the French. Reinforced by a native ally, Sidi-el-Aribi, with a handful of horsemen, and notwithstanding the heavy load of four days' rations for man and horse, they pressed on at a rapid pace, and on surmounting a ridge of ground, beheld, "numerous as the sands on the sea-shore, the hostile Arabs firmly waiting our attack. In the centre floated an immense green banner, and the wings, forming a horse shoe, seemed ready to enclose us. "Walk!" cried Colonel Tartas, and we advanced at a walk, sabre in scabbard. In his loud parade-voice, the colonel then gave his orders, and the squadrons formed front, each keeping a division in reserve. Between the two squadrons marched the colonel and his standard; at his side was Sidi-el-Aribi; behind him a little escort; on our flanks, the handful of Arab horse. "Where is the rallying place?" asked the adjutant. "Behind the enemy, round my standard," replied the colonel; and then, connected as by a chain, the squadrons broke into a trot, with sabres still sheathed. At musket-shot distance, "Draw swords!" shouted the colonel; and the two hundred and fifty sabres were drawn as by one hand. A hundred paces further we changed to a gallop, still in line like a wall. Suddenly, on beholding this hurricane of iron, so calm and so strong, advancing towards them, our innumerable foe hesitated; a dull noise, like the sound of the

waves in a storm, arose in the midst of the multitude. They crowded together, wavered to and fro, and suddenly disappeared like dust before the gale. In a quarter of an hour we drew bridle. A hundred of the enemy were on the ground; and our Arab allies, pursuing the fugitives, secured much spoil. As for us, without hospital train, without troops to support us, at three leagues and a half from all assistance, the least hesitation would have been perdition. Coolness and audacity had saved us; and there, where our only hope was a glorious death, we obtained a triumph.

"Pressing round Colonel Tartas, near his standard, which two balls had rent, all these men of *great tent*,^[24] all these bronze-complexioned Arab chiefs, their eyes lighted up by the excitement of the fight, thanked him as their saviour. At their head, Sidi-el-Aribi, with that majestic dignity which never deserted him, lavished expressions of gratitude upon the colonel; whilst around them, like a frame to the picture, the foaming horses, the dragoons leaning on their saddles, the arms and floating garments of the Arabs, the heads which some of them had fastened to their saddle-bows, and a nameless something in the air which told of victory, combined to give to the scene somewhat of the noble and savage grandeur of primitive times."

We will not contrast with the picture thus vividly painted by M. de Castellane, the less romantic episodes of grubbing for silos, (buried stores of corn,) driving cattle, or smoking unfortunate Arab families out of their caves of refuge. Of all these matters the chasseur speaks, if not altogether admiringly, yet as necessities of that war, and stands forth with plausible sophisms in defence of the barbarities of the *razzia* system. We did not take up his sketches with disputatious intentions, and are quite content with the interest and amusement we have extracted from them, without attempting to drive their author from positions which, we suspect, he would find it as difficult to defend as the Arabs did to maintain those assailed by the gallant charges of the African Chasseurs.

THE GREEN HAND.

A "SHORT YARN."

A WIND-UP.

"No, Westwood," said I, "it can't be the right one—nor any of these, indeed!" And on looking at the chart, which was one not meant for anything but navigation in open water, with the channels laid down clearly enough, but evidently rather off-hand as to the islands, Jones himself seemed to get uncertain about the matter; partly owing to the short glimpse he'd had of the other chart, and partly to its being, as he thought, an old one made for a purpose, by a hand that knew the islands well. After two or three days' sail, we were getting into the thick of the Maldives, where the reefs and sand-banks stretching out on every side, and beginning to lap in upon each other, made it more and more dangerous work; but at any rate the islands we saw were either very small, or else low and muddy-like, with a few scrubby-looking cocoas upon them, like bulrushes growing out of a marsh. No runaway sailors would ever think of taking up their quarters hereabouts, even if we hadn't caught sight of a smoke now and then, and once of some native craft with a couple of brown mat-sails and an out-rigger, that showed the clusters hereaway to have people about them. Besides there was no pretext any Indiaman could have for steering near enough to such a jungle of mud and water, to give a boat the chance of making towards it with any certainty. I saw at once that the spot in question must lie tolerably for the course of a ship to western India, otherwise they wouldn't have appeared so sure of their mark as Jones said they did. All this, at the same time, kept me the more bent on searching the matter out ere I did aught else, seeing that in fact the Indiaman's attempt to get rid of the schooner was the very thing likely to bring her on this track; fancying, as she would, that we were either in chase of her toward Bombay, or off on our own course again. Now, on the one hand, nothing could fit better for the said runaway scheme of Harry Foster's; and on the other hand, nothing would have pleased me more, and greatly eased my mind too, than to catch him and his chums on their spree ashore. The worst of it was, that I began to have my doubts of Jones again.

He was the only man that could put us on the right scent; yet he seemed either to have lost it, or to have something creeping on his mind that made him unwilling to carry it out. "Mr Jones," said I, as the schooner was hove to, and he stood musing gloomily by the binnacle, with a glance now and then in at the compass, and out at the chart again, "if you're at a loss now, sir, just say—and I shall try my own hand for want of better!" "No, Lieutenant Collins!" answered he suddenly, in a husky voice—"no, sir, that's not it, but—God help me! no, there's no use standing against fate, I see. Whatever it costs me, Mr Collins," he went on, firmly, "I'm with you to the end of it; but—there *is* something horrible about all this!" "How! what do you mean?" said I, startled by the difference in his manner, and the quiver of his lip. "Oh," said he, "as for the present matter, there may be nothing more in it than what I heard on the ship's boom yonder. The truth is, I didn't know at first but this cluster here might have been the one—though I see now there is only *one* island in the whole chain that can answer the description, and that is not here." With that he pointed to another piece of the chart, showing no more than a few spots upon the paper, not to speak of shades in it standing for reefs and shoals, towards the "Head" of the Maldives; one spot lying away from the rest, with the single name of Minicoy for them all. I asked him hastily enough what it was called, and all about it, for the whole affair made me more and more uneasy; but on this point Jones seemed inclined to keep close, plainly not liking the topic, except that I found it went by several names, one of which I had heard before, myself—White-water Island. About the time I was a boy in a merchantman's forecastle, 'twas a sort of floating yarn amongst some seamen, this White-water Island, I remembered; but I never met with a man that had seen it, every one having had it from a shipmate last voyage, though a terrible place it had been, by all accounts, without one's knowing exactly where it was. One craft of some kind had gone to find out a treasure that was buried in it, and she never was heard of more; a man took a fancy to live ashore in it, like Robinson Crusoe, and he went mad; while the reason there were no "natives" was owing to the dreadful nature of it, though at the same time it was as beautiful as a garden. The right name, however, according to Jones, was Incoo. "There's no good in blinding one's self to it, Mr Collins," he went on—"that's the island the men meant; only their chart set me wrong owing to the greater size of it—you had better beat out of this at once, and keep up for the eight-degrees channel there."

We were in open sea again, out of sight of land from the mast-head, steering for somewhere about north-north-east, with a very light breeze from nearly the monsoon quarter, and sometimes a flying squall, sometimes no more than a black pour of rain, that left it hotter than before. The clear deep blue of the Indian ocean got to a sickly heavy sort of dead colour towards noon, like the bottoms of old bottles, and still we were standing on without signs of land, when, almost all at once, I noticed the water in the shadow of the schooner had a brown coffee-like tint I had never exactly seen hitherto; indeed, by the afternoon, it was the same hue to the very horizon, with a clean seaboard on all sides. I had the deep-sea lead-line hove at length, and found no soundings with a hundred and fifty fathoms; there was neither land nor river, I knew, for hundreds and hundreds of miles to the coast of Arabia; as for current, no trial I could think of showed any; and there were now and then patches of small glittering sea-jellies and sea-lice to be seen amongst a stalk or two of weed on the soft heave of the water, going the way of the breeze. A dozen or so of Portuguese men-of-war, as they call them, held across our bows one time; little pink blubbers, with their long shining roots seen hanging down in the clear of the surface, and their little blue gauze sails with the light through them, ribbed like leaves of trees, as they kept before the wind. Westwood and I both fancied we could feel a queer sulphury smell as we leant over the side, when a surge came along the bends. Not a single fish was to be seen about us, either, except the long big black-fish that rose one after the other at a distance, as the wind got lighter. One while you heard them groaning and gasping in the half-calm, as if it were the breathing of the sea far and wide every time it swelled; another, one saw them in a cluster of black points against the bright sky-line, like so many different-shaped rocks with the foam round them, or a lot of long-boats floating bottom up, with their back-horns for humps on the keel. As for Jones, he looked graver and graver, till all of a sudden we saw him go below; but after a little he came up with an almanac in his hand, and his finger fixed where the time of the next new moon was given, as I found when I took it from him, for he seemed not inclined to speak. "Why, what has that to do with the thing?" I said; "we are heading fair for the Minicoy cluster, I think." "Yes, sir," said he; "if one needed anything to prove that, he has only to look at the sea—at this season, I *knew* how it would turn out." "Well, that's what I can't understand, Mr Jones," said I; "the water seems as deep as St Paul's Cathedral thrice over!" "Do you not know then, sir, why

that island is called—what it is?" was the answer,—"but wait—wait—till *night!*" and with that Jones turned round to the bulwarks, leaning his arms on the rail. In the mean time, Jacobs and some of the men had drawn a bucket of water, which we noticed them tasting. A pannikin full of it was handed along to the quarterdeck, and the taste struck you at once, owing to the want of the well-known briny twang of real blue-water, and instead of that a smack as it were of iron, though it was as clear as crystal. Every one had a trial of it but Jones himself: indeed, he never once looked round, till it had occurred to me to pour the tin of water into a glass and hold it with my hand over it inside the shade of the binnacle, when I thought I made out little specks and sparks shooting and twisting about in it, as if the water had a motion of itself; then it seemed to sink to the bottom, and all was quiet. Just then I looked up and caught Jones' scared restless sort of glance, as if he were uneasy. There was a strange life in that man's brain, I felt, that none could see into; but owing as it plainly was to something far away from the present matter, I knew it was best to let him alone. In fact, his doing as he did showed well enough he meant fair by ourselves. Nothing on earth ever gave me more the notion of a wreck in a man, than the kind of gaze out of Jones' two eyes, when he'd turn to the light and look at you, half keen, half shrinking, like a man that both felt himself above you, and yet, somehow or other, you'd got him under you. I'm blessed if I didn't trust him more because he had been too desperate a character in his deeds beforehand to turn his mind to little ones now, than for anything good in him; being one of those fellows that work their way from one port to another in ships' forecastles, and get drunk ashore, though, all the time, you'd say there wasn't one aboard with them, from the skipper to the chaplain, knew as much or had flown as high some time. Some day at sea the hands are piped round the grating, hats off, and the prayer-book rigged,—down goes "Jack Jones" with a splash and a bubble to his namesake, old "Davy," and you hear no more of him!

Well, just after sundown, as the dusk came on, Westwood and I left the deck to go down to supper with the Planter, the midshipman being in charge. There was nothing in sight, sail or land; indeed, the queer dark-brown tint of the horizon showed strongly against the sky, as if it had been the mahogany of the capstan-head inside its brass rim; the night was cloudy, with a light breeze, and though the stars came out, I expected it to get pretty dark. As I went down the companion, I heard nothing but the light wash of

the water from her bows, and the look-out stepping slowly about betwixt her knightheds on the forecastle: while it struck me the smooth face of the sea seemed to show wonderfully distinct into the dusk, the completer it got, as if a sort of light rose up from off it. Down below we felt her stealing pleasantly through all, and Tom and I sat for I didn't know how long, trying to settle our differences on the main point—about the Seringapatam, of course, and which way she was likely to be gone. Tom plumed himself mightily on his common-sense view of a thing, and having by this time got back a good deal of his cheerfulness, he and Mr Rollock almost laughed me over to his line of thinking.

We agreed that the ship must be at present edging up on one side or other of the Maldives, but both of them thought the less we had to say to her the better. "I say, though," exclaimed the Planter, whose face was turned the opposite way to ours, "I'd no idea it was moonlight!" "Moonlight!—there's no moon till morning," I said. "Look into the stern-cabin there, then!" said Rollock; and I turned round, seeing into the door of the after-cabin, where, to my no small surprise, there was a bright white glare through the little square stern-light, gleaming on the rim of the sill, and seemingly off both the air and the water beyond. Quite confounded, as well as wondering what Snelling could be about, I hurried up the companion, the Planter and Westwood hard at my heels.

For so long as I had kept at sea, and a good many different latitudes I had been into—yet I must say I never in my life before saw such a strange sight as broke on us the instant we put our heads out of the booby-hatch, fresh from the lamp-light in the cabin. Indeed, I can't but own to my first feeling being fright; for what it was I couldn't understand, unless we were got into a quarter of the world where things weren't natural. There were a few stray clouds in the sky, scattered away ahead, and clearing eastward to settle along before the breeze; all aloft of us, high over the sharp dark edge of the sails and gaffs, the air seemed to open away out pale and glimmering like a reflection in the ice; all round you caught a glimpse of the stars weakening and weakening toward the horizon. But the water itself—that was the sight that bewildered one! On every side the whole sea lay spread out smooth, and as white as snow—you couldn't fancy how wide it might stretch away astern or on our lee-beam, for not a mark of horizon was to be seen, save on the northwest, where you made it out, owing to the sky there being actually

darker than the sea—but all the time the wide face of it was of a dead ghastly paleness, washing with a swell like milk to our black counter as we forged ahead. It wasn't that it shone in the least like blue water at night in the ordinary tropics—by Jove! that would have been a comfort—but you'd have thought there was a winding-sheet laid over all, or we were standing across a level country covered with snow—only when I stood up, and watched the bows, there was a faint hissing sparkle to be seen in the ripple's edge, that first brought me to myself. The Lascars had woke up where they lay about the caboose, and were cowering together for sheer terror; the men standing, each one in his place, and looking; while Jones, who had relieved the midshipman, leant by himself with his head on the capstan, as if to keep out the sight of it all: the schooner's whole dusky length, in fact, with every black figure on her decks, and her shape up to the lightest stick or rope of her aloft, appearing strange enough, in the midst of the broad white glare, to daunt any one that wasn't acquainted with the thing. "Mr Jones," said I quickly, on going up to him, "what the devil is this? I'll be hanged if I didn't begin to believe in witchcraft or something. Where are we getting to?" "Nothing, nothing, sir," said he, lifting his head; "'tis natural enough; only the milk sea, as they call it—the white water, sir, that comes down twice a-year hereabouts from God knows where—you only see it so at—at *night*!" "Oh, then, according to that," I said, "we shan't be long of sighting your island. I suppose?" "No," said he, "if the breeze freshens at all, keeping our present course, the mast-head ought to hail it in two or three hours; but God knows, Lieutenant Collins, natural though the sight is, there's something a man can't get rid of, especially if"—He stood up, walked to the side, and kept facing the whole breadth of the awful-looking sea, as it were till it seemed to blind him. "I tell you what, sir," said he slowly, "if that water had any use, a priest would say, 'twas sent to wash that same island clean of what's been done on it; but it couldn't, Mr Collins, it couldn't, till the day of judgment!" He leant over till his dark face and his shoulders, to my notion, made the milk-white surge that stole up to the schooner's bends take a whiter look. "If that water could wash *me*, now," muttered he, "ay, if it could only take the soul out of me, curse me, but I'd go down, down this moment to the bottom!" With that he gave a sudden move that made me catch him by the arm. "No, no, Mr Collins," said he, turning round; "the truth is, I mean to go through with it: by G—, I'll let it carry me where I'm bound for! D—n it, wasn't I born without asking my leave, and I'll kick the

bucket the same way, if it was on a blasted dunghill!" "Come, come, Mr Jones," said I, in a soothing sort of way, "go below for a little, and sleep; when we hail the land, I'll have you called." "I'd rather not, sir," said Jones, quietly; "the truth is, it strikes me there's something strange in my happening to be aboard here, at this particular season, too; and see that same island, *now*, I must! It's fate, Lieutenant Collins," added he; "and I must say, I think it's the more likely something may turn out there. Either you'll see that ship, or the men, or else *I'll* be there myself, in some way or other!"

Now there was something in all this that began at moments quite to bewilder one, the more excited the state was it put you in. There was nothing for it but to push on, and see what might come of it. Indeed, the weather favoured us better on our present course than on any other; and I felt, if I didn't keep active, I should go distracted. 'Twas almost as if what Jones said had a truth in it, and a sort of a power beyond one were drawing the schooner the way she steered; while, at the same time, there was every little while somewhat new in the extraordinary looks of things to hold you anxious. Even a flying touch of a squall we had about midnight didn't the least do away with the whiteness of the water all around: on the contrary, as the dark cloud crept down upon us, widening on both sides like smoke, the face of the sea seemed to whiten and whiten, casting up a ghastly gleam across the cloud, with its ripples frothing and creaming: till, not knowing *how* things might go hereabouts, you almost expected the first rush of the wind to send it all in a flame to our mastheads. Then up she rose on a surge like a snow-drift, and off we drove heeling over to it, gaffs lowered and canvass down, everything lost sight of, save the white sea heaving up against the mist; while the clear-coloured splash of it through our weather bulwarks showed it was water sure enough. The squall went off to leeward, however, the rain hissing like ink into the swell it left, and spotting it all over till the last drops seemed to sink in millions of separate sparkles as far as you could see. The schooner rose from one heave to another to an even keel on the smooth length of it, hoisting her spanking gaffs, hauling aft the sheets, and slipping ahead once more to a breeze fed by the rain. As the sky cleared, the dead white glare the water sent up into it was such, you didn't know the one from the other toward the horizon; and in the midst there was only the smooth faint surface, brushing whiter with the breeze, as if it was nothing else kept it from going out of sight; with a few streaky clouds

turning themselves out like wool in a confused rift of the air aloft; the schooner walking in it without ever a glimpse of a shadow on one side or another; while, as for seeing a sail on the horizon, you might as well have looked for a shred of paper. It wasn't light, neither, nor was it haze; nothing but a dead colour off the very sea's face—for the schooner rose and plunged without letting you see a hair's-breadth of her draught below the water-line. Every man rubbed his eyes, as if it were all some kind of a dream, and none the less when suddenly we were right upon a long patch of black stripes winding away through the white, like so many sea-serpents, come up to breathe, with both ends of them lost in the faintness. Nobody stirred, or said, "Look-out;" stripe after stripe she went slipping through them as if they'd been ghosts, without a word or an extra turn of the wheel. I daresay, if we had commenced to rise in the air, every man would have held on like grim death, but he wouldn't have wondered much; 'twas just, "whatever might happen to please them as had the managing of it," which was Jacob's observation when we talked of it after.

Mr Snelling was the only one that ventured to pass a joke; when Jones, who I thought was out of hearing, looked at the reefer with such a fierce glance, and so scornful at the same time, that I couldn't help connecting what happened the very next moment with it—for without the slightest warning, both of us were flung to leeward, and Snelling pitched into the scuppers, as a huge rolling ridge of the white water came down upon our beam; while the schooner broached to in the wind, floundering on the swell with her sails aback. Had the breeze been stronger, I think it would have fairly swamped us with the sternway she had; and heave after heave swelled glaring and weltering out of the pale blind sky, till our decks swam with light in the dusk under the bulwarks, and about the dark mouths of the hatchways. Just as suddenly the rollers seemed to sink in the smooth of the sea, and at last we payed off with the breeze as before, at the cost of a good fright and a famous ducking. Two or three times in the course of the middle watch did this happen, except that we were taken less by surprise, and had the hatches closed, with every rope ready to let go; the breeze strengthening all the time, and the same sort of look continuing all round and aloft. ^[25]

About four o'clock or so, the appearance of the sky near where the horizon ought to be, right ahead, struck Westwood and me as stranger than ever; owing to a long lump of shadow, as it were, lying northward like the shape

of a bow or the round back of a fish miles long, though it softened off at one end into the hollow of the air, and the gleam of the white water broke past the other like the streaks of the northern lights in a frosty night toward the Pole, save for the thin shadowy tint of it, and the stars shining plainly through. I'd have fancied it was high land; when suddenly the half-moon was seen to ooze like a yellow spot out of the shapeless sort of steam to eastward, like a thing nobody knew, shedding a faint brown glimmer far below where you hadn't seen there was water at all. The bank of shadow softened away towards her, till in little more than five minutes the dark rippling line of the sea was made out, drawn across the dusk as if it had been the wide mouth of a frith in the polar ice, opening far on our weather-bow. A soft blue shimmering tint stole out on it by contrast, leaving the milk-white glare still spread everywhere else, astern, ahead, and on our lee-beam, into the sightless sky: 'twas the old blue water we caught sight of once more, with the natural night and the stars hanging over it; and the look-out aloft reported blue water stretching wide off to the nor'ard. There was one full hurrah from the seamen in the bows, and they ran of themselves naturally enough to the ropes, standing by to haul the schooner on a wind—to head up for the old salt sea, no doubt.

"Lieutenant Collins," said Jones, in a low voice, "do you mean to steer for that island, sir?" "Yes," I said, "certainly, Mr Jones—I shall see this matter out, whatever the upshot may be!" "Then keep on, sir," said he, firmly, "keep in the white water—'tis your only plan to near it safely, sir!" This I didn't well understand; but, by Jove! there was so much out of the common way hereabouts, that I had made up my mind to follow his advice. Another hail from aloft, at length—"Something black on our lee-bow, sir—right in the eye of the white it is, sir!" We were now running fast down in the direction where there was least possibility of seeing ahead at all, although, in fact, the little moonshine we had evidently began to make this puzzling hue of the surface less distinct—turning it of a queer ashy drab, more and more like the brown we noticed by day-time; while the light seemed as it were to scoop out the hollow of the sky aloft, when a dark spot or two could be observed from the deck, dotting the milky space over one bow—you couldn't say whether in the air or the water, as they hung blackening and growing together before us through below the foot of the jib. Larger and larger it loomed as we stood before the breeze, till there was no doubt we had the bulk of a small low island not far to windward of us, a couple of

points or thereabouts on our larboard bow when she fell off a little—lying with the ragged outline of it rising to a top near one end, its shape stretched black and distinct in the midst of the pale sea; while the white water was to be seen taking close along the edge of the island, showing every rock and point of it in the shadow from the moon, till it seemed to turn away all of a sudden like a current into the broad dreamy glimmer that still lay south-eastward. On the other side of the island you saw the dark sea-ripples flickering to the faint moonlight, and some two or three more patches of flat land just tipping the horizon, with the thin cocoa-nut trees on them like reeds against the stars and the dusk; while the one nearest us was sufficiently marked out to have saved me the trouble even of the look I gave Jones, which he answered by another. "You have seven or eight fathoms water here, sir," added he; "and as soon as she rounds the point yonder, we can shoal it by degrees to any anchorage you like, as long as we keep in the white water—but we must hold to *it*!" It was accordingly found so with the lead, and ere long, having kept past the point, the same milky hue could be noticed as it were jagging off through the darker water, and winding away hither and thither all round the other side, till you lost it. However, here we brailed up and hauled down everything, letting go an anchor, little more than half a mile from a small sloping beach, where the strange water actually surged up through the shadow of the land, in one glittering sheet like new-fallen snow, while the back-wash seethed down into it all along the edge in perfect fire. Nothing stirred on it, apparently; not a sound came from it, save the low wash of the surf on that lonely bare beach; and you only made out that part of the island was covered with trees, with the ground rising to a flat-topped hummock toward one end. So being pretty wearied by this time, impatient though I was for a clearer view of matters, most of us turned in, leaving the deck to a strong anchor watch, in charge of Jones—especially as it was towards morning, and the breeze blowing fresh over the island through our ropes. But if ever a man walked the deck overhead in a fashion to keep you awake, it was Jones that morning: faster and faster he went, till you'd have thought he ran; then there was a stop, when you felt him *thinking*, and off he posted again. No wonder, by George! I had ugly dreams!

I could scarce believe it wasn't one still, when, having been called half-an-hour after daybreak, I first saw the change in the appearance of things all about us. The horizon lay round as clear as heart could wish—not a speck in

sight save the little dingy islets at a distance; the broad blue ocean sparkling far away on one side, and the water to windward, in the direction we had come, showing the same brownish tint we had seen the day before, while it took the island before us in its bight, and turned off eastward with the breeze till it spread against the open sky. The top of the land was high enough to shut out the sea-line, and, being low water at the time, it was plain enough now why Jones wished to keep the white streaks over-night; for, where the dingy-coloured ripples melted on the other side toward the blue, you could see by the spots of foam, and the greenish breaks here and there in the surface, that all that coast of the island was one network of shoals and reefs, stretching out you didn't know how wide. White-water Island, in fact, was merely the head of them—the milky stream that had so startled us just washing round the deep end of it, and edging fair along the side of the reefs, with a few creeks sent in amongst them, as it were, like feelers, ere it flowed the other way: we couldn't otherwise have got so near as we were. But the island itself was the sight to fasten you, as the lovely green of it shone out in the morning sun, covering the most part of it close over, and tipping up beyond the bare break where it was steepest, with a clump of tall cocoas shooting every here-and-there out of the thick bush; indeed, there was apparently a sort of split lengthways, through the midst, where, upon only walking to the schooner's bow, one could see the bright greenwood sinking down to a hollow out of sight, under the clear gush of the breeze off a dark blue patch of the sea that hung beyond it like a wedge. As the tide made over the long reefs, till the last line of surf on them vanished, it went up the little sandy cove opposite us with a splash on the beach that you could hear: the place was just what a sailor may have had a notion of all his life, without exactly seeing it till then; and though, as yet, one had but a rough guess of its size, why, it couldn't be less than a couple of miles from end to end, with more than that breadth, perhaps, at the low side toward the reefs. Not a soul amongst the man-o'-war'smen, I daresay, as they pressed together in the schooner's bows to see into it, but would have taken his traps that moment, if I'd told him, and gone ashore on the chance of passing his days there; so it wasn't hard to conceive, from the state it seemed to put their rough sunburnt faces in, honest as they looked, how a similar fancy would work with Master Harry Foster, even if it tried his virtue a little.

I had no more doubt in my own mind, by this time, of it's being the fellow's intended "hermitage," than I had of it's being the same White-water Island I had heard of myself, or the spot which Jones seemed to know so well: 'twas likely the foremast-man had got inkling of it somewhat in the way I did; and lying, as it happened to do, between no less than three channels which the Indiaman might take, after dodging us in this fashion round the long cluster of the Maldives, she couldn't make north-westward again for the open sea, without setting Foster and his mates pretty well upon their trip. Indeed, if she were to eastward of the chain at present, as I was greatly inclined to believe, the course of the breeze made it impossible for her to do otherwise; but there was one thing always kept lurking about my mind, like a cover to something far worse that I didn't venture to dwell upon—namely, that Captain Finch might get wind of their purpose, and drive them on another tack by knocking it on the head, either at the time or beforehand, without the courage to settle *them*. Nothing in the world would have pleased me better than to pounce upon ugly Harry, at his first breakfast ashore here; but the bare horizon, and the quiet look of the island since ever we hove in sight of it, showed this wasn't to be. At any rate, however, I was bent on seeing how the land lay, and what sort of a place it was; so accordingly, as soon as the hands had got breakfast, Westwood and I at once pulled ashore with a boat's-crew well armed, to overhaul it. We found the sandy beach covered, for a good way up, with a frothy slime that, no doubt, came from the water on that side, with ever so many different kinds of blubber, sea-jelly, star-fish, and shell; while the rocky edge round to windward was hung with weed that made the blocks below it seem to rise out of every surge, like green-headed white-bearded mermen bathing. Glad enough we were to get out of the queer sulphury smell all this stuff gave out in the heat—letting the men take every one his own way into the bushes, which they enjoyed like as many schoolboys, and making, ourselves, right for the highest point. Here we saw over, through the cocoa-nut trees and wild trailing-plants below, down upon a broad bushy level toward the reefs. It was far the widest way of the island; indeed making it apparently several miles to go round the different points; and as the men were to hold right to windward, and meet again after beating the entire ground, Westwood and I struck fair through amongst the tangle of wood, to see the flat below. We roused out a good many small birds and parroquets, and several goats could be noticed looking at us off the grassy bits of crag above the trees, though

they didn't seem to know what we were. As for most of the wood, it was mainly such bushes and brush as thrive without water, with a bright green flush of grass and plants after the rain at the monsoon, the prickly pear creeping over the sandy parts, till we came on a track where some spring or other apparently oozed down from the height, soaking in little rank spots amongst the ground leaves, with here and there a small rusty splash about the grass-blades, as if there were tar or iron in it. Here there were taller trees of different kinds on both sides, dwindling off into the lower bush, while, to my surprise, some of them were such as you'd never have expected to meet with on an island of the size, or so far off the land—bananas, mangoes, a shaddock or two, and a few more, common enough in India; though here they must evidently have been planted, the cocoas being the only sort natural to the place—and of them there were plenty below. Suddenly it led down into a shady hollow, out of sight of the sea altogether, where we came on what seemed to have been a perfect garden some time or other; there were two or three large broad-leaved shaddock trees, and one or two others, with a heap of rubbish in the midst of the wild Indian corn and long grass; some broken bamboo stakes standing, besides a piece of plank scattered here and there about the bushes. Right under the shade of the trees was a hole like the mouth of a draw-well, more than brimful at the time with the water from the spring; for, owing to the late rains, it made a pool close by the side, and went trickling away down amongst the brushwood. Every twig and leaf grew straight up or out, save in a narrow track toward the rising ground—no doubt made by the goats, as we noticed the prints of their hoofs on the wet mud. 'Twas evident no human being had been there for heaven knew how long; since, by the care that had been taken with the place, it was probably the only spring in the island—perhaps for leagues and leagues round, indeed. Trees, branches, green grass, and all—they had such a still moveless air under the heat and light, in the lee of the high ground, with just a blue spot or two of the sea seen high up through the sharp shaddock leaves, and the cool-looking splash of water below them, that Westwood and I sat down to wait till we heard the men. Still there was a terribly distinct, particular cast about the whole spot, which, taken together with the ruin and confusion, as well as the notion of Foster and his shipmates actually plotting to come there, gave one almost an idea of the whole story beforehand, dim as that was: the longer you looked, the more horrid it seemed. Neither natives nor single man could have brought the different

trees to the island, or contrived a tank-well of the kind, seeing it was apparently deep enough to supply a ship's casks; while, at the same time, I couldn't help thinking some one had lived there since it was made, or perhaps much used. By the space taken up with the hut that had been there, and the little change in the wild state of things, most likely it was by himself he had been, and for no short time. It looked, however, as if he had been carried off in the end, otherwise his bones would have been hereabouts; probably savages, as Westwood and I concluded from the scatter they had made of his premises. For my own part, I wondered whether Jones mightn't have been the man, in which case most of that disturbed mind he showed lately might come of remembering the dreary desolate feelings one must have, living long on a desert island. No doubt they had "marooned" him for something or other, such as not being a bloody enough captain; and I could as easily fancy one having a spice of madness in him, after years ashore here, as in Captain Wallis after a French prison. Still it startled one to see one's face in the black of the well; and we couldn't make up our minds to drink out of it. Even the pool at its side had a queer taste, I thought—but that may have been all a notion. All at once, by the edge of this same pool, Westwood pointed out two or three marks that surprised us both, being quite different from what the goats could have made; and on observing closer, they were made out to be more like the paws of a wild beast stamped in the mud. "By Jove!" I said, "no wolves on the island, surely!" "All of them seem to stick to the pool in preference to the well, at any rate," said Tom; "they appear to have the same crotchet with ourselves, Ned!" "Strange!" said I, "what the devil can it be?" Westwood eyed the prints over and over. "What do you think of—a *dog*?" he asked. "Good heavens!" exclaimed I, looking down—"yes!" and there we sat gazing at the thing, and musing over it with somehow or other a curious creeping of the blood, for my part, that I can't describe the reason of. At last we heard the men hallooing to each other on the level beneath, when we hurried down, and coasted round till we came upon the boat again, where the coxswain was amusing himself gathering shells for home—and we pulled back to the schooner.

My first resolve after this was to keep before the breeze again, try to get sight of the ship, and tell Finch out and out, as I ought to have done at once, what was afoot amongst his crew; or else to let Sir Charles Hyde know of it, and make him a bold offer of a passage to Calcutta. However, I soon saw

this wouldn't do; and a regular puzzle I found myself in, betwixt inclining to stick to the island and catch Foster if he came, and wishing to know how the Indiaman stood on her course if he didn't. Jones must have read my thoughts as I leant upon the capstan, looking from White-water Island to the horizon and back again; for he stepped aft and said in a low voice, "Lieutenant Collins, there's one thing I didn't tell you about that island before, because, as I said, I wasn't at first sure it was the one the men meant; it may help to decide you, sir," said he gravely. "Ah?" I said. "In that island," he went on, his ordinarily dark face as pale as death, "there is enough gold at this moment to buy half an English county—ay, and better than gold, seeing that only one man knows the spot where it is, and *he* would rather sail round the world without a shirt to his back than touch one filing of the—hell's dross!" I looked at Jones in perfect amaze as he added, "You may fancy now, Mr Collins, whether if a man of the kind happened to get wind of this, he would not stir heaven and earth to reach the place? But, rather than that gold should come into living hands," said he fiercely, "I would *wait for them* by myself—ay, alone—alone," and a shudder seemed to run through him as he gave another glance to the island. For my part, I drew a long breath. What he mentioned had all at once relieved my mind wonderfully; for if this was Master Foster's cue, as I now saw it must have been the whole voyage over, why, he would be just as sure not to spread the thing widely, as he would be to get here some time, if he could. On second thoughts, it wasn't so plain how the rest of the crew might work with it, on the least inkling; but inclined as I naturally was to look upon the best side of the matter, you needn't wonder at my making up my mind as I did. The short and the long of it was that, in an hour more, Jones and myself, with Jacobs and four other good hands—and, somewhat to my annoyance, Mr Rollock, who persisted in coming—were pulling back for the island; while the schooner, under care of Westwood and Snelling, was hauled on a wind to stand up across the Nine Degrees Channel, which the Indiaman would no doubt take as the safest course for western India, if all went well, and supposing I had reckoned correctly why we missed her so long. In that case, three or four days at most couldn't fail to bring her up; and on first sighting her at the horizon, they could easily enough strip the schooner to her sticks, keeping her stern on so as to let the ship pass without noticing the loom of so small a craft; whereas if they didn't see her at all, in that time, they were to bear up before the wind again for the island. Of all things, and every

circumstance being considered, I agreed with Westwood it was best not to come across her again, if we could help it.

For our own part, in the boat, we were fully provisioned and armed for all the time we could need, not to speak of what the island itself afforded; and after watching the schooner stand heeling off to sea, round the deep end of it, we cruised close along, not for the beach this time, but seeking for a cove in the rocks where the boat could be hauled up out of sight, and safe from the surf at high water. This we weren't very long of finding behind some blocks that broke the force of the surge, where the wild green trailers from above crept almost down to the seaweed; and after helping them a little to hide her perfectly, the whole of us scrambled ashore. The first thing was to post a look-out on the highest point, the sharp little peak next to the reef-side, overlooking the spring and the level ground between: on the other side of the long green valley, full of bush in the midst, was the flat-topped rise towards the brown water, from which I and the Planter watched the schooner softening for an hour or two, till she reached the blue sea-gleam, and lessened to a speck. By that time, the men had pitched a little canvass tent on the slope opposite to us, over the hollow—Jones evidently being anxious to keep clear of the spot, which somebody else had picked out beforehand: in fact the highest ground was betwixt us and it; and on coming down through the thicket to our quarters, after a stroll in which Rollock shot a couple of rose-coloured parroquets, declaring them to be splendid eating, we found Jones had had to send over the other way for water.

I woke up in the tent perhaps an hour before midnight, as I judged on looking through the opening at the stars that shone in the dark sky through the north-east end of the valley above the sea. At the other end, being higher, you just saw the scattered heads of the bushes against a pale floating glimmer of air, with a pale streak of horizon. Behind us was the height where we had the look-out, and in front the flat top of the crag drawn somehow or other as distinct as possible upon the faint starlight in that quarter, roughening away down on both sides into the brushwood and dwarf cocoa-nut trees. With the stillness of the place all round, the bare sight of that particular point gave me a dreamy, desolate, ghastly sort of feeling, beyond aught I ever saw in my life before: it was choking hot and heavy inside, and seemingly throughout the hollow, though a good deal of dew began to fall, glistening on the dark-green bushes nearest us, and standing

in drops on the fern-like cocoa leaves which Jacobs and the other men had roofed themselves with. They were sound asleep; and the glimpse of the soles of their shoes and their knees, sticking out of the shadow you saw their rough faces in, with the sight of their cutlass-hilts, served to give one a still wilder notion of the place. One felt scarce sure of being able to wake them, in case of anything turning up; and, at any rate, a dread came over you of its being possibly somewhat unnatural enough to make the thing useless. On the other hand, the Planter kept up such a confounded snoring inside the canvass close by me, that although there was no doubt of his being alive, the sound of it put stranger thoughts into your head: sometimes his breath would be jogging on like that of a tolerably ordinary mortal, then get by degrees perfectly quiet; and then all of a sudden go rising and rising, faster and faster, as if some terrible dream had hold of him, or there was some devilish monster hard in chase of his soul, till out it broke into a fearful snort that made your very heart jump—whereupon he'd lie as if he were finished, then go through the whole story again. I can't tell you how that cursed noise troubled me; 'twas no use shoving and speaking to him, and all the time the old boy was evidently quite comfortable, by something he said at last about "indigo being up." The best I could do was to get out and leave him to himself: in fact, where Jones had gone at the time I didn't know, till suddenly I caught sight of his dark figure standing on the rise at the back of our post, and went up to him. Jones was certainly a strange mixture, for here had he been all round the low side of the island by himself, yet I found him leaning bareheaded on the barrel of his musket, listening like a deer: he assured me solemnly he thought he had heard voices for the last hour on the other side, where he hadn't been, and asked me if I would go with him to see. Then down came our look-out from the peak, rolling through the bushes like a sea-cow, to report his not having seen anything, and to say they'd forgot to relieve him aloft; so rousing up Jacobs, I sent them both back together, while Jones and I held the opposite way for the other height. The moment we got to it, *there* was the same faint blotted-out horizon as we had had all astern of us the night before, the same strange unnatural paleness cast off the face of the sea, making it look black by contrast to north-eastward and east, against the blue shadow with the bright stars in it, where the sea rippled as usual; while the keenest glare in the middle seemed to stream right to the breast of the island, like the reflection of daylight down a long break in the ice—only it was dead and

ghastly to behold. The white water washed round under the black edge of the rocks before us, to the bare sloping beach, where it came up fairly like a wide splash of milk, glimmering and sparkling back amongst the little sea-creatures you fancied you saw moving and crawling out or in; till it ran along by where the reefs were, and turned off to the dim sky again. Everything else was still, and Jones drew a breath like one relieved. "Nothing after all, I think, sir!" said he: but to my mind there was something a long sight more awful in the look of that unaccountable white water bearing down like snow upon the island, as it were, with the wrinkles and eddies to be seen faintly in it here and there back toward the glaring breadth of it, and the floating streaks in the sky above. Especially when he told me he thought it was owing to millions upon millions of living things in it, that made the same show there at two different seasons in the year, for a week or so at a time—the appearance of it getting less distinct every night. However, I had begun to grow uneasy again about the Indiaman, and the schooner too, as well as doubtful of the fellows coming to the island it all; on the contrary, as I said to Jones, if they saw the schooner, and Westwood didn't manage as I told him, why both she, the ship, and ourselves might possibly get the finishing-stroke altogether. "The more I think of it," said I, "the more cursedly foolish it seems to be here instead of aboard!" "Why it is, Mr Collins, I don't know," replied Jones, "yet I feel as sure these men will land here as if I heard them in the woods: and if I wasn't aware how one crime breeds another, for my part I shouldn't be here at present, sir. Many a night afloat has the thought of this place weighed on me, lest there was something new doing in it: but what's buried here I'm resolved no man shall stir up, if I can help it, sir!" A little after, as we got up and went down to the beach, all of a sudden—like a thing he couldn't avoid—Jones began to give me some snatches of what had happened here some years before, which, according to him, he had got from a shipmate of his that died; and I must say it made the blood creep in me to listen to it.

At the beginning of the war, he said, the island had been a nest of regular pirates, who had taken pains to make it, from a mere muddy head of a reef with some cocoas upon it, probably into a resort on occasions—especially as even the wild Maldivian natives to southward had somehow a dislike to it. The whole gang being taken by some cruiser or other at sea, however, too far off to leave any clue to their harbourage hereabouts, they were all hanged, and the place lost sight of; till a good many years after, a country

Arab craft, bound for Dacca up the Ganges, was driven in a gale upon the reefs some way off, without seeing the island at all till the sea went down, and she was going to pieces. There were only two Europeans aboard, both having turned Mussulmen, and the youngest of them was mate. There was a passenger, a native Indian merchant, and his servants, with, as was believed, his harem below in the after cabins, for nobody ever had seen them; but the Arab *rais* of the vessel, and several more, being washed off when she struck, the other Mussulmen took to the only boat they had, and got ashore, laving the two Englishmen with the passenger. Next day the two men had contrived a raft of the spars, whereupon the Hindoo at last brought up his three women, veiled from head to foot, and the whole got safe to the island. Here all the Mahometans herded together amongst themselves, forcing the two Englishmen to keep on the other side of the island, as they had no firearms; while the old Hindoo merchant and his native servant got a tent pitched on the highest point for the women, where they were no more seen than before, and a flag hoisted on a stick all the time for a signal to ships—poor simple devil! as Jones said with a laugh. Every day he offered the Arab crew more of the gold and jewels he had with him, to make for India and get him brought off; till at last some of the Arabs came round to the mate and his companion, wanting them to take the boat and go instead, otherwise they would kill both of them at once. The two men accordingly had provisions given them, and hoisted sail on the boat before the breeze to eastward: they had almost dropped the island, when all at once the one in the boat's bows stepped aft to him that had the tiller, and said it struck him the Arabs couldn't mean well to the Hindoo and his wives, in trying to get clear of others. All his companion did, Jones said, was to ask if he was man enough to go back, face them boldly, and offer to take the passenger and his harem too, when some craft or other might come back for the Arabs, since they weren't seamen enough to venture first in the boat. "I tell you what," said the first, "try the two largest breakers of water there!" The water for use next after the open one was tasted—and it was *salt*. "Will you stand by me?" the second man said, after a while. The other had a dog with him of his own, that had swam ashore from the vessel after the raft he landed upon, and it was sleeping in the boat's bow at the moment, near him; the dog lifted its head as they spoke, eyed the two, and lay down again with a low sort of growl. "Ay," answered the other, "to the last I will—as long as you stick by me!" They hauled over the sheet, laid the boat sharp on a wind, and as soon

as it was dusk began to pull back toward the island, where they got ashore in the dark before morning.

Here Jones stopped, turned suddenly round to the glare of the white water plashing upon the beach, and said no more. "Why, Jones," said I, "is that all you've to tell?—what came of them? For God's sake, yes—what was the upshot?" "'Tis enough to show how one bad thing breeds another, as I said, sir," answered he. "Probably in the end, though—at any rate I only fancy the rest—'tis a horrible dream to me, for a—a—squall came on when that shipmate of mine got so far, and we had to reef topsails. He went overboard off the yard that very night," said Jones wildly. "The man must have been *there*," said I in a pointed way, "to give all the particulars—he was the mate, himself, Mr Jones!" He made no answer, but kept gazing out to sea. "And how long was this ago?" I asked. "Oh," answered he, "years enough ago, no doubt, sir, for both of us to be children, if *you* were born, Mr Collins"—and he turned his face to me as ghastly as the water toward the horizon he was looking at before,— "at least I hope to God it was so—the man was a poor creature, sir, bless you, and d——d old, as it seems to me—twice my own age at the time, Lieutenant Collins! At all events, though," he went on, rambling in a strange way that made me think he was going out of his mind, "he remembered well enough the first time he saw the white water coming down upon the island. He was hunting—*hunting*—through the bushes and up and down, and came up upon the crag." "Hunting?" I said. "Yes, you didn't know how it lived, or where it kept, but every night it was on the look-out there. There was no one else, save the girl sleeping over beyond in the hut; and the man almost fancied the water of the sea was coming down to the rocks and the beach, like the Almighty himself, to show he was clear of all that had happened—if he could but have finished that brute, testifying like the very devil, he'd have been happy, he felt! Harkye," said he, sinking his voice to a whisper, "when he went back at daylight, the woman was dying—she had born a—what was as innocent as she was, poor, sweet, young heathen!" And if I hadn't guessed pretty well before that Jones was the man he'd been speaking of, his glittering eye, and his stride from the beach would have showed it; apparently he forgot everything besides at that moment, till you'd have thought his mind gloated on this piece of his history. "The woman!" I couldn't help saying, "what woman? Had the rest left you in the boat, then?"

Jones looked upon me fiercely, then turned away; when all on a sudden such a long unearthly quaver of a cry came down through the stillness, from somewhere aloft in the island, that at first I didn't know what to think, unless one of our look-out men had met with an accident, and tumbled down. 'Twas so dark where they were, however, there was no seeing them. Without looking for himself, Jones faced me, shivering all over. "What is that, Mr Collins?" whispered he, catching my arm with a clutch like death, "is there anything yonder—behind—behind—sir?" On the flat head of the crag north-westward, black against the pale glimmer over the very spot where we had stood half-an-hour before, to my utter horror, there was some creature or other sitting as if it looked toward the sea; and just then another wild, quivering, eddying sound came evidently enough from it, like a thing that would never end. It wasn't a human voice that!—my very brain spun with it, as I glanced to Jones. "Good heavens!" I said, "*what?* But by Jove! now I think of it; yes—'tis the howl of a *dog*—nothing else!" "Eight—ten years!" said Jones, hoarsely, "without food, too, and enough in that well to have poisoned whole gangs of men for twenty years—*can* it be an earthly being, sir?" The stare he gave me at the moment was more frightful than aught else, but I mentioned what Westwood and I had observed the day before. Before I well knew what he meant, Jones was stealing swiftly up the rising ground to the shoulder of it. I saw him get suddenly on a level with the creature, his musket aiming for it—there was a flash and a shot that left the height as bare as before—and next minute, with a short whimpering howl, the animal flew down the hill, while I heard Jones crashing through the bushes after it, till he was lost in the dark. Such a terrible notion it gave me of his strange story being true, whereas before I had almost fancied it partly a craze of his, from having lived here alone—that for a moment or two it seemed to my mind we were still in the midst of it. I hurried back to our post, and close upon morning Jones came over and lay down by himself without a word, haggard and covered with sweat.

All next day the horizon on every side was clear of a single speck; no signs either of ship or schooner, till I began to wish we were out of it, hoping the Seringapatam had, after all, kept the old course for Bombay, in spite of us. I found Jones had warned the men not to get our water out of the tank; it being poisoned in a way fit to last for years, as the pirates knew how to do. For our parts, we had to amuse ourselves the best way we could, waiting for the schooner to come down again for us, which was the only thing I looked

for now. That night the white appearance of the water to north and windward seemed a good deal gone, save where it hung like a haze in the direction it took off the island: the stars shone out, and in two or three nights more I found from Jones there would be nothing of it, which I hoped I should have to take on his word.

At daybreak, however, our look-out could all of a sudden be seen hoisting the signal for a sail in sight, and waving his hat for us to come. No sooner had we hurried up, accordingly, than a sail could be made out in the south-east, hull down; and the schooner not being likely thereaway, a certain flutter in me at once set it down for the Indiaman at last, on her way far past the island for the open channel. Being broad daylight, too, with a fresh breeze blowing, we saw that Foster and his party, if they carried out their scheme, would have to wait till she was a long way to windward at night-time, in order to get clear off. In fact, I had every one kept down off the height, lest the ship's glasses might possibly notice something; while, at the same time, we hadn't even a fire kindled to cook our victuals. I was watching her over the brow of the hill, through the telescope, when she evidently stood round on the other tack to get up to windward, which brought her gradually nearer. She was a large ship, under full canvass; and at last she rose her hull to the white streak below the bulwarks, till I began to think they intended passing the island to eastward to make the channel. I went down for Jones, and asked him how far the reefs actually ran out, when he told me there would probably be signs enough of them in such a strong, breeze; besides, as he reminded me, if she was the Indiaman, it was the captain himself that had a chart of them; in which, from the particular nature of it—being an old buccaneering chart, as he thought—they would be laid down quite plainly. Indeed, when we both returned to the height, there were lines of surf to be noticed here and there, more than three miles out; and seeing her by that time so distinctly, a new uneasiness began to enter my head. There were no signals we could make, even if they didn't serve the other way; and, to tell the truth, I didn't much like the idea of being found there. Still, it was terrible to see her getting nearer and nearer, without the power of doing the least thing to warn her off; spreading and heightening before you, till you counted her sails, and saw the light betwixt them, with the breeze always strengthening off that side the island, and of course making it the safer for her to pass it to leeward. The blue surges rose longer to the foam at their crests, till one's eye got confused between them

and the spots of surf rippling greenish over the tongues of reef; in fact, it wasn't far off being low-water at the time, and the whole was to be seen better from the height than elsewhere, stretched out like a floor that the breeze was sweeping across, raising a white dust where the blue melted into the light-brown tint of the sea to leeward. The breeze came so fresh that she even hauled down her sky-sails and fore-royal, falling off to go to leeward of the island. At the same moment, I made out with the glass that she was actually the Seringapatam, and also, that she'd got a leadsman at work in the chains. Five minutes more, and she'd have gone time enough into the distinct brown-coloured swells, to stand past the deep end: without help from the glass, I saw the sun sparkle in the spray from her black bows; she made a sliding forge ahead with her whole beam on to us; when, next moment, as if she had taken a sudden yaw and broached to in the wind, she came fairly end-on, showing the three piles of canvass in one. A wild boding of the truth crept on me as I sprang on the peak, waving my arms, and stamping like a lunatic, as if they could hear me. The next instant she had fallen a little over, her foretop-mast and main-to'gallant-mast gone out of their places at the shock, and the heavy blue swells running to her highest side in a perfect heap of foam; while the spray rose in white jets across her weather bulwarks at every burst of them. The Indiaman had struck on a rib of reef, or else a spit of sand, near the very edge of the whole bank: had it been only high water—as I had reason to believe afterwards—she'd have gone clear over it. As soon as the first horror of the thing was a little past, I looked, without a word, to Jones, and he to me. "The fellows have come at last, certainly!" said he, in a serious enough tone. "Mr Collins," he added, "the moment I set foot on ground here, I felt sure something would come of it!"—"Get the men down at once, sir," I said, "and let's pull out to the ship!"—"Why, sir," answered he, "the breeze is likely to keep for some time as it is, and if she's completely gone, they'll be able to bring all hands safe ashore. If you take my advice, Mr Collins, you'll hold all fast, and show no signs of our being here at all, in case of having something or other to manage yet that may cost us harder!" It didn't need much thought to see this, in fact; and in place of going down, ten minutes after we were all close amongst the bushes on the slope, watching the wreck. What was at the bottom of all this I didn't know; whether Captain Finch had really got wind of Foster's scheme, and been playing with some hellish notion his heart

failed him to carry out, or how it was; but what he was to make of *this* was the question.

Well, toward afternoon, the wreck seemed pretty much in the same state, though by that time they had evidently given her up, for the boats were beginning to be hoisted out to leeward. We couldn't see what went on there, till one of them suddenly appeared, pulling out for the island, about three miles off; then the large launch after it. There were ladies' dresses to be made out in both, their cloaks and shawls fluttering bright to the breeze as the boats dipped in the short swells; and they were full an hour ere they got out of our sight, near the broad beach, on the level side, where the tide was ebbing fast again, making it a hard matter to pull the distance. Two more boats came off the ship, filled full of casks and other matters, save the crews; the rest of the passengers and men no doubt waiting for the launch and jolly-boat to go back and take them ashore—for, soon after, they both could be seen rounding the point on their way out. On coming within hail of the fresh boats, however, they apparently gave in, since we could see the two of them, to our great surprise, strike round, and make for the beach again with their shipmates, spite of signals from the wreck, and shots even fired after them. The breeze by that time flagged, leaving less of a sea against the ship's hull in the dead-water from the other reefs, and she had fallen over again to leeward—a proof of her sticking fast where she struck, without much fear of parting very soon in such weather; but the sun was going down, and this being the first sign of foul play we had observed, 'twas plain at all events we should have to look sharp about us. We kept close up the height, bolted our cold junk and biscuit, washing down with a stiff caulker, and looked every man to his tools. To my great satisfaction, the Planter, who had watched everything seemingly in pure bewilderment, woke up out of it when he knew how matters stood, and handled his double-barrel as cool as a cucumber, putting in two bullets above the small shot he had got for the birds, and ramming down with the air of a man summing up a couple of bills against a rascally debtor. For my own part, I must say I was longer of coming to feel it wasn't some sort of a dream, owing to Jones' broken story; till the thought of *who* was to all likelihood on the very island below, with the rest of the ladies, amongst a set of all sorts of foremast-men thrown loose from command—half of them, probably, ruffians, with some hand in the matter—it came on me like fire at one's vitals. Meantime we sat there patiently enough for want of knowing what was to do first, or which

way we had best keep to avoid bringing matters to a head, worse than they yet were.

The night came out of the dusk a fine starlight to seaward beyond the reefs where the Indiaman lay, the high side of the island glooming back against the deep blue glistening sky, till you didn't see how large it might be; while the white water hung glimmering off to leeward from the rocks. The ship's crew had kindled a fire on the long strand near the boats, and we heard their noise getting louder and louder above the sound of the sea plashing upon it—evidently through their making free with liquor. Jones being no doubt well acquainted with every part of the ground, he proposed to go over and see how things stood, and where the passengers might be: at the same time, as Mr Rollock was more likely to come conveniently to speech of them, both for explaining our being here and putting them on their guard, he agreed to go too.

One or other of them was to hurry back as quickly as possible, while the men and myself waited in readiness for whatever might turn up. Hour after hour passed, however, till I was quite out of patience, not to say uneasy beyond description. All was still, save below toward the water's edge—the seamen's voices at times mixing with the washing hum of the surge on the sand, then rising over it in the chorus of a forecastle song, or a sudden bit of a quarrelsome uproar; notwithstanding which they began apparently to settle down to sleep. At last the Planter came skirting round the hill through the trees, quite out of breath, to say they had discovered the spot where the ladies had no doubt been taken by their friends, as Captain Finch himself, with one of the ship's officers, and two or three cadets, were walking about on the watch, all of them armed. To judge by this, and the fact of the other gentlemen being still apparently on the wreck, Finch mistrusted his men. However, the Planter thought it better not to risk a hasty shot through him by going nearer; and, to tell the truth, I thought it better myself to wait till daylight, when we should see if the rest got ashore; or possibly, as I wished to heaven were the case, the schooner might heave in sight. "Where is Mr Jones, though?" asked I: on which I found he had gone over for the first time toward the well for some water, as he told Mr Rollock. Indeed, the passengers were settled near the thick of the wood on this side of the watering-place, none of the Indiaman's people seeming to know as yet there was such a thing on the island.

We each of us held our breath, and listened to hear Jones come back. I was just on the point of leading my party that way, when I caught the sound of some one panting, as it were, up the ridge from the shore, and next moment saw, to my great surprise, it was the creature Jones had such a horror of—the dog that had run wild on the island, snuffing with his nose to the ground as if he were in chase of something; while the straw hats and tarpaulins of half-a-dozen fellows with ship's muskets and cutlasses followed him over the hill, not thirty paces above us. I signed to Jacobs to keep quiet, as they halted together, looking at the dog; and, from what I could catch of their words, they had noticed it ever since sundown, sitting at the foot of the hill watching what went on, till the animal ran toward them as if they were friends, every now and then turning and making for the heights with a bark and a whimper, as it did at present. One of the men was Foster. "I tell ye what it is," said he, "there's some fellow on the island already, 'mates. If we ketch him, why, we'll have it out of him—then down with it quietly to the shore, and go off in the long-boat, seeing as how this blasted fool of a skipper of ours has spoiled our pleasure!" The dog turned again, wagged his tail, and put his nose to the ground. I thought at first he'd bring them right upon us, when suddenly he broke off with a yelp exactly into the track Jones had taken with Mr Rollock on leaving us. The sailors kept away in his wake, down through the bushes into the thick dusk of the trees; upon which the Planter and I started to our feet at once, and held cautiously after them, the five man-o'-war-men following at our heels, Indian file.

Jones, however, had either heard the dog, or got an inkling of the thing, and he had taken a long round so as to join us from behind: the Indiaman's men keeping on for a quarter of an hour or so, when they brought up again, seemingly doubtful whether to follow the creature or not; and we dropped like one man into the shadow, till they made sail once more. Soon after the Planter pointed to the trees where the passengers were, and, on a sign from me, the whole of us edged down to the spot, till we were standing within sight of the half-finished fire, where the Judge's kitmagar was sitting asleep, tailor-fashion, with his flat turban sunk to his breast. One of the cadets stood down the slope a little, betwixt that and the beach where the crew were, leaning sleepily on his gun, and nodding; while in the midst was a sort of shed, run up with branches and cocoa-nut leaves, where you could see a glimpse of the different ladies' dresses, young and old, asleep on the ground. The starlight fell right down into the opening, and showed the

glistening edges of the leaves, with the sea broad out beyond the cocoas at the foot of the rising ground; so bidding Jones look out sharp, I stepped carefully through. My eye lighted at once on Sir Charles Hyde lying in one nook of the shelter, wrapped up in his pilot-coat—the first time in the old gentleman's life for a good while, I daresay, that he had passed his night on the ground, especially with such a lot of berths taken up beside him. Still he was sound enough at the time, to judge by his breathing, trifle as it was to the Planter's; and close by him was his daughter, with her cloak drawn half over her head in the shadow—her hair confused about her cheek as it pressed white into the bundle of red bunting she had for a pillow, and one hand keeping the cloak fast at the neck, as if she dreamt of a stiff breeze. The sight went to my heart, and so did the notion of waking her; but I heard sounds below on the beach, as if the rest of the crew missed their shipmates, probably getting jealous after their booze, and not unlikely to seek them up the island; so the more it struck me there was no time to be lost in coming to an understanding. According, I stooped down quietly and touched her on the shoulder. Violet Hyde opened her eyes at once, and looked at me; but whether it was the starlight showing my uniform, or her fancying it was still the Indiaman in the Atlantic, in place of crying out, why, there was almost a smile on her lips as she saw me from the ground. Next moment, however, she drew her hand across her eyelids, sat up with the help of the other arm, and gazed on me in a bewildered way, naming me at the same time below her breath. "Yes, Miss Hyde!" I said hastily; and a few words served to give her a notion of the case, as well as to advise her to wake up the Judge, with the rest of the ladies, and be ready to move the moment we came back. My first thought was to take Foster's own plan, and secure the long-boat, if we could only get betwixt the Indiaman's crew and the water; or even try our own, on the opposite side of the island, and carry off the other boats to the wreck; after which we might keep off till the schooner appeared, as she couldn't be long of doing in this weather.

I had just stolen back to the men and Mr Rollock, when all at once there was a wild cry, not twenty yards off, among the brushwood. A heavy blow and a struggle, in the midst of which three shots, one after the other, were heard from the cadets; next minute, with oaths and curses to the mast-head, and a crash through amongst the branches in the dark, Foster and his shipmates came making for the opening. Something horrible flashed through my mind as I fancied I had caught Finch's voice, whether one way

or the other I couldn't say, for I had no thought at the time excepting for Violet. Shriek upon shriek broke from the ladies ere I well knew I had big Harry himself by the hairy throat of him, as he was aiming a left-handed stroke of his cutlass at the Judge, who had sprung betwixt him and his daughter. The strength of that ruffian was wonderful, for he flung me off and levelled Sir Charles Hyde at the same moment, the Judge's body tripping me. Jones and my own men, as well as the Planter, were hard at work with the other five desperate villains; while the cadets and the second officer of the Seringapatam rushed in from the trees—all of it passing in half a minute. As I started to my feet, Foster had lifted Violet Hyde in his arms, and was dashing through the darkest of the wood with her toward the hollow; when, just as I was hard upon him, doubly to my horror, above all the screams of the ladies I could hear the wild drunken shouts of the crew below coming up from the beach like so many devils. Foster had got as far as the next opening where the rubbish of the hut was, and, no doubt catching the sound as well as myself, all at once he dropped the young lady on the grass—in a faint as she was, and her white dress stained with blood, as I thought from *herself*. "Now ye——" shouted he, turning bolt round till her moveless figure lay betwixt us, with a flourish of his cutlass, which I fancied was bloody too—"who are *you*? You'll have a dozen on ye directly, but what's meat for the skipper's meat for the passenger, so—" "Devil!" said I through my teeth, as I edged round; and Foster was in the very act of rushing at me, whether he trod on her or not, when my voice or dress seemed to strike him in the dusk. "How the bloody comfort did *you*—" said he, shrinking back for a moment; "so much the better, by G—!" and he sprang forward again right upon me, with a swinging boarder's blow at my head, which flashed off my blade with a force enough to have shivered it, had it not been a first-rate old cut-and-thrust I had tried pretty stiffly before. If I hadn't been in such a fury of rage, and a hurry at once, 'twould have been Harry's last hit; but, at the third he made, I caught him fair under it, the point going through and through his body as I thrust him back stride by stride—his cutlass waving fiercely all the time in the air clear of my head, for the stroke came under his arm. The moment he fell, though I knew nothing before that of where we were, there was a heavy plunge; I had nearly followed on top of him, as he went head-foremost down the tank-well under the trees; but next moment, without a thought more to him in the heat of the struggle, I was lifting Violet off the grass. What I did or what I

said, to see if she would revive, I don't really know; but I remember, as well as if it were last night, the very sound of her voice as she told me she wasn't hurt. The affair in the wood below us had suddenly ceased during these five or ten minutes—indeed, as I found afterwards, Jones and my party had settled every one of the five, either altogether or for the time; but the uproar of more than twenty fierce voices could be heard beyond them, cursing and yelling as they came stumbling and crashing up amongst the brushwood in a body; while the ladies and their companions struggled up from all sides toward the height, wild with terror. I met Sir Charles Hyde hurrying to seek his daughter, however; and the moment he had her in his arms, I rushed down, pistol in hand, to join my men, who were standing firm below, as the mutineers burst into the opening, no doubt with the notion they had only the cadets to do with. "Here, my lads!" I sang out; "make every man of them prisoner—down with 'em to the schooner!" And as I broke suddenly through in the starlight in the midst of them, Jones, Jacobs, the Planter, and the other four man-o'-warships sprang after me, one by one—taking the cue, and shouting as if to ever so many behind us, "Here they are, shipmates—this way—settle the blackguards!" In fact, the moment I appeared, the gang of half-drunk fellows were taken aback. One of them roared as if he saw the very devil; and giving them no time to think, we drove them scattering down toward the beach. One of Foster's party, however, being only stunned, had contrived to get down amongst them; and in a little while, seeing we didn't follow, the whole lot of them appeared to get an inkling of the truth, on which they rallied. It wasn't long ere I saw they had got desperate, and were planning to divide, and come somewhere over upon us round the heights; so that, in the dark, with our small party, not knowing their numbers, the best we could do was to gather up toward the peak, and secure the ladies. Accordingly, we passed an uncomfortable enough time during the rest of the night, till daybreak, when still no signs of the schooner, as we saw in the clear to north-eastward. Frightful notions came into my head of something having happened to her; the mutineers below were on both sides of the island, and they held the watering-place; we hadn't provisions for a single breakfast to half the party of us—and, the fellows being now fairly in for it, they could starve us out if they chose. You may conceive, accordingly, what a joyful sight met my eyes, when, on the dusk lifting off to northward, we could see the lovely craft under all sail not six miles off, bearing down before a fresh breeze for the deep end of the

island! The wind had headed her off on her way back; and, knowing nothing of the wreck, Westwood might have landed at the mercy of the villains in the bush. But the minute we saw his boat out, the whole of us, save the Judge and the Planter, made a clean charge down upon them—the schooner's men joining us with the oars and boat-stretchers; and in another half-hour the whole gang, having lost heart, were taken and lashed fast by the wrists on the beach, to a single man.

On searching the watering-place during the day, we found some one had covered the mouth of the tank with sticks and leaves, through which Harry Foster had gone when he fell. The stuff had fallen in over him; and the well being evidently made deep into the rock, to hold water the longer, with the roots of the trees growing out into it, his body never came up. Somehow or other no one liked to sound it to the bottom; but the thing that horrified all of us the most, was to find Captain Finch himself lying quite dead amongst the brushwood near where the passengers had pitched their quarters, with a cut through his skull enough to have killed an ox. It was supposed Foster had suddenly come upon him, as he and his shipmates looked out for the hoard they thought the pirates had in the island, while Finch was on guard over the ladies. Whether the fellow took a new notion at the moment, or what it was, the whole gang of them made their rush upon the second mate and the cadets, the minute after the captain met his death.

As for Jones, he told me he had noticed the dog watching the seamen below, and the idea got into his head of what might happen. There was that about the animal to give one a dread you couldn't describe. How it had lived all this time, and how the custom came back on it after growing perfectly wild, of carrying on like what it did that night, was a mystery; but Jones said he hadn't heard it bark before, neither had the man he knew of, since the time he was first left *alone* on White-water Island. In fact, the whole of us might have hunted it down before we left. But "No!" Jones said. "There's a perfect fiend in the brute, I do believe—yet it strikes me by this time, the creature belongs to—to the Almighty, sir!" The men and passengers had been taken off the Indiaman's wreck, which there was no chance of getting off the reef; so, taking out the best of her stores and the passengers' property, we had every soul aboard the schooner, and at last set sail to the south-east, meaning to go in at Madras, where a sloop might be sent to

recover more from the ship. 'Twas with no ordinary state of things, from stem to stern, that we dropped White-water Island astern.

Well, ma'am, the rest you may easily fancy. We made Madras Roads, and there I expected to lose sight of the Judge and his daughter again, as we did of most of the other passengers; but to my perfect delight, Sir Charles preferred carrying out the voyage on to Calcutta in the schooner, where they had the after-cabins to themselves. The Indiaman's crew I kept, prisoners and all, till we should meet the frigate off the Sunderbunds.

Just conceive standing up the hot Bay of Bengal with flagging south-westerly breezes, shifting at times to a brisk south-easter, or a squall, as we've done ourselves this week. The moon wasn't at the full then, of course, so we only had it like a reaper's sickle in the dog-watches; but it was fine weather, and you may imagine one sometimes contrived, betwixt Westwood and myself, to have Violet on the quarterdeck of an evening without the Judge. Tom would step forward suddenly to see a small pull taken on a sheet, and Snelling knew pretty well not to walk aft of the capstan; so I could lean over the taffrail near her, and look at the schooner's wake glimmering and sparkling up in the bubbles astern.

Then to save trouble, you need but picture to yourselves some such sort of a daybreak as we had this morning; a cool blue cloudless sky all aloft, dappled to eastward with a mighty arch, as it were, of small white spots and flakes, as a perfect sea of light flows up into it before the sun under the horizon, and a pale slanting shaft of it seems to hang gray in the yellow above him.^[26] The sea heaves deep-blue and deeper-blue under the schooner; the wide flock of small clouds burn from gold to fire; the slanting streak of light fades and vanishes, and the sun comes up like a gush of flame—sending a stream of glittering radiance along the water to our starboard bow, while it shows a long flat line of land far on the other beam. The Planter is smoking his first cheroot for that day at the stern gratings, when we make out three or four faint points over the streak of land, shining like gold in the dawn; while at the same time three hazy pillars, as it were, are seen standing up betwixt sea and sky, beyond the rippling blue in the north-eastern board. 'Tis the spires of Juggernaut pagoda on one side; and as the brisk morning breeze drives the water into short surges, till the schooner rises the ship upon the other, all of a sudden she looms square and white upon our starboard bow. As the hull lifted higher and higher under her

canvass, there was less doubt every few minutes of her being a frigate; and by the time Violet and her father were standing together on the quarterdeck, the glorious old Hebe was signalling us from her fore-royal-masthead, as she kept close on a wind to cross our course.

We spoke the pilot-brig that evening, took out the pilot, and stood up into the mouth of the Hoogly with the night-tide in the moonlight—dropping the Hebe at Diamond Harbour next day; while Lord Frederick, and a Government gentleman he had with him from St Helena, went up to Calcutta with us in the schooner. The whole of the Indiaman's late crew and officers were left in the frigate till further notice, notwithstanding which we were pretty well crowded on our way up: Westwood and I were glad of a couple of hammocks in the half deck; and, in fact, I saw little more of Violet Hyde till they went ashore opposite Fort-William.

In half-an-hour we were lying at anchor in the midst of the crowd of Indiamen, country ships, Arab craft, and all sorts of craft besides, stretching far up to the next reach; the long front of flat-topped buildings, with their green venetians and balustrades, shining white over the row of trees on the right bank, like a string of palaces spreading back through the huge mass of the city to the pale hot eastern sky—a tall cocoa-nut tree or a sharp spire breaking it here and there; while the pile of Government House was to be seen dotted with adjutant-birds; and the opposite shore showed far off in a line of green jungle, faced by a few gay-looking spots of bungalows. All the rest of the day Jones busied himself seeing all made regular and ship-shape below and aloft, in complete seaman-like style, till I began to think he had taken a fancy to the schooner, and meant to go with her and the frigate to the China seas. Next morning, however, as soon as breakfast was over in the cabin, he came to me and said that, as there was nothing more to be done at present aboard, according to our agreement he would bid us good-bye. Nothing I could say was of the least use, so at last I had to give it up. Having little money about me, however, except in bills, and intending to go ashore myself, I told him I should pay him his mate's wages at once at a banker's in the town. By the time I came on deck, Jones had hailed a dingy, and the native boatman paddled us to the ghaut below the Sailor's Home together.

I had shaken hands with him, and stood watching him from the bank verandah, as his manly figure, in the blue jacket, white duck trousers, and

straw hat, passed away down Flag Street, stepping like a seaman fresh from blue water through a stream of Hindoos in white muslin, Mussulman servants, tall-capped Armenians, Danes, Frenchmen, Chinamen, Arabs, and Parsees. Three or four Coolies with painted umbrellas were shouting and scrambling in his way, mentioning their names, salaaming, and sah'bing him to the nines; a couple of naked black boys were trying to brush his shoes in the dust; a tray of native sweetmeats seemed to be shoved every now and then under his nose; and two or three children with heads as big as pumpkins were stuck before him, their mothers begging for "buckshish! buckshish!" Jones held on like a man accustomed to every sort of foreign scenes in the world; and out of curiosity to see where he would go, I followed him for a little toward the thick of the noise and crowd, through Tank Square, where the water-carriers were sprinkling the ground from the sheep-skins on their backs as they walked, serpent-charmers and jugglers exhibiting, and a dirty Fakir rolling at the corner in seeming agony, with a crowd of liberty-men in Sunday toggery all round him. Jones looked up at the church steeping in the white heat, and across the glare of light to the city beyond, standing like a man that didn't know what to do, or hadn't seen Calcutta before; then passed carelessly by the half-slued sailors, who hailed him as if he were a ship. At length he got to the turn of a street running into the native town, where you caught a glimpse of it swarming this way and that with turbans in the close overhanging bazaars. Some Hindoo procession or other was coming along with tom-toms, gongs, tambourines, and punkahs, sweeping on through a Babel of heathenish cries and songs; a knot of dancing-girls, with red flowers in their sleek black hair, could be seen in a hackery drawn by two hump-backed bullocks; and a white Brahmin bull was poking its head amongst the heaps of fruit at a stall; whilst you heard a whole ship's crew hurraing and laughing amongst the confusion, as they drove along. Suddenly I saw Jones hail a palanquin near him, and get in. The four mud-coloured bearers took the pole of it on their shoulders, fore and aft—greasy-looking fellows, with ochre-marks on their noses and foreheads, a tuft of hair tied back on their heads like women, and as naked as they were born, save the cloth round their middle,—and next moment away they trotted, grunting and swinging the palanquin, till I lost sight of them in the hubbub. 'Twas the last I saw of Jones.

Here the Captain stopped; the Gloucester's crew were getting the anchors off her forecastle to her bows for next day, when the light-ship off the Sandheads was expected to be seen; and, from his manner and his silence together, he evidently considered the yarn at an end. "That's all then?" carelessly asked the surgeon, who was a chess-player, and had heard only this part of the Captain's adventures, and the first two, so that he appeared to perceive a slight want of connection. "All?" was the unanimous voice of the lady-passengers, most of whom had been faithful listeners,—the younger ones were obviously disappointed at something. "Why, yes," said Captain Collins, with a look which might be interpreted either as modest or "close,"—"the fact is, I fancied the affair might serve to while away a single evening or so, and here have I been yarning different nights all this time! 'Tis owing to my want of practice, no doubt, ma'am." "Come, come," said the matron of the party, "you must really give us some idea of a denouement. These girls of mine won't be satisfied without it, Captain Collins; they will think it no story at all, otherwise!"

"An end to it, you mean?" answered he. "Why, ma'am, if there were an *end* to it, it couldn't be a 'short' yarn at all—that would be to finish and 'whip' it, as we say, before it's long enough for the purpose; whereas, luckily, my life hasn't got to a close yet."

"Oh!" said the lady, no sea casuistry for *us*; besides, *I* am aware of the sequel, you know!" "Why, ma'am," answered the Captain, looking up innocently, "it wasn't for two years and a half afterwards that I—I settled, you know! Do you mean me to tell you all that happened in that time, about the Frenchman, and what befell the schooner in the China seas? 'twould last the voyage home; but if you'll go *back* with me I've no particular objection, now I've got into the way" "No no, my dear, Captain," said the lady, "we have had enough for the present of your nautical details—I beg pardon—but tell us how you succeeded in—" "Well," interrupted the narrator rather hastily, "'twas somewhat thus: I was at home at Croydon, being by that time first lieutenant of the Hebe, but she was just paid off. One morning, at breakfast, the letter-bag from the village was brought in as usual, my mother taking them out, reading off all the addresses through her spectacles, while Jane made the coffee. My mother handed Jane a ship-letter, which she put somewhere in her dress, with a blush, so that I knew in a moment it must be from Tom Westwood, who was in the Company's civil service in

India, upcountry. "None for me, mother?" asked I eagerly; for the fact was I had got one or two at different times, at Canton and the Cape of Good Hope, during the two years. "Yes, Ned," said my mother, eyeing it again and again, anxiously enough, as I thought; "there is—but I fear it is some horrid thing from those Admirals"—the Admiralty, she meant—"and they will be sending you off immediately—or a war, or something. Oh dear me, Ned," exclaimed the good woman, quite distressed, "won't you do as I wish you, and stay altogether!" By the Lord Harry! when I opened it, 'twas a letter from Lord Frederick Bury, who had succeeded to his eldest brother's title while we were out, saying he had the promise of a commandership for me, as soon as a new brig for the West India station was ready. "I shan't have to go for six or seven months at any rate, mother," said I, "by which time I shall be confounded tired of the land, I know!" She wanted me to buy a small estate near Croydon, shoot, fish, and dig, I suppose; while Jane said I ought to marry, especially as she had a girl with money in her eye for me. Still they saw it was no use, and began to give it up.

Why I never heard at all from a certain quarter, I couldn't think. Till that time, in fact, I had been as sure of her proving true as I was of breezes blowing; but now I couldn't help fancying all sorts of tyranny on the Judge's part and her mother's, not to speak of Tom's uncle, the Councillor. I went down the lane for the twentieth time, past the end of the house they had lived in, where the windows had been shuttered up and the gates close ever since I came. All of a sudden, this time, I saw there were workmen about the place, the windows open, and two servants washing down the yellow wheels of a travelling carriage. I made straight back for our house, went up to Jane, who was at her piano in the drawing-room, and asked, quite out of breath, *who* was come to the house over the park behind us. "Did you not know that old Nabob was coming back from India?" said Jane. "His face was getting too yellow, I suppose; and besides, his wife is dead—from his crossness, no doubt. But the young lady is an heiress, Ned, and as I meant to tell you, from good authority"—here the sly creature looked away into her music—"passionately fond of the sea, which means, you know, of naval officers"—"The devil she is, Jane!" I broke out; "what did Westwood mean by that?—but *when* are they coming, for heaven's sake?" "Why," said Jane, "I believe, from what I heard our gardener say, they arrived last night." "Then, by Jove, my dear girl!" said I, "I'll tell you a secret—and mind, I count on you!" My little sister was all alive in a moment, ran to the door

and shut it, then settled herself on the sofa to hear what I had to say, as eagerly as you please. So I told her what the whole matter was, with the state of things when we left Calcutta. Jane seemed to reckon the affair as clear as a die; and you've no notion what a lot of new ropes she put me up to in a concern of the kind, as well as ways to carry it out ship-shape to the end, in spite of the Judge—or else to smooth him over.

"The long and short of it was, I didn't leave till about seven months after, when the Ferret was put in commission; but by that time it was all smooth sailing before me. The Judge had got wonderfully softened; and, you may be sure, I continued to see Violet Hyde pretty often before I went to sea. You'd scarce believe it, but, after that twelve months' cruise, I actually didn't leave the land for two years, which I did owing to the chance I had of seeing sharp service in the Burmese war, up the rivers, while General Campbell had tough work with them inland. So that's all I can say, ma'am!"

"Very good, sir!" was the surgeon's cool remark. "And in fact, sir, I fancy if every one of us were to commence telling his whole life over, with everything that happened to him and his friends, he must stop short somewhere—however long it might be!" The Captain smiled; they sat on the poop talking for a while, sometimes saying nothing, but watching the last night at sea.

The pilot-brig is spoken to windward next morning, even while the deep-sea lead-line is being hove to sound the bottom. Falling sudden from the foreyard, the weight takes the long line from hand after hand back to the gangway, till it trembles against the ground. 'Tis drawn up slowly, the wet coil secured, and the bottom of the lead showing its little hollow filled with signs of earth—"Gray sand and shells!" They stand on till the pilot is on board, the low land lifts and lengthens before the ship; but the flow of the tide has yet to come, and take them safely up amongst the winding shoals into the Indian river's mouth. A new land, and the thoughts of strange new life, the gorgeous sights and fantastic realities of the mighty country of the Mogul and Rajahs, crowd before them after the wide solitary sea: the story is already all but forgotten.—AND THE ANCHOR IS LET GO!

THE FRENCH WARS OF RELIGION.^[27]

The history of the house of Guise has a natural division into two periods, of nearly equal duration, whose point of separation may be fixed at the death of Henry II., or, more strictly perhaps, at the date of the treaty of Cateau-Cambrésis, which preceded it by three months. Under Francis I. and Henry II., foreign wars engrossed much of the time and energy of the warriors, foreign diplomacy gave frequent occupation to the statesmen, of that restless and ambitious family, which, during the reigns of Francis II., Charles IX., and Henry III., was busied with civil strife, domestic intrigues, and even with disloyal and treasonable projects. The treaty above referred to—signed on the 3d April 1559, and by which France abandoned no less than one hundred and ninety-eight fortresses, including the conquests of thirty years in Piedmont—stipulated a durable alliance between the Kings of France and Spain, "who were to love each other as brothers, and labour in concert for the extinction of heresy." This was the prelude of a long peace with the foreigner, but also of a long series of intestine wars, and of more bloodshed and misery than any invasion from without would have probably occasioned. France was on the eve of the Wars of Religion. Calvinism grew daily stronger in the land, many of whose most illustrious nobles were soon included amongst its proselytes; until at last the princes of the blood themselves, jealous of the influence, power, and pretensions of the princes of Lorraine, placed themselves at the head of the Protestant party. Thus, early in the reign of that sickly and feeble prince, Francis II., *Bourbon* and *Guise* entered the lists, to struggle for the chief power in the state, and to commence, during the lifetime of four sons of Henry II., a long contest for the inheritance of the declining house of Valois. On the one side, the chief posts were occupied by Anthony of Bourbon, King of Navarre, by his brother, the Prince of Condé—far superior to him in ability, and who was the chief of the party—and by that brave and skilful soldier and commander, Gaspard de Châtillon, Admiral de Coligny. Opposed to these, the principal figures in the Protestant ranks, stood the Duke of Guise and his brothers—notably the astute, cruel, and violent cardinal, Charles of Lorraine. Catherine of Medicis, who had been allowed little interference in

public affairs during her husband's life, came forward at his death, and played a striking and important part in the strange historical drama which comprised the reigns of three of her sons. Adopting a machiavelian and unscrupulous policy, her intrigues were directed alternately to support and damage the most contrary interests; but, at the outset of her political career, her dislike to Montmorency, and her eagerness to grasp a share of the power from which he had largely contributed to her exclusion, impelled her to an alliance with the Guises, by whom it was evident that the kingdom was, for a time at least, to be virtually ruled. Her husband's body was yet above ground, when she joined them and her son at the Louvre—whither they had conducted Francis, after proclaiming him King, from his residence at the palace of the Tournelles; and scarcely had it been deposited in the vaults of St Denis, when the treaty between her and them was sealed by the sacrifice of Diane de Poitiers, whose daughter was their sister-in-law by her marriage with Claude, Marquis of Mayenne, but who, nevertheless, was driven ignominiously from court, and compelled to give up the costly jewels she had received from her royal lover, and to appease Catherine by the gift of her magnificent castle of Chenonceaux.

The circumstances of the time, and their own high connections, were singularly favourable to the Guises' assumption of the chief power. "No influence in the kingdom," says M. de Bouillé, "was comparable to that of those two men. The clergy, the richest and the first of the three orders of the state, professed an unbounded devotion for the Cardinal; in Francis of Lorraine the greater part of the nobility, military men, even magistrates, habitually recognised a skilful chief, a sure friend, a zealous protector. The Queen (Mary Stuart) was niece of the Guises; their cousin, the Duke of Lorraine, was brother-in-law of the King; the husband of another sister of Francis II., Philip of Spain, was well pleased that the royal choice had fallen upon them in preference to Anthony of Bourbon, who would not have failed to apply his power to the attempted recovery of Navarre from Spain. Finally, obligations of gratitude attached the Duke of Savoy to them. So many advantages, such numerous means of access, united with so many talents and so much glory, rendered their position very natural." The humiliation of the Bourbons was proportionate to the exaltation of their rivals. Montmorency received, from the lips of the King himself, advice to retire to his domain of Chantilly, a rustication and disgrace which left the veteran Constable no resource but to ally himself with the princes of the

blood. These were deliberating at Vendôme, with d'Andelot and their other confidential partisans, as to the means of opposing the authority of the Guise, when they received the overtures and exhortations of the Constable, who pressed and prevailed with the King of Navarre to repair to court. But slights and affronts were there offered both to him and to the Prince of Condé, and soon they were glad again to absent themselves. Within nine months of the accession of Francis, the plot known as the conspiracy of Amboise, of which Condé was the secret head, was formed, discovered, and crushed; the Duke of Guise displaying much energy and prudence, the Cardinal of Lorraine great cruelty and a most unchristian spirit, in its repression, and in the treatment of the baffled conspirators. For the third time Guise was named lieutenant-general of the kingdom, and invested with unlimited powers. The conspiracy to which he was indebted for this aggrandisement, was, however, the result of his brother's violent and persecuting spirit. The Cardinal had spurred the Huguenots to revolt. In all their proclamations, manifestos, and justificatory publications, they protested their loyalty to the King, and declared that they took arms solely against the family of Guise. It did not suit the purpose of these princes to admit the sincerity of the distinctions thus made. "What have I done to my subjects," exclaimed the feeble King, "that they should bear me such ill-will? Is it not rather to you, gentlemen, that they are opposed? I would that for a time you would depart, that we might see if these disorders ceased." The words had been suggested by the Spanish ambassador; but Francis knew not how to give them effect, and was easily cajoled by his uncles, who assured him that their absence would be the signal for attempts on his life and the lives of his brothers—attempts already planned by the Bourbons and supported by the heretics.

We pass on to the close of the short reign of Francis II., which extended over barely seventeen months. His death occurred on the 5th December 1560. The 10th of the same month was to have witnessed the execution of the Prince of Condé, condemned as traitor and heretic. But when a sudden swoon at vespers, succeeded by violent pains in the head, indicated the probable dissolution of the sickly monarch, whose constitution was already undermined by disease, Catherine de Medicis, unwilling to lose Condé, who served her as a counterpoise to the power of the Guise, took measures to delay his doom, and opened negotiations with the King of Navarre. This prince signed an agreement guaranteeing the regency to Catherine during

the minority of Charles IX. She and her council were to have the sole direction of political affairs; whilst Anthony de Bourbon, with the title of lieutenant-general, was to be military chief of the kingdom. On the other hand, Catherine brought about his reconciliation with the Guises; inducing Francis II. to declare on his death-bed that the prosecution of Condé emanated not from them, but from his will alone. At the very moment she rendered this service to the princes of Lorraine, she was plotting with Bourbon their banishment from court. It were bewildering, and indeed impossible, in a brief essay on that busy period, to trace the tortuous policy and seemingly contradictory intrigues of the Queen-mother. It suffices to state her aim, then and for long afterwards. By pitting one faction against the other, and alternately supporting both, she secured for herself a larger share of power than she would have obtained by assisting in the final triumph of either.

The death of their niece's royal husband was a great shock to the Guises, who in his name had exercised absolute authority. It was subject of rejoicing to the Protestants, who deemed it "a stroke of heavenly mercy"—a mystical expression of satisfaction, which made some suspect poison to be the cause of the King's death. For this there seems to have been no foundation. But such suspicions were the fashion of the time. Beside the bed of Francis stood Coligny, the Cardinal of Lorraine, and many other nobles. When the monarch breathed his last, "Gentlemen," said the Admiral, with his habitual earnest gravity, "the King is dead; 'tis a lesson for us how to live." He returned home with one of his intimates, named Fontaines, and fell into a profound reverie, his tooth-pick in his mouth and his feet to the fire. He did not observe that his boots were burning, until Fontaines called his attention to the fact. "Ah, Fontaines!" then replied the Admiral, "not a week ago you and I would each have given a leg for things to take this turn, and now, we get off with a pair of boots; it is cheap." Not one of the six brothers Guise followed the funeral of Francis II., whose loss they had such reason to deplore. In cutting allusion to this indecent neglect, an unknown hand affixed to the black velvet that covered the royal bier the following inscription—"*Where is Tanneguy Duchâtel? But he was a Frenchman!*" This was a chamberlain of Charles VII., who, although unjustly banished from court, had mourned his master's death, and had provided magnificently for his interment, sacrilegiously neglected by that king's own son. The inscription bore a double sting, for it both condemned the conduct

of the Guises, and stigmatised them as foreigners. In vain did they strive to justify themselves, alleging the necessity of their presence at court. And they were equally unable to refute the charge of having appropriated, during the illness of Francis, a considerable sum that remained in the royal treasury. This was done with the connivance of Catherine.

The state of affairs after the accession of Charles IX., was as follows: Condé was released from prison, the King of Navarre was in favour with the Queen-mother, the Bourbons and Guises affected mutual friendship, the Colignys and the Constable were continually at the palace; the star of the Bourbon party was in the ascendant. But those were the days of political and religious renegades, and a very short time produced wonderful changes in the composition of the two great parties. Soon we find the King of Navarre going over to the Church of Rome, and the Constable abandoning the cause of his nephews to assist at the germination of the celebrated *League*, into which the Guises and other great Catholic chiefs afterwards entered for the suppression of Protestantism, and for the overthrow of the party headed by Condé and Coligny.

It is a matter of extreme difficulty to form a correct opinion of the character of the Duke of Guise, diversely represented as it has been by the party writers of the time. M. de Bouillé has endeavoured, with patience and industry, to sift the truth from the mass of conflicting evidence; and if he is not completely successful, it is because such contradictory testimony as he has to deal with defies reconciliation. His zeal for truth leads him into researches and disquisitions through which not all of his readers perhaps will have patience to follow him, although they are doubtless essential to the completeness of a work which is eminently what the French term *un ouvrage sérieux*. With an evident desire for strict impartiality, he leans a little, as it appears to us, to the Catholic party—no unnatural bias in a writer of that religion. We, on the other hand, as Protestants, have to guard ourselves against the strong interest and sympathy inspired by the faith, the valour, and the sufferings of the French Huguenots: and we cannot but admit the justice of M. de Bouillé's conclusion, that although, amongst these, many were martyrs for religion's sake, many others assumed the Protestant badge from motives of political convenience as much as from conscientious conviction. As regards the second Duke of Guise, however, we find difficulty in always coinciding with his present historian, who

makes him out a better man than previous reading had taught us to believe him. All the three Dukes of Guise were moral giants—men of extraordinary qualities, who towered far above their cotemporaries. All three were valiant, sagacious, and skilful in no common degree; but they were also ambitious and unscrupulous—the son more so than the father, the grandson more than either. In estimating their qualities and actions, M. de Bouillé justly makes much allowance for the prevalent fanaticism of the time; but he sometimes goes too far towards the adoption of the opinions of Catholic writers, who find extenuating circumstances in the conduct of the arch-butcher, Henry of Lorraine, on the night of St Bartholomew, and who acquit his father of sanctioning that barbarous massacre at Vassy, which was the spark to the powder—the actual commencement of the wars of religion.

The little town of Vassy, adjacent to the domains of Guise, was the headquarters of a numerous Protestant congregation, whose preaching and acts of devotion "greatly scandalised," says M. de Bouillé, "the virtuous Antoinette de Bourbon, surnamed by the Huguenots, *Mother of the tyrants and enemies of the gospel*." She constantly implored the Duke, her son, to rid her of these obnoxious neighbours, which he promised to do, if it were possible without violation of the royal edicts. Upon the 1st March 1562, a journey he made in company with his wife—then with child and travelling in a litter—led him through Vassy. "His suite consisted of two hundred men-at-arms, all partaking, and even surpassing, the exalted Catholicism and warlike temper of their chief. At Vassy he was to be joined by sixty more. On arriving there, he entered the church to hear high mass; and, whether it was that the psalms of the Calvinists reached his ears, or that he was maliciously informed of their being then assembled, or that the clergy of Vassy complained and solicited the repression of outrages received from the sectarians, the fact is that he learned that their preaching was then going on. With the intention of giving them a severe admonition, he sent for their minister, and for the chief members of the congregation. His messenger was Labrosse, the son,—who was accompanied by two German pages, Schleck and Klingberg, one of whom carried his arquebuse and the other his pistols. These young men were violent in the fulfilment of their mission, and an exchange of insults was soon followed by bloodshed. At the first shots fired, the men-at-arms and the varlets, already disposed to hostilities, took part in the unequal fray. The five or six hundred Protestants, although superior in number, were far from sufficiently armed to offer an effectual

resistance. They sought to establish a barricade, and to defend themselves with sticks and stones. The Duke, who hurried to the scene of the tumult, found himself unable to repress it. Some of his gentlemen were hit; the face of Labrosse, the father, streamed with blood; Guise himself was wounded in the left cheek by a stone. At sight of his hurt, his followers' fury knew no bounds. The Protestants, overwhelmed, (*écrasés*,) uttered piercing cries; and, endeavouring to escape by all issues, even by the roof, delivered themselves to the bullets of their enemies. Anne d'Est, who was peaceably pursuing her journey, paused on hearing the sounds of strife, and sent in all haste to entreat her husband to put an end to the effusion of blood; *but the carnage lasted an hour*; sixty men and women lost their lives and two hundred were wounded. On the side of the Prince of Lorraine, some men were also more or less hurt; only one was killed."

A champion so energetic and formidable, a commander so much beloved, as the Duke of Guise, would certainly have succeeded, had he really attempted and desired to do so, in somewhat less than an hour, in checking his men-at-arms and stopping this inhuman massacre, which procured him from the Reformed party the odious nickname of *the Butcher of Vassy*. M. de Bouillé inclines to consider the slaughter on that fatal day as a sort of cruel reprisals, deplorable certainly, but in some measure extenuated by various excesses committed by the Huguenots—excesses, however, to which he but vaguely refers. It must be remembered that, at the time of the massacre of Vassy, an edict, obtained less than two months previously by the exertions and influence of Coligny and l'Hospital, and granting the Protestants liberty of conscience and free exercise of their religion, was in full force. The following passage from M. de Bouillé sufficiently shows the *animus* of Guise—"When the return of a gloomy calm suffered him to discern the sad character of such a scene, the Duke fell into a passion with Claude Tournear, captain of the town and castle of Vassy for Mary Stuart; he imputed the day's misfortunes to the toleration that officer had shown in suffering the formation of Calvinist assemblies. Tournear, in his justification, cited the edict of January; but Guise clapped his hand to his sword, 'This,' he said, 'shall rescind that detestable edict!'" When the news of the massacre reached Paris, Theodore de Bèze, deputed by the Calvinist church of the capital, presented himself before Catherine to demand severe justice on the Duke of Guise. Catherine received him well and replied favourably; When the King of Navarre, in all the fervour of his new religion

and sudden friendship for the Duke, burst out into anger against Bèze, attributing all the fault to the Protestants of Vassy, and declaring that "whoever touched as much as the finger-tip of his brother the Duke of Guise touched him in the middle of his heart." "Sire," replied Bèze, "it assuredly behoves that church of God in whose name I speak to endure blows, and not to strike them; but may it please you also to remember, that it is an anvil which has worn out many hammers." This menacing resignation was an omen of approaching calamities.

Although Anthony of Bourbon, King of Navarre, was of little value at the council-board, or in any other way than as a brave man-at-arms, his conversion and alliance were highly prized by the Catholic party, as a great diminution of the *prestige* of the Protestants. The Duke of Guise and his brothers, the Constable, and even the Spanish ambassador Chantonnay, combined to flatter and cajole the feeble prince, who on his part knew not how sufficiently to demonstrate his zeal for Popery and his love for the family of Lorraine. On Palm Sunday he marched in procession, accompanied by his new friends and by two thousand gentlemen of their party, bearing the consecrated branches from the church of St Genevieve to that of Notre-Dame. On occasion of this solemnity it has been said that the life of the Duke of Guise was in danger—some Protestant gentlemen having offered to assassinate him, if their ministers would authorise the deed in the name of religion. This authorisation was refused; the Calvinist churchmen "with greater prudence," says M. de Bouillé, "preferring to await the result of the complaint they had made with respect to the massacre of Vassy." It is hardly fair thus to insinuate that prudential considerations alone influenced this abstinence from assassination. Guise was considered, especially after the massacre of Vassy, the most dangerous foe of the Huguenot party; and more than one plan for his murder was laid prior to that which succeeded. But there is no proof that these plots were instigated by either the chiefs or the priests of the party. On the contrary, everything concurs to stamp them as proceeding solely from the religious fanaticism or violent party spirit of individuals. During the siege of Rouen—the first important operation of the war that now broke out—"the Duke of Guise," says M. de Bouillé, "was informed that an assassin had entered the camp with the project of taking his life. He sent for and calmly interrogated him—'Have you not come hither to kill me?' he said. Surprised at his detection, and trembling with apprehension of punishment, this young gentleman of Mans at once avowed

his criminal design. 'And what motive,' inquired the Duke, 'impelled you to such a deed? Have I done you any wrong?' 'No; but in so doing I should serve my religion—that is to say, the belief in the doctrine of Calvin, which I profess.' 'My religion then is better than yours,' cried Guise with a generous impulse, 'for it commands me to pardon, of my own accord, you who are convicted of guilt.' And by his orders the gentleman was safely conducted out of the camp. A fine example," exclaims M. de Bouillé, "of truly religious sentiments and magnanimous proselytism, very natural to the Duke of Guise, the most moderate and humane of the chiefs of the Catholic army; and whose brilliant generosity—true basis of the character of this great man—had been but temporarily obscured by the occurrence at Vassy!"

At this siege of Rouen, Guise performed prodigies of valour; and Anthony of Bourbon, second to none in high soldierly spirit, had his jealousy roused by the exploits of his ally. Determined also to signalise himself, he needlessly exposed his life, and was hit by an arquebuse ball. The wound was severe, and Ambrose Paré declared it mortal, in contradiction to the opinions of several other physicians, who gave hopes of cure. Ten days afterwards Rouen was taken by assault; and on learning this, the King of Navarre insisted on being carried in triumph to his quarters in the captured town. Preceded by musicians, he was borne upon his bed through the breach by a detachment of Swiss soldiers. The fatigue and excitement increased the inflammation of his wound, and hastened his death. In his last moments he showed symptoms of regretting his change of religion; but notwithstanding this tardy repentance, the Protestants, against whom since his perversion to Rome he had used great severity, rejoiced exceedingly at his death, which they celebrated as a chastisement proceeding from Heaven.

The fall of Rouen was quickly followed by the battle of Dreux, one of the most interesting actions of those wars. Condé was threatening Paris, when the Duke of Guise, following the example twice given by his father (in 1536 and 1544,) hurried from Rouen, where his troops had committed frightful excesses, but where he had successfully invoked the royal clemency in favour of the officers of the captured garrison, to give the inhabitants of the capital the benefit of his valour and skill. He there received a reinforcement of seven thousand Gascons and Spaniards; and Condé, seeing Paris so well defended, and that the chances of a general action, which he had at first been disposed to provoke, were no longer in his

favour, retreated towards Normandy to establish communications with the English, who had already sent some slight succours to the Protestants.

Guise pursued, gained a march on him, and confronted him near Dreux. The movements of the Catholics were nominally directed by the Constable, but Guise was in fact the presiding spirit. Unwilling to assume the responsibility of such a battle as appeared imminent, the Duke desired to cast it upon Catherine of Medicis, and accordingly, on the 14th December, he had sent Castlenau to that princess to know her decision. The envoy reached Vincennes at the moment of her *lever*. She affected surprise that experienced generals should send for counsel to a woman and child, whom the imminence of civil war plunged in grief. The King's nurse coming in at that moment, 'You should ask her,' said the Queen ironically, 'if battle is to be given.' And calling the woman to her—'Nurse,' she said, 'the time has come that men ask of women advice to give battle; how seems it to you?' A second messenger from the *triumvirate*^[28] pressed for a decision; the council was assembled, and left everything to the prudence and judgment of the generals. With this semi-authorisation, these took up a position in the villages adjacent to Dreux, menacing Condé's left flank. Numerically stronger than the Protestants, they had fewer cavalry, but were well posted. The main body was commanded by the Constable in person; Guise, too proud to act as second in command, remained in reserve with his own company of men-at-arms and a few volunteers who had joined him. With these five hundred picked horsemen he was prepared to strike in where his aid might most be wanted. For two hours the armies remained in mutual observation, without even a skirmish. After hearing the report of d'Andelot, who had made a reconnoissance, Condé would gladly have avoided a battle, or at least have changed the ground. "By a movement to his right he exposed his flank; the Constable wished to take advantage of this. Condé's advanced guard, under Coligny, furiously charged the Royalist centre, as it advanced under Montmorency. The Prince himself, who, with his main body, was opposed to St André and the advanced guard, neglected to attack them, but directed all his efforts against the principal mass of the Catholics, imprudently bringing all his cavalry into action, and penetrating to the very colours of the Swiss troops, who successfully withstood this terrible shock. Contrary to the advice of the Duke of Guise, who urged him to let this fury expend itself, d'Anville, with three companies of men-at-arms and the light horse, hurried to attack Condé; but soon, surrounded by the German

cavalry, he was forced to retreat upon the right wing, composed of Spanish infantry, and protected by fourteen pieces of cannon. Meanwhile the Constable opposed an energetic resistance to the attack of his nephew Coligny. In the midst of this terrible *mêlée*, Montmorency, as unfortunate as at St Quintin, had his horse killed under him; he mounted another, but the next moment, wounded in the jaw by a pistol-shot, he was taken prisoner. Around him fell his fourth son Montbérón, Beauvais, and the Sieur de Givry. The Duke of Aumale—fighting with the utmost ardour, overthrown by the fugitives, and trampled under the horses' feet—had his shoulder broken, the bone of the arm being almost uncovered, and split up to the joint, so that for six weeks he could not ride. The Grand Prior was also wounded. The entire main body, and a part of the advanced guard, (which had been disposed on the same line with the centre, or *corps de bataille*,) were totally routed; the artillery covering them was in the power of the enemy; five thousand Swiss alone still displayed a bold front. The Protestants, however, headlong in pursuit of the vanquished, outstripped these troops and reached the baggage, which they plundered, 'even that of Monsieur de Guise and his silver plate';^[29] then, reforming, they returned to the charge against the Swiss—who, frequently broken, always rallied, and at last, seeing themselves attacked on all sides by Condé's lansquenets, were no longer contented to hold their ground, but pressed forward and repulsed their assailants."

The battle seemed won, when Guise, who had remained all this time inactive, at last decided to advance. He has often been reproached for the apathy with which he had so long beheld the disasters of the Catholic army. It certainly looked very much as if he wished to requite in kind Montmorency's inaction, eight years previously, at the combat of Renty. His conduct may have been, as M. de Bouillé inclines to believe, the result of prudent calculation; and it is difficult, after this lapse of time, to prove that less caution would not have been fatal to the Catholic army. The succour that retrieved the fortune of the day came so late, however, that the victors' loss exceeded that of the vanquished. When Montmorency's son, d'Anville, beheld his brother slain and his father prisoner, he hurried to Guise—whose reserve was concealed from the enemy behind the village of Blainville and a cluster of trees—and frantically implored him to rescue the Constable by an impetuous charge. Guise refused to stir. Presently, however, when he saw that the Huguenots, disordered by success, deemed the battle completely

won, he advanced at a steady pace, rallying the fugitives, bringing up the advanced guard, and uniting with the Spaniards and Gascons. Thus supported, he moved boldly against the hostile battalions, which gave way before him. d'Andelot, whom fever kept from the field, first perceived the disastrous change in the issue of the combat. Unarmed, wrapped in a furred dressing-gown, he sprang forward to check the rout; and, observing the good order of the Duke of Guise's reserve—"Yonder," he said, "is a tail that it will be very difficult to scotch." In vain the Prince of Condé sought to rally his cavalry, paralysed by the sustained fire of eight hundred arquebusiers posted by St André. The carnage was frightful. Condé, wounded in the right hand, lost his horse, killed by a bullet; and as he was about to remount he was surrounded, and compelled to yield himself prisoner to d'Anville, who burned to revenge his father's wound and captivity. Thereupon the gallant Coligny, who had rallied fifteen or sixteen hundred horse in a little valley, returned to the charge to rescue the prince; and so terrible was his onset upon Guise's squadrons, that these wavered, and Guise himself was for a moment in great danger. But the fire of two thousand arquebusiers, posted on his flanks, covered the confusion of his cavalry, and compelled Coligny to a retreat, which was effected in good order. Night fell; Guise did not pursue; and Coligny saved a part of his artillery, but lost, in that day's action, three or four thousand men. The loss of the Catholics amounted to five or six thousand, and was particularly severe in cavalry. By a strange coincidence, the two generals-in-chief were prisoners. The conquerors had to regret the loss of several other distinguished leaders. In the closing act of this obstinately-contested fight, Marshal St André, thrown from his horse and made prisoner, was pistolled by Daubigny, a former follower of his, who had long been his bitter foe. Both the Labrosses, and Jean d'Annebaut, were also slain; and the Duke of Nevers had his thigh broken. At first it was rumoured in the Protestant army that Guise himself was killed. "Knowing," says Etienne Pasquier in one of his letters, quoted by M. de Bouillé, "that it was he at whom the Huguenots would chiefly aim, and doubting not but that his army was full of spies, upon the eve of the battle he declared publicly at supper what horse he would ride, and what would be his arms and equipment upon the following day. But the next morning, before proceeding to the rendezvous, he gave up that horse and accoutrements to his esquire. Well for him that he did so! for the esquire was killed, whilst he for a while escaped." It is recorded that the

esquire, Varicarville, solicited permission thus to devote himself for his leader's safety. The stratagem was so successful, that when Guise, late in the day, made his appearance, the Admiral and Condé were completely astonished. "Here, then, is the cunning fellow whose shadow we have pursued," exclaimed Coligny. "We are lost; the victory will slip from our hands."—"The day's success came most apropos to M. de Guise," wrote Pasquier, "for of one defeat he made two victories; the captivity of the Constable, his rival in renown, not being less advantageous to him than that of the Prince, his open foe." Whilst Coligny marched off his uncle and prisoner to Orleans, to place him in the hands of the Princess of Condé, Guise, with characteristic magnanimity, courteously and kindly received his inveterate enemy, the Prince. Quartered in Blainville, which the Huguenots had devastated, and deprived of his baggage, he could command but a single bed, which he offered to Condé, with other marks of deference for the first prince of the blood. Touched by his conqueror's generosity, Condé momentarily forgot his hatred; supped at Guise's table—freely discussed with him the basis of a peace, of whose conclusion the presumed destruction of his party made him desirous—and finally accepted the proffered couch, only on condition that the Duke should share it with him.

The news of the victory of Dreux was received at Paris with transports of joy, and once more the name of "saviour of his country" was applied to Guise. The alarm in the capital had been very great, and not without reason. "If this battle had been lost," wrote Montluc in his *Commentaries*, "I believe it was all over with France: both the state and the religion would have been changed; for a young king may be made to do anything." The satisfaction of Catherine de Medicis was by no means unalloyed. She did not like Condé; but his defeat destroyed the equilibrium which she had hitherto so carefully maintained, to the benefit of her own influence. She now felt herself under the pressure of a power, moderate in form but absolute in fact. There was no help for it, however; neither, in the absence of the Constable, was there any excuse for withholding the chief command from the Duke of Guise, who was accordingly appointed lieutenant-general of the kingdom. He did not long enjoy his new dignity. The battle of Dreux was fought on the 19th December. Just two months later, on the night of the 18th February, Guise—after arranging everything for the assault of Orleans upon the following day, and announcing to the Queen-mother his conviction of approaching triumph—left the camp on horseback, accompanied only by one of his officers and

a page, to visit the Duchess, who had that day reached the neighbouring castle of Corney. "He had crossed the Loiret in a boat, and was walking his horse, when, at a cross-road, he felt himself wounded in the right shoulder, almost under the arm, by a pistol-shot fired behind a hedge, from between two great walnut trees, at a distance of only six or seven paces. Notwithstanding the darkness, a white plume he wore upon his head signalised him; and as, for the sake of ease, he had taken off his cuirass at evening, those bullets, aimed just above the armour which the assassin believed him to wear, passed through his body. 'They have long had this shot in reserve for me,' exclaimed he, on feeling himself wounded; 'I deserve it for my want of precaution.' Unable to support himself for pain, he fell on his horse's neck; in vain he endeavoured to draw his sword: his arm refused its service. Carried to his quarters, he was welcomed by the cries of the Duchess of Guise, whom he embraced and told her himself the circumstances of his assassination, by which he declared himself grieved for the honour of France. He exhorted his wife to submit with resignation to the will of heaven; then, covering with kisses the Prince of Joinville, who was weeping, he said to him, gently, 'God grant thee grace, my son, to be a good man!'" Poltrot de Méré, the assassin, escaped for the moment, although promptly pursued; but he lost his way in the darkness, and after riding ten leagues, found himself at daybreak close to the Catholic cantonments. Worn out with fatigue, as was also his horse—a good Spanish charger, for whose purchase he had received a hundred crowns from Coligny—he hid himself in a farm, and was there arrested, on the 20th February, by the Duke's secretary, La Seurre. The gift of the hundred crowns has been alleged against the Admiral as a proof of his having instigated the crime; but, in fact, it was no proof at all, for Poltrot had been acting as a secret agent and spy to the Huguenots, and might very well receive that sum, as he had previously received a smaller one, as guerdon for the information he brought. He himself, on his examination, declared he had been urged to the deed by Coligny, Theodore de Bèze, and another Protestant minister; but he could adduce no proof, save that of one hundred and twenty crowns received from Coligny, to whom he had been recommended, as a useful agent, by a Huguenot leader in eastern France. And his previous life rendered his bare assertion worthless, whilst the high character of the men he impeached raised them above suspicion—in the eyes of unprejudiced persons—of having instigated so foul a deed. They

addressed a letter to the Queen-mother, repelling the charge, and entreating that Poltrot's life might be spared until peace should be concluded, when they would confront him and refute his testimony. Coligny declared that he had even discountenanced such plots, and referred to a warning he had given the Duke, only a few days previously, "to be on his guard, for there was a man suborned to kill him." At the same time he repudiated all regret for the Duke's death, which he declared the best thing that could have happened for the kingdom and for the church of God. But, to his dying day, he protested his innocence of the blood of Guise; and his life and character give weight and credibility to the protest. M. de Bouillé makes some judicious reflections as to the share Catherine of Medicis may have had in instigating the murder. Her jealousy and distrust of the Guises were very strong: she had opposed the siege of Orleans, and thrown obstacles in the way of its successful issue; she had hastened the execution of the murderer, as soon as he had accused the Admiral of complicity. We are certainly doing no injustice to the character of that most corrupt and crafty queen, when we assume the possibility that hopes of a mitigated punishment, or of means of escape, had been held out to induce Poltrot to depone against the Admiral; and that then, the deposition obtained, the pledge to the unhappy wretch was broken, and the murderer's doom inflicted. Such double treachery was quite in concord with Catherine's character. She felt that suspicions would attach to her, and endeavoured to stifle them by a display of profound grief, by loading with favours the family of the victim, and by a promise of severe and full measure of justice.

The death of Francis of Lorraine (on Ash Wednesday, 24th February 1563,) was the immediate cause of a treaty of peace between Catholics and Protestants, for which the Queen-mother had for some time been paving the way. On a small island in the middle of the Loire, near Orleans, the two illustrious captives, Condé and the Constable, met, each under strong escort; and terms were agreed upon, the principal of which were a general amnesty, and freedom of conscience and worship, under certain restrictions of place, for the Huguenots. All prisoners were released on both sides; and Orleans, which had so nearly shared the fate of Rouen, opened its gates to the King and Queen-mother, who were to take possession of it without any marks of triumph.

"On the eve of the tournament in which Henry II. was mortally wounded by Montgomery, that king held upon his knees his little daughter Margaret, afterwards wife of Henry IV. Diverted by the repartees of the child, who already gave promise of great wit and understanding, and seeing the Prince of Joinville, and the Marquis of Beaupréau, (son of the Prince of La Roche-sur-Yon,) playing together in the room, the King asked Margaret which of the two she liked best. 'I prefer the Marquis,' she replied, 'he is gentler and better.' 'Yes,' said the King, 'but Joinville is handsomest.' 'Oh,' retorted Margaret, 'he is always in mischief, and *will* be master everywhere.' Joinville was but nine years old, and Margaret was only seven, but she had already deciphered the character of the man whose ambition set all France in a flame." A prediction of Francis of Lorraine, recorded by M. de Bouillé, confirmed that of the precocious princess. Observant of his son's character, from infancy upwards, he is said to have foretold that, carried away and dazzled by popularity and its vain promises, he would perish in an attempt to upset the kingdom. The event may fairly be said to have justified the prophecy. Henry, third Duke of Guise, fell by his ambition. "Inferior to his father as a warrior," says M. de Bouillé, "he perhaps surpassed all the princes of his house in certain natural gifts, in certain talents, which procured him the respect of the court, the affection of the people, but which, nevertheless, were tarnished by a singular alloy of great faults and unlimited ambition." The historian proceeds to give a glowing description of his beauty, accomplishments, and seductive qualities. "France was mad about that man," wrote Balzac, "for it is too little to say she was in love with him. Her passion approached idolatry. There were persons who invoked him in their prayers, others who inserted his portrait in their books. His portrait, indeed, was everywhere: some ran after him in the streets to touch his mantle with their rosaries; and one day that he entered Paris by the Porte St Antoine, on his return from a journey to Champagne, they not only cried *Vive Guise!* but many sang on his passage: *Hosanna filio David!* Large assemblies were known to yield themselves at once captive to his pleasant countenance. No heart could resist that face; it persuaded before he opened his mouth; it was impossible to wish him harm in his presence.... And Huguenots belonged to the League when they beheld the Duke of Guise." Although but thirteen years old, at his father's death, Henry of Lorraine had accompanied him in his recent campaigns, and at the siege of Orleans had had opportunity to show symptoms of that cool intrepidity for which he was

afterwards remarkable. Profound dissimulation was another leading and early-developed feature of his character; and in this respect he had before him a first-rate model in the person of his uncle, the crafty and unscrupulous Cardinal of Lorraine.

This prelate, who was rather violent than brave, was profoundly grieved and alarmed by his brother's assassination, news of which reached him at the Council of Trent. On receiving the sad intelligence, he fell on his knees, and, lifting his hands and eyes to heaven: "Lord," he exclaimed, "you have deprived the innocent brother of life, and left it to the guilty!"—a cry of conscience, in which there was not a little truth. He immediately surrounded himself with a guard. In a letter, of which he took care to have copies handed about, he announced to his mother his resolution to retire to his diocese, and pass the rest of his days in preaching the word of God. Nevertheless he did not quit the Council, where his weight, however, was somewhat lessened by the Duke's death. But he recovered his ground, and finally exercised a most important influence on its deliberations. On his return to France, he obtained permission to retain his guard, consisting of fifty arquebusiers, who never left him, accompanying him to church, when he preached or said mass, and even conducting him to the door of the King's cabinet. For nearly a year after his return from Italy, however, he kept aloof from the capital and from public affairs, dividing his time between Rheims and Joinville, but still secretly carrying on his complicated intrigues. At last, on the 8th January 1565, he entered Paris with a considerable escort, and in a sort of triumph, accompanied by his young nephews, the Duke of Guise and the Marquis of Mayenne, and by a number of knights, presidents, and gentlemen. Marshal Montmorency (son of the Constable), who was now intimate with his cousin Coligny, and ill-disposed to the Guises, was Governor of the Isle of France, and had published, "on the 13th December, a royal ordinance, which, in a spirit of precaution indispensable in those troubled times, forbade all princes, nobles, or persons whatsoever, to travel with an armed retinue. The Cardinal had a dispensation from the Queen-mother, but he either disdained or neglected to present it to Montmorency. The Marshal was most probably aware of its existence, but he ignored it, and sent word to the Cardinal not to pursue his journey with a forbidden escort. The Cardinal, considering this injunction an affront, heeded it not, and was close to his journey's end, when he was encountered in the streets of Paris, (Rue St Denis), by a body of infantry and cavalry of both religions,

under the orders of Montmorency and of the Prince of Portien, who charged and routed his escort; and he himself was compelled to seek safety in the humble dwelling of a rope-maker, dragging with him his nephews, of whom the eldest especially, a pistol in either hand, refused to quit the combat, unequal as it was, and, by recalling his father's memory to the Parisians, already acquired personal partisans. A faithful follower, who would have shut the door upon them, was mortally wounded by the balls which struck the very threshold of the room in which the Princes of Lorraine had taken refuge. '*Seigneur, mon Dieu!*' cried the Cardinal, in this imminent peril, 'if my hour is come, and the power of darkness, spare at least the innocent blood!' Meanwhile the Duke of Aumale, who had entered by the gate of the Louvre, created a diversion, which contributed to appease the tumult of the Rue St Denis; and under cover of night, the prelate, with his nephews and suite, was able to reach his *hôtel de Cluny*."

It was in 1565 that the consideration of the formidable results obtained by the close union of the Protestants, numerically weak, suggested to the Cardinal de Lorraine, and a number of Catholic nobleman, the idea of a counter-association on a grand scale, (the germ of this dated from some years previously), to be composed of prelates, gentlemen, magistrates, and of burgesses and other members of the third estate, for the purpose of acting with promptitude and independence, without awaiting the orders or the uncertain and tardy succours of Government. This was the association known in history as the League. At the end of the following year the young Duke of Guise, who had been campaigning with the Emperor Maximilian against the Turks, returned to France, just in time to see the curtain lifted for the bloody drama of a new civil war. Already Huguenots and Catholics were in mutual observation of each other. The former first assumed the offensive. Alarmed by movements of troops, fresh levies, and other menacing indications, they laid a plan to carry off Charles IX. then at his hunting-seat of Monceaux, near Meaux. Once in their hands, they calculated on making the young King the nominal chief of their party. But the plot was betrayed, and recoiled upon its advisers by exciting against them the implacable hatred of its object. "With even more oaths than were necessary," says an old writer, the King exhaled his wrath, and vowed vengeance against the Huguenots, from whom, however, he was for the moment compelled to fly. Escorted by six thousand Swiss, and by such other troops as could hastily be assembled, he took the road to Paris, hard

pressed for seven hours by Condé and the Admiral. But the Protestant squadrons were unable to break the stern array of the Swiss; on the second day d'Aumale, with several hundred well-armed gentlemen, came out from Paris to swell the royal escort; and Charles entered his capital in safety, furious at the rebels, and well-disposed to proceed against them to any extremities the Guises might suggest. The anger of this family was greatly roused by a trap laid, two days later, for the Cardinal of Lorraine, who only escaped by quitting his carriage and mounting a fleet horse, (some say that he had even to run a long way on foot,) with loss of his plate and equipage.

Shut up in Paris, Charles IX. beheld the Huguenots almost at its gates, intercepting supplies and burning the flour-mills. At last, d'Andelot and Montgomery having marched towards Poissy, to oppose the passage of a Spanish auxiliary corps, Condé and Coligny, with fifteen hundred horse and eighteen hundred indifferently equipped infantry, without artillery,^[30] were attacked by the Constable at the head of twelve thousand infantry, three thousand horse, and fourteen guns. There ensued the brief but glorious battle of St Denis, in which Montmorency was slain, and the Protestants, opposed to five times their numbers, held victory in their grasp, when d'Aumale, seeing them disordered by success, moved up with a body of picked men, whom he had kept in reserve, (as his brother Francis had done at the battle of Dreux,) rallied the fugitives, saved the Swiss from total defeat, rescued the body of the Constable, and compelled Condé to retreat. The laurels of the day, however, were unquestionably for the Huguenots, notwithstanding that they abandoned the field; and the next day they again offered battle to the royal army, but it was not accepted. Then Condé, short of provisions and weakened by the action, retired towards Lorraine, and effected his junction with an auxiliary corps of twelve thousand men which came to him from Germany. There ensued a short and hollow peace, which were better named an imperfectly-observed truce, and which did not preclude persecution of the Protestants; and then war again broke out, with the Duke of Anjou, (afterwards Henry III.) at the head of the royal armies. The first action of this, the third civil war, took place in the Perigord, and is known as the combat of Mouvans—the name of one of the leaders who was killed. He and another Huguenot gentleman were bringing up several thousand men to join the Prince of Condé, when they were attacked, and routed with great loss, by twelve hundred cavalry under the Duke of Montpensier. In this affair the young Duke of Guise greatly distinguished

himself, by an impetuous and opportune charge on the main body of the enemy's infantry. Next came the fatal battle of Jarnac—fatal, that is to say, to the Protestants, who lost in it, or rather after it, by a felon-shot, their gallant leader Condé. Against overwhelming numbers, his right arm broken by a fall, wounded in the leg by the kick of a horse, dismounted and unable to stand, that heroic prince, one knee upon the ground, still obstinately defended himself. "The Catholics who surrounded him, respecting so much courage, ceased to attack, and urged him to give up his sword. He had already consented to do so,^[31] his quality of prisoner ought to have protected him, when Montesquiou, captain of the Swiss guard of the Duke of Anjou, came up—with secret orders, it is supposed—and sent a pistol-ball through his head. Thus undisguised did the fury and hatred engendered by civil discord then exhibit themselves. At the close of this same fight, and at no great distance from the spot where Condé perished, Robert Stuart was also made prisoner; and Honorat de Savoie, Count de Villars, obtained permission, by dint of entreaty, to kill him with his own hand, in expiation of the blow by which this Scot was accused of having mortally wounded the Constable of Montmorency at the battle of St Denis. But even such barbarity as this did not suffice, and to it were added cowardly outrages and ignoble jests. The dead body of Condé was derisively placed upon an ass, and followed the Duke of Anjou upon his triumphant entrance into Jarnac, and was there laid upon a stone, at the door of the quarters of the King's brother; whilst religious fury scrupled not to justify by sarcasm the indignity of such acts."^[32]

Greatly discouraged by the reverse of Jarnac, and by the loss of their leader, the Protestant party presently had their hopes revived by promised succours from Elizabeth of England, and from various German princes. Coligny—now the real head of the party, whose titular chiefs were Henry of Béarn and his young cousin Condé—was joined by twelve thousand Germans, under Duke Wolfgang of Zweibrucken. On the other hand, the Catholic army was weakened by sickness and desertions, by the want of discipline amongst the Swiss troops and German *reiters*, chiefly composing it, and by discord between its generals. The Guises were displeased at being commanded by the Duke of Anjou, who, in spite of his extreme youth, had displayed valour, decision, and military talents, whose promise was not fulfilled by his ignoble reign as Henry III.

The siege of Poitiers cost the Protestant army much time and many men. After the most vigorous efforts for its capture, Coligny retired from before the town—which had been admirably defended, and owed its safety less to a diversion made by the Duke of Anjou, (who menaced Chatellerault) than to the great valour and activity of the Duke of Guise, recalling, on a smaller scale, the glorious defence of Metz by his father. Five breaches had been made in the walls, but the most determined assaults were steadily and successfully repulsed. Of the garrison, one-third perished, and the loss of the besiegers was very heavy. On the 9th September, Guise and his brother Mayenne left the town, at the head of fifteen hundred horse, and, after making a report of their triumph to the Duke of Anjou, proceeded to Tours, where Charles IX. received them with many caresses and flattering words. Four days later, the Parliament of Paris proclaimed the ex-Admiral Coligny a traitor, condemned him to death, and offered fifty thousand gold crowns to whomsoever should deliver him up alive. A few days afterwards the same sum was offered for his head; and the Guises had the proclamation translated into seven languages, and circulated throughout Europe. Then came the bloody battle of Moncontour, where eighteen thousand men under Coligny were beaten, with very heavy loss, by the Duke of Anjou's army of twenty-five thousand. It began with a long cannonade, quickly succeeded by a combat at close quarters, in which even the generals-in-chief were personally engaged. "The Duke of Anjou had his horse killed under him, but was rescued by d'Aumale; Coligny was wounded in the face, and lost four teeth; Guise was badly hurt by a ball in the foot: Mayenne distinguished himself at his brother's side." After an hour's deadly struggle, the Huguenots were beaten at all points. There was a terrible massacre of them; three thousand prisoners were made, and five hundred German horse passed over to the conquerors. This was a grievous blow for the Protestant party. Coligny, however, and the princes, shut themselves up in La Rochelle, and had leisure to look around them and organise their remaining forces, whilst the Duke of Anjou wasted his time in the siege of some unimportant places, and the Duke of Guise was laid up with his wound, which was long of healing. The state of the kingdom of France, exhausted by these repeated wars, was deplorable. Coligny, bold and active, made long marches southwards, collecting reinforcements and supplies, and finally reaching Burgundy, and getting the advantage in an encounter with the King's army, under Marshal de Cossé, at Arnay le Duc. In short, he had

the road open to Paris. These considerations made Charles IX. anxious for peace; which, after some negotiation, was concluded at St Germain-en-Laye, in August 1570, on terms so favourable to the Huguenots—who, says Montluc, in his *Commentaries*, always had the best of it when it came to those *diabes d'escritures*—that Pope Pius V. wrote to the Cardinal de Lorraine to express his violent disapproval.

As had more than once already been the case, the return of peace was quickly followed by the marked diminution of the influence of the house of Guise. The Duke of Anjou cherished an instinctive hatred and jealousy of Henry of Lorraine; whilst the Cardinal had incurred the displeasure of the Queen-mother, who, as well as Charles IX., had previously been greatly angered by the presumption of the Duke of Guise in aspiring to the hand of her daughter Margaret. At one time, so furiously chafed was the King's naturally violent temper by the pretensions of the Guise party—against whom his brother Anjou lost no opportunity of irritating him—that he actually resolved on the immediate death of the young Duke of Guise, who only escaped through the timidity and indecision of Henry of Angoulême, the King's bastard brother—commissioned to make an end of him at a hunting party—and through warnings given him, it is said, by Margaret herself. The Montmorencys, cousins of the Colignys, seemed to have succeeded to the influence the Guises had lost: the Marshal and his brother d'Anville governed the Queen-mother; and so fierce was the animosity between the rival families, that Guise and Méru, brother of Marshal Montmorency, openly quarrelled in the King's Chamber, and, on leaving the palace, exchanged a challenge, whose consequences persons sent expressly by Charles IX. had great difficulty in averting. In short, during the year 1571, "no more was heard of the Cardinal of Lorraine than if he had been dead; nor was anything known about the Guises, except that they had celebrated at Joinville the birth of a son to the Duke," who had married, in the previous year, Catherine of Cleves, widow of the Prince de Portien.

The apparent favour of the Admiral de Coligny, the return to Paris of the Guises, the seeming fusion of the two great parties that had so long distracted France, were preludes to the massacre of St Bartholomew. In narrating the strange and important events that crowded the year 1572, M. de Bouillé lays bare the vile qualities of Charles IX., his cold-blooded cruelty, his odious treachery, and the powers of profound dissimulation he

had inherited from his mother. One anecdote, extracted from Fornier's MS. History of the House of Guise, is extremely characteristic. The King, whilst loading Coligny with marks of confidence and favour, hinted darkly to the Guises the existence of some sinister plot, urging them to take patience, because, as he said to the Duke d'Aumale, *bientôt il verroit quelque bon jeu*. It happened one day that "the King was alone in his chamber with Henry of Lorraine, both gaily disposed; the latter had seized a headless pike, used to shut the upper shutters of the window, and was amusing Charles IX. by the extraordinary dexterity with which he wielded this weapon, when Coligny unexpectedly entered. The King felt that the abrupt interruption of their play, on his appearance, might excite the Admiral's suspicions. Suddenly, therefore, he feigned violent displeasure; accused the Duke of having insolently waved the pole close to his face, and, seizing a boar-spear that stood by his bed, pursued Guise, who, as if the better to escape, ran, it is said, into the apartments of Margaret de Valois. Charles snatched the Admiral's sword to pursue the fugitive; and Coligny, deceived by this well-acted anger, interceded to obtain the pardon of the heedless young Prince of Lorraine."

There is no particular novelty in M. de Bouillé's account of the massacre of St Bartholomew. We cannot compliment him on the guarded manner in which he condemns his hero for his participation in that monster murder—an episode that would have sufficed to brand with eternal infamy a far greater and better man than Henry of Lorraine. Compelled to admit that the whole direction and combination of the massacre was intrusted to, and joyfully undertaken by, the Duke of Guise—that he was privy to and approving of Maurevel's previous attempt to assassinate Coligny, and that he afterwards stood under the Admiral's window whilst the Wurtemburger Besme, and others of his creatures, stabbed the wounded Protestant as he rose defenceless from his couch—M. de Bouillé informs us that, on quitting the place of his enemy's murder, whilst the most barbarous scenes were on all sides enacting—the consequence of the completeness and skill of his own preparations—Guise was *seized with compassion*, and had "the good thought to save many innocent victims, women, children, and even men," by sheltering them in his hotel. On the other hand, "those whom the Prince considered as factious, or as adherents of such—in a word, his political adversaries rather than heretics—found little pity at his hands." And he was proceeding "to carry death into the faubourg St Germain, and to seek there

Montgomery, the Vidame de Chartres, and a hundred Protestant gentlemen whom prudence had prevented from lodging near the Admiral." The compassionate intentions of Guise towards these five score Huguenots and "political adversaries," could be so little doubtful, that it was certainly most fortunate for them that a friend swam the Seine and gave them warning, whilst a mistake about keys delayed the Duke's passage through the gate of Bussy. They escaped, pursued to some distance from Paris by Guise and his escort. On his return, the massacre was at its height. "Less pitiless than any of the other Catholic chiefs, he had opened in his own dwelling an asylum to more than a hundred Protestant gentlemen, *of whom he thought he should be able afterwards to make partisans.*" His compassion, then, had not the merit of disinterestedness. Similar selfish considerations induced others of the assassins to rescue others of the doomed. It will be remembered, that Ambrose Paré found shelter and protection in the palace, from whose windows Charles IX., arquebuse in hand, is said to have amused himself by picking off the wretched Protestants, as they scudded through the streets with the blood-hounds at their heels. But all the skill of the Huguenot leech was insufficient, a few months later, to preserve that perfidious and cruel monarch from a death whose strange and horrible character was considered by many to be a token of God's displeasure at the oceans of blood he had so inhumanly caused to flow. Charles IX. was preceded and followed to the grave, at short intervals, by an active sharer in the massacre, the Duke of Aumale, and by one of its most vehement instigators and approvers, Charles, Cardinal of Lorraine, both uncles of the Duke, and notable members of the house of Guise. The change of religion of Henry of Navarre and of the young Prince of Condé, the siege of Rochelle, the conclusion of peace with the Protestants, and the accession of Henry III. to the throne of France, are the other important events that bring us to the end of the second volume of M. de Bouillé's interesting history.

A WILD-FLOWER GARLAND. BY DELTA.

THE DAISY.

I.

The Daisy blossoms on the rocks,
Amid the purple heath;
It blossoms on the river's banks,
That thrids the glens beneath:
The eagle, at his pride of place,
Beholds it by his nest;
And, in the mead, it cushions soft
The lark's descending breast.

II.

Before the cuckoo, earliest spring
Its silver circlet knows,
When greening buds begin to swell,
And zephyr melts the snows;
And, when December's breezes howl
Along the moorlands bare,
And only blooms the Christmas rose,
The Daisy still is there!

III.

Samaritan of flowers! to it
All races are alike,
The Switzer on his glacier height,—
The Dutchman by his dyke,—
The seal-skin vested Esquimaux,
Begirt with icy seas,—
And, underneath his burning noon,
The parasol'd Chinese.

IV.

The emigrant on distant shore,
Mid scenes and faces strange,
Beholds it flowering in the sward,
Where'er his footsteps range;
And when his yearning, home-sick heart
Would bow to its despair,
It reads his eye a lesson sage—
That God is everywhere!

V.

Stars are the Daisies that begem
The blue fields of the sky,
Beheld by all, and everywhere,
Bright prototypes on high:—
Bloom on, then, unpretending flowers!
And to the waverer be
An emblem of St Paul's content,
St Stephen's constancy.

THE WHITE ROSE.

I.

Rose of the desert! thou art to me
An emblem of stainless purity,—
Of those who, keeping their garments white,
Walk on through life with steps aright.

II.

Thy fragrance breathes of the fields above,
Whose soil and air are faith and love;
And where, by the murmur of silver springs,
The Cherubim fold their snow-white wings;—

III.

Where those who were severed re-meet in joy,
Which death can never more destroy;
Where scenes without, and where souls within,

Are blanched from taint and touch of sin;—

IV.

Where speech is music, and breath is balm;
And broods an everlasting calm;
And flowers wither not, as in worlds like this;
And hope is swallowed in perfect bliss;—

V.

Where all is peaceful, for all is pure;
And all is lovely; and all endure;
And day is endless, and ever bright;
And no more sea is, and no more night;—

VI.

Where round the throne, in hues like thine,
The raiments of the ransom'd shine;
And o'er each brow a halo glows
Of glory, like the pure White Rose!

THE SWEET BRIAR.

I.

The Sweet Briar flowering,
With boughs embowering,
Beside the willow-tufted stream,
In its soft, red bloom,
And its wild perfume,
Brings back the past like a sunny dream!

II.

Methinks, in childhood,
Beside the wildwood
I lie, and listen the blackbird's song,
Mid the evening calm,
As the Sweet Briar's balm
On the gentle west wind breathes along—

III.

To speak of meadows,
And palm-tree shadows,
And bee-hive cones, and a thymy hill,
And greenwood mazes,
And greensward daisies,
And a foamy stream, and a clacking mill.

IV.

Still the heart rejoices,
At the happy voices
Of children, singing amid their play;
While swallows twittering,
And waters glittering,
Make earth an Eden at close of day.

V.

In sequestered places,
Departed faces,
Return and smile as of yore they smiled;
When, with trifles blest,
Each buoyant breast
Held the trusting heart of a little child.

VI.

The future never
Again can ever
The perished gifts of the past restore,
Nor, to thee or me,
Can the wild flowers be
What the Briar was then—oh never more!

THE WALL-FLOWER.

I.

The Wall-flower—the Wall-flower,
How beautiful it blooms!

It gleams above the ruined tower,
Like sunlight over tombs;
It sheds a halo of repose
Around the wrecks of time.
To beauty give the flaunting rose,
The Wall-flower is sublime.

II.

Flower of the solitary place!
Gray ruin's golden crown,
That lendest melancholy grace
To haunts of old renown;
Thou mantlest o'er the battlement,
By strife or storm decayed;
And fillest up each envious rent
Time's canker-tooth hath made.

III.

Thy roots outspread the ramparts o'er,
Where, in war's stormy day,
Percy or Douglas ranged of yore
Their ranks in grim array;
The clangour of the field is fled,
The beacon on the hill
No more through midnight blazes red,
But thou art blooming still!

IV.

Whither hath fled the choral band
That filled the Abbey's nave?
Yon dark sepulchral yew-trees stand
O'er many a level grave.
In the belfry's crevices, the dove
Her young brood nurseth well,
While thou, lone flower! dost shed above
A sweet decaying smell.

V.

In the season of the tulip-cup
When blossoms clothe the trees,
How sweet to throw the lattice up,
And scent thee on the breeze;
The butterfly is then abroad,
The bee is on the wing,
And on the hawthorn by the road
The linnets sit and sing.

VI.

Sweet Wall-flower—sweet Wall-flower!
Thou conjurest up to me,
Full many a soft and sunny hour
Of boyhood's thoughtless glee;
When joy from out the daisies grew,
In woodland pastures green,
And summer skies were far more blue,
Than since they e'er have been.

VII.

Now autumn's pensive voice is heard
Amid the yellow bowers,
The robin is the regal bird,
And thou the queen of flowers!
He sings on the laburnum trees,
Amid the twilight dim,
And Araby ne'er gave the breeze
Such scents, as thou to him.

VIII.

Rich is the pink, the lily gay,
The rose is summer's guest;
Bland are thy charms when these decay,
Of flowers—first, last, and best!
There may be gaudier on the bower,
And statelier on the tree,
But Wall-flower—loved Wall-flower,

Thou art the flower for me!



THE MASQUERADE OF FREEDOM.

I.

When Freedom first appeared beneath,
 Right simple was the garb she wore:
Her brows were circled with a wreath
 Such as the Grecian victors bore:
Her vesture all of spotless white,
 Her aspect stately and serene;
And so she moved in all men's sight
 As lovely as a Maiden Queen.

II.

And queenlike, long she ruled the throng,
 As ancient records truly tell;
Their strength she took not from the strong,
 But taught them how to use it well.
Her presence graced the peasant's floor
 As freely as the noble's hall:
And aye the humbler was the door,
 The still more welcome was her call.

III.

But simple manners rarely range
 Beyond the simpler ages' ken:
And e'en the Virtues sometimes change
 Their vesture and their looks, like men.
Pride, noble once, grows close and vain,
 And Honour stoops to vulgar things,
And old Obedience slacks the rein,
 And murmurs at the rule of kings.

IV.

So Freedom, like her sisters too,
 Has felt the impulse of the time,

Has changed her garments' blameless hue,
And donn'd the colours dear to crime
First in a Phrygian cap she stalked,
And bore within her grasp the spear;
And ever, when abroad she walk'd,
Men knew Revenge was following near.

V.

She moves again—The death-drums roll,
The frantic mobs their chorus raise,
The thunder of the Carmagnole—
The war-chant of the Marseillaise'
Red run the streets with blameless blood—
The guillotine comes clanking down—
And Freedom, in her drunken mood,
Can witness all without a frown.

VI.

Times change again: and Freedom now,
Though scarcely yet less wild and frantic,
Appears, before men's eyes below,
In guises more intensely antic.
No single kind of garb she wears,
As o'er the earth she goes crusading;
But shifts her habit and her airs
Like Joe Grimaldi masquerading.

VII.

Through Paris you may see her tread,
The cynosure of all beholders;
A *bonnet rouge* upon her head,
A ragged blouse upon her shoulders.
More decent now than once she was,
Though equally opposed to riches,
She still upholds the good old cause,
Yet condescends to wear the breeches.

VIII.

The Huns behold her as of yore,
 With grisly beard and monstrous swagger;
The swart Italian bows before
 The Goddess with the mask and dagger.
The German, as his patriot thirst
 With beer Bavarian he assuages,
Surveys her image, as at first
 'Twas pictured in the Middle Ages.

IX.

Her glorious form appears to him
 In all its pristine pomp and glitter,
Equipped complete from head to heel,
 In semblance of a stalwart Ritter.
With doublet slash, and fierce moustache,
 And wrinkled boots of russet leather,
And hose and belt, with hat of felt
 Surmounted by a capon's feather.

X.

Mysterious as Egyptian Sphinx,
 A perfect riddle—who can solve her?
One while she comes with blazing links,
 The next, she's armed with a revolver.
Across the main, whene'er the shoe
 Upon her radiant instep pinches,
To-day, she'll tar and feather you;
 To-morrow, and she merely Lynches.

XI.

While thus abroad, in varied guise,
 We see the fair enchantress flitting,
She deigns to greet in other wise
 Her latest satellites in Britain.
Sometimes, in black dissenting cloth,
 She figures like an undertaker;
And sometimes plunges, nothing loath,

Into the garments of a Quaker.

XII.

You'll find her recommending pikes
At many a crowded Chartist meeting,
Where gentlemen, like William Sykes,
To exiled patriots vote their greeting.
You'll find her also with her friends,
Engaged upon a bloody errand,
When, stead of arguments, she sends
Her bludgeoneers to silence Ferrand.

XIII.

You'll find her too, at different dates,
With men of peace on platforms many,
Denouncing loans to foreign states
Whereof they could not raise a penny.
In short, to end the catalogue,
There's hardly any son of Edom
Who, in his character of rogue,
Won't tell you that he worships Freedom.

XIV.

Yet hold—one sample more—the last,
Ere of this theme we make a clearance;
One little month is barely past
Since London saw her grand appearance,
In one of those enormous hats,
Short leggings and peculiar jerkins,
Which men assume who tend the vats
Of Barclay and his partner Perkins.

XV.

To that great factory of beer,
Unconscious wholly of his danger,
Nor dreaming that a foe was near,
There came, one day, an aged stranger.
He was a soldier, and had fought

In other lands 'gainst revolution;
And done his utmost—so he thought—
To save his country's constitution.

XVI.

But saving states, like other things
Is not in highest vogue at present;
And those who stand by laws and kings
Must look for recompense unpleasant.
Fair Freedom, brooding o'er the drink
That makes the Briton strong and hearty,
Began to sneeze upon the brink
As though she scented Bonaparte.

XVII.

"Ah, ha!" she cried, and cried again—
At every word her voice grew louder—
"I smell an Austrian or a Dane,
I smell a minion of gunpowder!
Some servant of a kingly race
My independent nostril vexes!
Say—shall he dare to show his face,
Within this hall of triple X's?

XVIII.

"'Tis true—he is unarmed, alone,
A stranger, weak, and old, and hoary—
Yet—on, my children! heave the stone!
The less the risk, the more the glory!"
She ceased: and round the startled man,
As round the Indian crowds the cayman,
From vat, and vault, and desk, and van,
Thronged brewer, maltster, clerk, and drayman.

XIX.

"A precious lark!" the foremost cried;
"Come—twig him, Tom! come—pin him, Roger!"
"Who is it?" Then a sage replied—

"He's some infernal foreign sodger!
He looks as how he'd scored ere now
Some shoulders black and blue with lashes
So pitch him here into the beer—
And, lads—we'll pull off his moustaches!"

XX.

They did—what brutal natures scorn.
What savages would shrink to do—
What none but basest cowards born,
And the most abject and most few,
Would offer to an old man's head!
O shame—O shame to Englishmen!
If the old spirit be not dead,
'Tis time it showed itself again!

XXI.

What! in this land which shelter gave
To all, whatever their degree,
Or were they faint, or were they brave,
Or were they slaves, or were they free—
In this Asylum of the Earth—
The noblest name it ever won—
Shall deeds like these pollute our hearth,
Shall open shame like this be done?

XXII.

O most ignoble end of all
Our boasted order and renown!
The robber in the tribune's hall—
The maltster in the Judge's gown!
The hospitable roof profaned;
Old age by ruffian force opprest,
And English hands most vilely stained
With blood of an unconscious guest!

XXIII.

O Freedom! if thou wouldst maintain

Thy empire on the British shore,
Wash from thy robes that coward stain,
Resume thy ancient garb once more.
In virgin whiteness walk abroad,
Maintain thy might from sea to sea,
And, as the dearest gift of God,
So men shall live and die for thee!

Dies Boreales.
No. VIII.
CHRISTOPHER UNDER CANVASS.

Camp at Cladich.

SCENE—*The Wren's Nest.*

TIME—*Evening.*

NORTH—TALBOYS—SEWARD—BULLER.

NORTH.

Have you dined?

TALBOYS.

That we have, sir.

NORTH.

With me this has been Fast-day.

TALBOYS.

We saw it was, at our breakfast. Your abstinence at that meal, and at luncheon, we knew from the composure of your features, and your benignant silence, was not from any disorder of material organisation, but from steady moral resolve; so his absence from the Dinner-Table gave us no uneasiness about Numa.

NORTH.

No Nymph has been with him in the Grot.

TALBOYS.

His Good Genius is always with him in Solitude. The form we observed stealing—no, not stealing—gliding away—was, I verily believe, but the Lady of the Wood.

NORTH.

The Glen, you know, is haunted; and sometimes when the green umbrage is beginning to look grey in the still evening, I have more than a glimpse of the Faery Queen.

SEWARD.

Perhaps we intrude on your dreams. Let us retire.

NORTH.

Take your seats. What Book is that, beneath your arm, Talboys?

TALBOYS.

The Volume you bid me bring with me this Evening to the Wren's Nest.

NORTH.

Yes, yes—now I remember. You are here by appointment.

TALBOYS.

Else had we not been here. We had not merely your permission, sir—but your invitation.

NORTH.

I was expecting you—and by hands unseen this our Round Table has been spread for my guests. Pretty coffee-cups, are they not? Ask no questions—there they are—but handle them gently—for the porcelain is delicate—and at rude touch will disappear from your fingers. A Book. Ay, ay—a Quarto—and by a writer of deserved Fame.

SEWARD.

We are dissatisfied with it, sir. Dugald Stewart is hard on the POET, and we desire to hear a vindication from our Master's lips.

NORTH.

Master! We are all pupils Of THE POET. He is the Master of us all. Talboys, read out—and begin at the beginning.

TALBOYS.

"In entering on this subject, it is proper to observe, that the word POET is not here used in that restricted sense in which it is commonly employed; but in its original acceptation of Maker, or Creator. In plainer language, it is used to comprehend all those who devote themselves to the culture of the Arts which are addressed to the Imagination; and in whose minds it may be presumed Imagination has acquired a more than ordinary sway over the other powers of the Understanding. By using the word in such a latitude, we shall be enabled to generalise the observations which might otherwise seem applicable merely to the different classes of versifiers."

NORTH.

That Mr. Stewart should, as a Philosopher, mark the liberal and magnanimous, and metaphysical large acceptation of the Name is right and good. But look at his Note.

TALBOYS.

"For this latitude in the use of the word POET, I may plead the example of Bacon and d'Alembert, the former of whom (*De Aug. Scient.*, lib. xi. cap. 1) comprehends under Poetry all fables or fictitious histories, whether in prose or verse; while the latter includes in it painting, sculpture, architecture, music, and their different divisions."

NORTH.

"I may plead the example" appears to me a somewhat pompous expression to signify that you have (very properly) adopted one doctrine of one of the wisest, and another of one of the ablest of men. But he does not seem to know that d'Alembert might have "pleaded the example" of Aristotle in "including painting, sculpture," &c. "Poetry," says the Stagyrte, "consists in imitation, and the imitation may be by pictures, sculpture, and the like." It is μιμησις—and it is Man's nature to rejoice in imitation—χαίρει τοις μιμημασιν. But a singular and illustrative trait in Mr Stewart's treatment of the subject is, that though he thus, at the outset, enlarges the Poet into the Painter, the Sculptor, &c., yet throughout the whole composition, (I know not if an incidental word may anywhere occur as an exception,) every point

of the argument regards the Poet in words and verse! In what frame of understanding could—did he put this Head to these fragments of limbs?

BULLER.

In the name of the Prophet—FIGS!

NORTH.

I am more than half disposed to hint an objection to the use of the words "sway over the other powers." We should have said—and we do say, "predominance amongst the other powers." I see in "sway" two meanings: first, a right meaning, or truth, not well expressed; to wit, in thinking poetically—for his art, whatever it may be—or out of his art—the Poet's other faculties minister to his Imagination. She reigns. They *conform* their operations to hers. This manner of intellectual action happens in all men, more or less, oftener or seldomer; in the Poet—of what Art soever—upon each occasion, with much more decision and eminence, and more habitually. But secondly, a wrong meaning, or error, is better expressed by the word "sway," to wit, that Imagination in the Poet *illegitimately overbears* the other intellectual powers, as judgment, attention, reflection, memory, prudence. Now, you may say that every power that is given in great strength, *tends* to overbear unduly the other powers. The syllogistic faculty does—the faculty of observation does—memory does—and so a power *unbalanced* may appear as a weakness—as wealth ruins a fool. But in the just dispensation of nature every power is a power, and to the mind which she constitutes for greatness she gives *balanced* powers. Giving one in large measure—say Imagination—she gives as large the directly antagonistic power—say the Intellective, the Logical; or she balances by a mass of powers. I suspect that the undue over-swaying was in Stewart's mind, and has probably distorted his language. I know that Genius is the combination of ten faculties.

SEWARD.

Our expectations were raised to a high pitch by such grandiloquent announcement: and we have found in the Essay—which is unscientific in form—has no method—makes no progress—and is throughout a jumble,—not one bold or original thought.

BULLER.

Too much occupied with exposure of vulgar errors—and instances beneath the matter in hand. Great part too—*extra thesin*.

SEWARD.

You expect great things from the title—the Idea of the POET. You then see that Mr Stewart after all does not intend this, but only certain influences, moral and intellectual, of characteristic pursuits. This, if rightly and fully done, would have *involved* the Idea—and so a portraiture indirect and incidental—still the features and their proportion. Instead of the Idea, you find—

BULLER.

I don't know what.

TALBOYS.

The reader is made unhappy, first, by defect, or the absence of principal features—then by degradation, or the low contemplation—and by the general tenor.

NORTH.

Why, perhaps, you had better return the Quarto to its shelf in the Van. Yet 'twould be a pity, too, to do so. I am for always keeping our engagements; and as we agreed to have a talk about the Section this evening, let us have a talk. Read away, Talboys—at the very next Paragraph.

TALBOYS.

"The culture of Imagination does not diminish our interest in human life, but is extremely apt to inspire the mind with false conceptions of it. As this faculty derives its chief gratification from picturing to itself things more perfect than what exist, it has a tendency to exalt our expectations above the level of our present condition, and frequently produces a youth of enthusiastic hopes, while it stores up disappointment and disgust for maturer years. In general, it is the characteristic of a poetical mind to be sanguine in its prospects of futurity—a disposition extremely useful when seconded by great activity and industry, but which, when accompanied, as it too frequently is, with indolence, and with an overweening self-conceit, is the source of numberless misfortunes."

BULLER.

Why, all this is—

NORTH.

Stop. Read on, Talboys.

TALBOYS.

"A thoughtlessness and imprudence with respect to the future, and a general imprudence in the conduct of life, has been often laid to the charge of Poets. Horace represents them as too much engrossed and intoxicated with their favourite pursuits to think of anything else—

BULLER.

Leave out the quotation from old Flaccus—and go on.

TALBOYS.

"This carelessness about the goods of fortune is an infirmity very naturally resulting from their studies, and is only to be cured by years and experience; or by a combination—very rare, indeed—of poetical genius with a more than ordinary share of that homely endowment COMMON SENSE."

BULLER.

Speak louder—yet that might not be easy. I feel the want of an ear-trumpet, for you do drop your voice so at the end of sentences.

TALBOYS.

"A few exceptions"—

BULLER.

Stentor's alive again—oh! that I were head over ears in a bale of cotton.

TALBOYS.

"A few exceptions to these observations may undoubtedly be found, but they are so very few, as, by their singularity, to confirm rather than weaken the general fact. In proof of this, we need only appeal to the sad details recorded by Dr Johnson in his Lives of the Poets."

BULLER.

Skip—skip—skip—

SEWARD.

Skip—skip—skip—

TALBOYS.

May I, sir?

NORTH.

You may.

TALBOYS.

"Considered in its moral effects on the mind, one of the most unfortunate consequences to be apprehended from the cultivation of a poetical talent, is its tendency, by cherishing a puerile and irritable vanity, to weaken the force, and to impair the independence of character. Whoever limits his exertions to the gratification of others, whether by personal exhibition, as in the case of the actor and mimic, or by those kinds of literary composition which are calculated for no end but to please or to entertain, renders himself, in some measure, dependent on their caprices and humours."

BULLER.

Skip—skip—skip—

TALBOYS.

"In all the other departments of literature besides, to please is only a secondary object. It is the primary one of poetry. Hence that timidity of temper, and restless and unmanly desire of praise, and that dependence on the capricious applause of the multitude, which so often detract from the personal dignity of those whose productions do honour to human nature."

NORTH.

I don't quite understand what Mr Stewart means here by "the *culture* of Imagination." I see three senses of the word. First, the cultivation by the study of written Poetry and the poetical arts, and of the poetry poured through the Universe—to those minds which receive without producing—a

legitimate process. Secondly, the cultivation as in Edwin, Beattie's young Minstrel, the destined and self-destining Poet—a legitimate process. And thirdly, the self-indulgence of a mind which, more sensitive than volitive, more imaginative than intellectual, more wilful than lawful, more self-loving than others-loving—turns life into a long reverie—an illegitimate process. Which of these three classes of minds does Stewart speak of? Strong native imagination in a young powerful enthusiastic mind, tutored by poetical studies, but whom the Muse has *not* selected to the services of her shrine? Or the faculty as in the Poet-born self-tutored, and now rushing into his own predestined work? Or the soft-souled and indolent *fainéant* Dreamer of life? Three totally distinct subjects for the contemplation of the Philosopher, but that here seem to hover confusedly and at once before our Philosopher.

BULLER.

By his chosen title of the Section, THE POET, he was bound to speak of him according to Bacon, d'Alembert, and Aristotle.

NORTH.

The word *culture* must, I think, here specifically touch the First Case. Shall we then be afraid of giving a share, and a large share too, to the reading of the Poets, and the regard of the Fine Arts, in a liberal Education? Poetry, History, Science, are the three strands of the cable by which the vessel shall ride—Religion being the sheet-anchor.

SEWARD.

Perhaps it is meant to touch the Second Case too?

NORTH.

It may be meant to do so, but it does not. The word "culture" is dictated by or is proper to the First Case—for culture is deliberate and elective. But in him—the young Poet—the Edwin—in whom imagination is given in the measure assigned by the Muse to her children, the culture proceeds undeliberate and unwilling. Edwin, when he roves "beneath the precipice o'erhung with pine," or sitting to watch the "wide-weltering waves," or is seized from the hint of ballad or tale, or any chance word, with dreams and visions of the more illustrious Past—follows a delight and desire that have the nature and may have the name of a passion. All this is involuntary to the

unforeseen result—but afterwards, when he has accepted his art for a vocation, he more than any man deliberately cultivates. Has the Philosopher, then, in mind only the third class, and do the dangers of "the culture of imagination" apply to them only—"the indolent *fainéant* dreamers of life?" If so, he not only forgets and loses his subject, as announced by himself, but wastes words on one altogether below it. "False conceptions of human life!" Here is an equivocation which must be set right. "Conceptions of human life" are here meant to apply to expectations of the honesty, gratitude, virtue of the persons *in general* with whom you or I shall come in contact in life. Good. The contemplation of human beings—men and women—*ideally* drawn by the Poet lifts me too high—tinges hope in me with enthusiasm, and prepares disappointment. So it has been often said, and said truly. This is conception prospective and personal; and more philosophically termed Expectation. But then "conception of human life"—from the lip of a philosopher should mean rather "intelligence of man's life." Now I repeat that only through the Poet have you true intelligence of man's life—either external or internal. In the Actual the Poet sees the Idea—just as a Painter does in respect of the visible man. In the man set before him He sees two men—the man that is and the man of whom at his nativity was given the possibility to be. He reads cause and effect; and sees what has hindered the possible from being. Who, excepting the Poet, does this? And excepting this, what intelligence of man is an intelligence?

SEWARD.

There are two world-Wisdoms. One, to know men, as for the most part they will show themselves—commonly called Knowledge of the World: one, to know them as God made them. I forget what it is called. Possibly it has no name.

NORTH.

Observe, my dear Seward, the precise error of that expectation. It is to believe the good more prevalent than it is. It is no misunderstanding as to the constitution of the good. The good is; and the important point of all is to know it, when you meet it. To be cheated, by not apprehending the ill of a man, is a wound to your purse, and when you at last apprehend, to your heart. To be cheated by not apprehending the good of man is—*death*, which you bear in yourself, and know it not.

SEWARD.

What is desired? Is it that we should go into the world with hope not a whit wider and higher than the dimensions of the reality that we are to encounter? I trow not.

NORTH.

Your hope will elect your own destiny—will shape it—will be it. There are possibilities given of the nobler happinesses, as well as of the nobler services; and your hope, faithful to itself, will reach and grasp them. And only to such hope are they given. Moreover, in all men there is under the mask of evil which the world has shaped on them, the power inextinct which the Creator sowed there; and they may, if they dare to believe in it, and know to call to it, bring it out with a burst. But belief is the main ingredient of the spell, and hope is the mother of belief.

TALBOYS.

The Poet has glorious apprehensions of human existence—visions of men—visions of men's actions—visions of men's destinies. He pitches his theory of the human world above reality—and *that* he shall, in due season or before it, learn—to his great loss and to his great gain. In the meanwhile do not speak of the temper in him, as if you would upbraid him with it. Do not lay to his charge the splendour of his powers and aspirations. Do not chide and rate him for his virtues.

SEWARD.

"False conceptions!" a term essentially of depreciation and reproach. They are not false, they are true. For they are faithful to the vocation that lies upon the human beings; but they, the human beings, are false, and their lives are false; falling short of those true conceptions.

NORTH.

Well. He—the Poet—comes to the encounter. It is the trial set for him by his stars—as it is the trial set for all great spirits. He finds those who disappoint him, and those who do not. But, grant the disappointment, rather. What shall he do? That which all great spirits do—transfer the grandeur of his hopes, over which fate, fortune, and the winds of heaven ruled, to his own purposes of which he is master.

TALBOYS.

Why did not Mr Stewart say simply that the Poet—and the young enthusiast of Poetry—thinks better of his fellows than they deserve, and brings a faith to them which they will take good care to disappoint? Why harp thus on the jarring string; torturing our ears, and putting our souls out of tune?

NORTH.

Who doubts—who does not know, and admire, and love Hope—in the ardent generous spirit—looking out from within the Eden of Youth into the world into which it shall, alas! fall? What is asked? That the spring-flowering of youth shall be prematurely blighted and blasted by winds frosty or fiery, which the set fruit may bear? Of course we hope beyond the reality, and it is God's gift that we do.

TALBOYS.

And why lay that Imagination which looks into Life with unmeasured ideas to the charge of the Poet alone? Herein every man is a Poet, more or less; and, most, every spirit of power—the hero, the saint, the minister of religion, the very Philosopher. Would we ask, sir, for a new law of nature? Upon the elements, fewer or more, which an anticipated experience gathers, a spirit impelled by the yearnings inseparable from self-conscious power, and mighty to create, works unchecked and unruled. What shall it do but build glorious illusions?

NORTH.

"The culture of Imagination,"—understanding thereby, first, in the Great Poets themselves, the intercourse of their own minds with facts which imagination vivifies, and with ideas which it creates—of humanity; and secondly, in all others, as poets to be or not to be, the reading of the Great Poets, Mr Stewart says—"does not diminish our interest in human life." Does not diminish! Quite the reverse. It extraordinarily deepens and heightens, increases and ennobles. For who are the painters, the authentic delineators and revealers of human life, outer and inner—

BULLER.

Why, the Poets—the Poets to be sure—the Poets beyond all doubt—

NORTH.

"Extremely apt to inspire the mind with false conceptions of it"—and so on. Why, the Faculty is there with a mission. It is its bounden office—its embassy from heaven—to exalt us above our earthly experience—to lift us into the ideal possibility of things. Thereby it is an "angel of Life," the white-winged good genius. The too sanguine hope is an adhering consequence, and the quelling of the hope is one of the penalties which we pay for Adam and Eve's coming through that Eastern Gate into this Lower World.

TALBOYS.

Of course, my dear sir, *every* power has its dangers—the greater, the profounder, the more penetrating and vital the power, the greater the danger. But is this the way that a Philosopher begins to treat of a power—with hesitation and distrust—inauspiciously auspicing his inquiry? The common—the better—the true order of treatment is by Use and, Abuse—Use first. "Expectations above the level of our present existence!" Of course—that when the heaven on earth fails, we may have *learnt* "to expect above the level of our present existence," and go on doing so more and more, till Earth shall fade and Heaven open.

SEWARD.

"Frequently produces a youth of enthusiastic hope!" Is this proposed as a perversion and calamity, a "youth" to be deprecated?

NORTH.

I really don't know—it looks almost like it.

SEWARD.

Will you say Wo and Alas! for the City—Wo and Alas! for the Nation—in which princes, and nobles, and the gentle of blood—and the merchants, and the husbandmen, and the peasants, and the artisans, suffer under this endemic and feverous malady—a "youth of enthusiastic hope?" Methinks, sir, you would expect there to find an overflow of Pericles's, and Pindars, and Phidias's, and Shakspeares, and Chathams, and Wolfes—

BULLER.

Stop, Seward—spare us the Catalogue.

SEWARD.

You would say—here is the People that is to lead the world in Arms and in Arts. Only let us use all our endeavours to see that the community produces reason enough in balance of the enthusiasm.

BULLER.

Let us procure Aristotles, and Socrates's, and Newtons, and—

TALBOYS.

What should a Philosopher do or say relatively to any particular power? He expounds an Economy of Nature. Therefore, he says, let us look how Nature deals with such or such a power. She gives it for such and such uses: and such is its fostering, and such are its phenomena. But as every power unbalanced carries the subject in which it inheres *ex orbita*, let us look how nature provides to balance *this* power which we consider.

NORTH.

That, my dear Talboys, is a magnanimous and a capacious way of inquiry. But how can any man write about a power who has not a full sympathy with it? I have no doubt that Davy, when he wielded Galvanism to make wonderful and beautiful revelations of veiled things, deeply and largely sympathised with Galvanism. You would think it easier to sympathise with Imagination, and yet to Stewart it seems almost more difficult. Go on.

TALBOYS.

How has Nature dealt with her mighty and perilous power—Love. Look at it, where it is raised to its despotism—when a man loves a woman, and that woman that man. It is a power to unhinge a world. Lo! in proof "an old song"—the Iliad!

"Trojanas ut opes et lamentabile regnum
Eruerint Danai!"

Has Nature feared, therefore, to use it? She builds the world with it. And look how she proceeds. To these two—the Lovers as they are called—the Universe is *in* these two—to each in the other. The rest of the Universe is shut out from their view, or more wonderfully comprehended in their view

—seen to each through and relatively to the other—seen transformed in the magical mirror of their love. Can you expect anything less than that they should go by different doors, or by the same door, into Bedlam? Lo! they have become a Father and a Mother! They have returned into the real world—into a world yet dearer than Dreamland! The world in which their children shall grow up into men and women. Sedate, vigilant, circumspect, sedulous, industrious, wise, just—Pater-familias and Mater-familias. So Nature lets down from an Unreal which she has chosen, and knows how to use.

NORTH.

The ground of the Poet, my dear Talboys, is an extraordinary dotation of sensibility—of course, ten thousand dangers. Life is exuberant in him—and if the world lies at all wide about him, the joy of the great and the beautiful. The dearest of all interests to every rational soul is her own coming destiny. The Poet, quick and keen above all men in self-reference, must, among his contemplations and creations, be full of contemplating and creating his own future, and must pour over it all his power of joy, rosy and golden hopes. And that vision, framed with all his power of the Ideal, must needs be something exceedingly different from that which this bare, and blank, and hard earth of reality has to bestow. What follows? A severe, and perhaps an unprepared trial. The self-protection demanded of him is a morally-guarded heart and life. The protection provided for him is—his Art. The visions—the Ideal—the Great and the Fair, which he cannot incorporate in his own straitened existence—the ambitions, at large, of his imagination he localises—colonises—imparadises—in his works. He has two lives; the life of his daily steps upon the hard and bare, or the green, and elastic, and sweet-smelling earth, and the life of his books, papers, and poetical, studious reveries—art-intending, intellectual ecstasies.

BULLER.

What say you, sir, to the charge of "overweening self-conceit and indolence?"

NORTH.

What say you, my Buller?

BULLER.

That I do not quite understand the proposition. Is it, that *generally* the "sanguine" temperament is apt to make these accompaniments for itself? Or that in the Poet the three elements are often found together? If the former, I see no truth in it. The sanguine temper should naturally inspire activity—and I do not quite know what is here an "overweening conceit." That a sanguine-minded man is apt to have great *self-reliance* in any project he has in hand—a confidence in his own present views that is not a little refractory to good argument of cooler observers, I understand. But that sort of self-conceit which makes of a man an intellectual fop—gazing in the pocket looking-glass of self-conceit at his own perfections—vain self-contemplation and self-adulation—the sanguine temper is far more likely to carry a man out of himself, to occupy his time, his pleasure, and his passion in works, and withdraw them from himself. I suppose, therefore, that we must look to the Poet alone. I daresay that small poets have a great conceit of themselves. They have a talent that is flattered and admired far beyond its worth. They readily fancy themselves members of the Immortal Family. But a true Poet has a thousand sources of humility. Does he not reverence all greatness, moral and intellectual? Does he not reverence, above all, the mighty masters of song? He understands their greatness—he can measure distances—which your small Poet cannot.

NORTH.

Every soul conscious of power is in danger of estimating the power too highly; but I do not know why the Poet should be so more than another man. Then, what is "overweening?" Is it overvaluing himself relatively to other men? Is it over-measuring his power of achievement—whence disproportionate undertakings, that fail in their accomplishment? I can more easily suppose that all the Sons of Genius "overween" in this direction. They must needs shape enterprises of unattainable magnificence. But some one has said rightly that in attempting the Impossible we accomplish the Possible. But this is a higher and truer and more generous meaning, I fancy, than is intended by the choice of that slighting and scoffing dispraise of "overweening"—a word pointing to a social, or moral, defect that makes an exceedingly disagreeable companion, rather than to any sublime error in the calculations of genius. And I come back upon the small sinner in rhyme, who has been cockered by his friends and cuddled by himself into conceit, till he thinks the world not good enough for him—takes no trouble to satisfy

Its reasonable expectations, and finds that It will take none to satisfy his unreasonable ones—*there* is a source of "numberless misfortunes"—a seedy surtout, a faded vest, and very threadbare inexpressibles.

TALBOYS.

And why should those who are sanguine in hope be "too frequently indolent?" A hopeful temper engender indolence! A desponding temper engenders it; a hopeful one is the very spur of activity. The sanguine spirit of hope taking possession of an active intellect, engenders the Projector—of all human beings the most restless and indefatigable—his undaunted and unconquerable trust in futurity creates for itself incessantly new shapes of exertion—till the curtain falls.

SEWARD.

There is, I suppose, a species of Castle-builder who hopes and does nothing; as if he believed that futurity had the special charge of bringing into existence the children of his wish. But his temper is not properly called sanguine—it is *dreamy*. Neither is his indolence a consequence of his dreams; but as much or more, his dreams, of his indolence. He sits and dreams. Say that Nature has given to some one, as she will from time to time, an active fancy and an indolent humour—a disproportion in one faculty. 'Tis a misfortune: and a reason why his friends should seek out, if possible, the means of stirring him into activity; but it has nothing to do with describing the Idea of the Poetical Character.

TALBOYS.

The Great Poets have not been indolent. They have been working men. The genius of the Poet calls him to his work. Shakspeare was a man of business. Spenser was a state-secretary.

BULLER.

Read Milton's Life.

TALBOYS.

See Cowper drowned in an invincible melancholy, and deliberately choosing a long-lasting and severe task of his Art, as a means of relieving, from hour to hour, the pressure of his intolerable burthen. If he had drooped under his hopeless disease into motionless stupor, you could not have

wondered, much less could you have blamed. He fought, pen in hand, year after year, against the still-repelled and ultimately victorious enemy.

BULLER.

Think of Southey!

NORTH.

Yet the Poet is in danger of indolence. For in his younger years joy comes to him unpurchased. To do, takes him out of his dream. To do nothing, is to live in an enchanted world; and with all tenderness be it said, he hath, too, his specific temptation to overmuch self-esteem. Because his specific faculty and habit are to refer every thing that befalls constantly to himself as a contemplative spirit. Herein is the most luminous intuition alone. The perversion is to be quick and keen in referring to the ignobler Self—for as I or you said, and all men may know, the Poet assuredly has two souls. Personal estimation, personal prospects! A sensibility to injury, to fear, to harm, to misprision—a quick jealousy—suspicion—soreness! You do see them in Poets—and in Artists, who after their kind are Poets—for they are Men. As to excessive reflection upon and admiration of their own intellectual powers, while we rightly condemn it, we should remember that the Poet *is* gifted, and in comparison with most of those with whom he lives, is in certain directions far abler; and more delicate apprehensions he probably has than most or all of them—at least of such apprehensions as come under the Pleasures of Imagination. And when he begins to call auditors to his Harp—then, well-a-day!—then he lives and feeds upon the breath of praise—and upon the glow of sympathy—a flower that opens to the caress of zephyrs and sunbeams, and without them pines. Then comes envy and spiritual covetousness. Others obtain the praise and the sympathy—others who merit them less, or not at all. What a temptation to disparage all others—*alive!* And to the Poet, essentially plunged in the individualities of his own being, how easy! For each of his rivals has a different individuality from his own; and how easy to construe points of difference into points of inferiority! Easy to him whom pain wrings more than it does others—to whom disagreeable things are more disagreeable—

TALBOYS.

Have done, sir, I beseech you, have done—talk not so of the Brotherhood.

NORTH.

I am thinking of some of the most majestic!

SEWARD.

Alas! it is true.

NORTH.

Mr Stewart more than insinuates, with a wavering and equivocating uncertainty of assertion he signifies, that the POET, or poetic mind, is not much endowed with "common sense." Talboys, what say you?

TALBOYS.

I rather think it unusually well-endowed that way, and that it is the opposite class of minds—those that cultivate abstract science—that have, or seem to have, least of it.

SEWARD.

The poetic mind, from its sensibility, is peculiarly ready to sympathise with the general mind, and it is that sympathy that produces common sense. Common sense is instinctive; and in its origin allied to that which in the higher acts of the poet's mind is called Inspiration. Therefore it is native to his mind. It is an inspiration of his mind as much as poetic Imagination.

BULLER.

Has Seward said what you meant to say, Talboys?

TALBOYS.

He has—why did not you? But observe, Buller, common sense is not solely employed upon a man's own conduct: it has all the world besides for its object. The common sense of a Poet in his own case may be disturbed by his sensibilities, which are greater than common; while yet, in all other cases, it may be truer than the magnet.

BULLER.

Good.

TALBOYS.

I will trouble you, if you please, for an Obs.

BULLER.

I have long desired a definition of Common Sense. It seems to me rather a commonplace thing. I suppose it is called Common Sense, as being common to men, so that you may expect it in 9 out of 10, or 99 out of 100.

TALBOYS.

Pretty good.

BULLER.

Common Life seems to be the school of it. It seems a practical faculty, or to respect practice. Obvious relations are its domain—obvious connexions of cause and effect—means and end. A man of common sense effects a plain object, quickly and cheaply, by ready and direct means. High reach of thought is distinguished from common sense on the same side, as downright folly is on the other. Yet the interests dealt with need not be, if they frequently are, low; only the relations obvious. Perhaps the phrase is oftener brought out by its violation than its maintenance. He who wants common sense employs means thwarting his end. I propose that Common Sense is a combination of common understanding and common experience.

TALBOYS.

I asked you, my dear Buller, for an Obs—one single Obs—you have given us a dozen—a Series. Let us take them one by one, and dissect the—

BULLER.

Be hanged if we do! I am afraid that my notion of Common Sense is but a low one. I think that a blacksmith may acquire common sense about shoeing of horses, and a housewife about her kitchen and laundry. *Sound sense* applicable to high matters is another matter—*une toute autre chose*.

TALBOYS.

Be done, dear Buller.

BULLER.

In a moment. Moreover, I can imagine a strong, clear, sound sense *confined* to a special *higher* employment—a lawyer who would manage the most

difficult and hazardous cause with admirable discretion, and make a mere fool of himself in marrying.

TALBOYS.

Be done—be done.

BULLER.

In a moment. *I* am not able to affirm that a Poet of high and sound faculties *must* have the talent for conducting himself with prudence in the common affairs of life; and really *that* is what seems to me to be *Common Sense*.

TALBOYS.

Be done now—you cannot better it.

BULLER.

About the Poet what can I say that every body does not know and say in all the weekly newspapers. Why, gentlemen, the Mission of the Poet is to fight the fight of the Spirit against the flesh, and to extend the reign of the Beautiful. Also, he is the Prophet of [Greek: gnôthi seauton]: and the finest of wordmongers. The words that he touches turn all to gold. He is the subtlest of thinkers. *Our* best discipline of thinking has been from the Poets. Compare Shakspeare and Euclid.

TALBOYS.

From you! Buller, you astonish me.

BULLER.

Astonishment is sometimes proof of a weak mind.

NORTH.

There seem to be two Common Senses. Goldsmith appears to be viewed as an eminent case of wanting it, in conduct—the practical—for his own use. But the theoretical—for judging others—imaginary cases—characterises that immortal work, *The Vicar of Wakefield*: and the theoretical, for judging other men real, existing, and known, his *Retaliation*. The criticism of Burke, for instance, is all exalted Common Sense—

"Who, born for the Universe, narrowed his mind,

And to Party gave up what was meant for Mankind."

That is the larger grasp of common Sense rising into high Sense.

"And thought of convincing while they thought of dining"

is its homelier scope.

SEWARD.

Common Sense is the lower part of complete Good Sense. Shakspeare and Phidias must use Good Sense in governing their whole composition; which Common Sense could not reach; and a man might have good sense in composing a group in marble, yet want it in governing his family. But Phidias executing a Venus with a blunt notched chisel, would want Common Sense.

NORTH.

Wordsworth the Great and Good has said that "the privilege and the duty of Poetry is to describe things not as they are, but as they seem to the senses and the passions;" and when in so saying he claimed further for the works of Poetry law and constancy, he spake heroically and thence well,—up to the mark of the fearless and clear truth. But when he condescended to speak of "one quality that is always favourable to good poetry, namely, good sense," he said that, *without note of reserve*, which should have been guarded. Good sense, if you please, but such good sense as Homer shows when the κλαγγη of the silver bow sounds—when the Mountain-Isle trembles with all her Woods to Neptune stepping along—or the many-folded snowy Olympus to Jupiter giving the one calm, slow, simple, majestic, earth-and-heaven-obliging Nod—or when at the loosed storm of terrestrial and celestial battle on the Scamandrian plain, the Infernal Jove leaps from his throne, and shouts, or yells, or bellows—μεγ' ἰαχε—lest the solidly-vaulted Earth rend above and let in sunlight on the Shades. The "good sense" of Shakspeare, when the Witches mingle in the hell-broth "Tartar's lips," and "yew-slips slivered in the Moon's eclipse." Claim the good sense, but claim it in its own kind—separated and high—kingly—Delphic—divine. The good sense of Jupiter—Apollo—the Nine Muses, and the practical Pallas Athene. Or claim WISDOM—and not "good sense;"—"the meed of Poets SAGE!" Lucid intelligence—profound intuitions—disclosed

essences—hidden relations laid bare—laws discerned—systems and worlds comprehended—revealed mysteries—prophecy—the "terrible sagacity"—and to all these add the circumspection—the caution—the self-rule—the attentive and skilful prudence of consummate Art, commanding effects which she forecast and willed. Wisdom in choosing his aim—Wisdom in reaching his aim—Wisdom to weigh men's minds and men's deeds—their hopes, fears, interests—to read the leaves of the books which men have written—to read the leaves of the book which the Creating Finger has written—to read the leaves of the book which lies for ever open before the Three Sisters—the leaves which the Storms of the Ages turn over.

TALBOYS.

Coffee, my dear sir? Here's a cup—cool and sweetened to your taste to a nicety.

NORTH.

Thanks, Talboys. I am ready for another spell.

BULLER.

Reflect, sir, breathe awhile. Do, Seward, interpose something between the Master and exhaustion. Quick—quick—else he will be off again—and at his time of Life—

SEWARD.

Oh for the gift denied me by my star—presence of mind!

TALBOYS.

Common sense, in a high philosophical signification, is the sum of human opinions and feelings; or the "Universal Sense" of mankind. That is not homely—and cannot therefore be what Stewart calls that "homely endowment." The apter translation of the place in his Essay is "ordinary sense or understanding"—which seems to suggest *now* "so much sense or understanding as you ordinarily meet with among men"—and *now* "sense and understanding applied to ordinary concerns." Only this last makes the quality *homely*. But the tooth of Stewart's insult is in the prior suggestion (in the case of the Gifted, untrue), that they have not as much sense or understanding as you ordinarily meet with. They have ten, twenty, a thousand times as much. Think of Robert Burns! But they have—or may, I

do not say must have—the repugnance to apply the winged and "delighted spirit" to considerations and cares that are easily felt as if sordid and servile—imprisoning—odious. They suffer, however, not for the lack of knowing, but of resolution to conform their doing to their knowing. They sin against common sense—and much more against their own. *Hinc illæ lacrymæ.*

NORTH.

Gentlemen, the Cardinal Virtue—Prudence—holds her sway, in the world of man, over Action, and, as much as she may, over Event, by the union as if of two Sceptres. For She must reign, at once, in the Understanding and in the Will. Common Sense, as the word is commonly meant and understood, is Intellectual Prudence applied to the more obvious requisitions of the more obvious interests which daily and hourly claim our concern and regard. This Intellectual Prudence, thus applied—that is to say, the clear Intelligence of these requisitions—Common Sense, therefore—one man has, and another has not. The case shall occur that the man, Poet or no Poet, who has it, shall act like a fool; whilst the Poet or no Poet, who has it not, shall act like a Sage. For the man, wise to see and to know, shall have yielded the throne of his Will to some usurping and tyrannising desire—and the other, who either does not possess, or who possessing, has not so applied the Intelligence—some dedicated Mathematician, or Metaphysician, or Mechanician, or Naturalist, or Scholar, or Antiquary, or Artist, or Poet, shall live wisely, because he has brought his heart and his blood under the rule of Moral Necessity. Prudence, or, in her stead, Conscience, has established her reign in his Will. To be endowed with Common Sense is one thing; to *act* with common sense, or agreeably to her demands, is another. Popular speech—loose, negligent, self-willed, humoursome and humorous—often poetical—easily and gladly confounds the two neighbouring cases. Philosophic disquisition—which this of Dugald Stewart does not—should sedulously hold them apart. You may judge of a man's Common Sense by hearing him criticise the character and conduct of his neighbour. To learn in what hand the Sceptre of the Will is, you must enter his own doors. The proneness of the Poet, easy, kind, frank—except in his Art, artless—compassionate, generous, and, large-thoughted—heaven-aspiring—to neglect, like the lover, (and what else is he but the perpetually enthralled lover of the Good, the True, and the Beautiful?) the earthly and distasteful *Cura Peculî*, is to be counteracted mainly on the side of the Will.

Simplicity of desire will go far, and this you may expect in him from Nature—indeed it is the first ground of the fault charged. Next, of stronger avail—not perhaps of more dignity—comes that which is indeed the base, if not yet the edified structure of Common Sense, the plain Intelligence of naked Necessity. No great stretch of intellectual power required, surely, for discovering and knowing his own condition in the work-day world! But the goods of fortune—worldly estate—*money*—shall the "heavenly Essence"—the "celestial Virtue"—the "divine Emanation"—for so loftily has Man spoken of Man—that is within us—crouch down and grovel in this dark, chill den—this grave which Mammon has delved to be to it a pitfall and a prison?

BULLER.

Ay—why shall the Poet guard and noose the strings of his purse?

NORTH.

One reason, drawn from the sublimity of his being, stands ever nigh to bow the pliant neck of his Will under the lowly yoke. He *must*—because, according to the manner in which the All-Disposer saw good to order and adjust the constituents and conditions of our human life here below, in him who, of his own will and deed, lays himself under a bond to live by unearned bread, the Moral Soul dies.

SEWARD.

The Poet is not—and he is—improvident. Nothing in his genius binds him to improvidence. Prudence may accompany sensibility—may accompany ample and soaring contemplations—may accompany creative thought—may accompany the diligent observation of human life and manners—may accompany profound insight into the human heart. These are chief constituents of the poetical mind, and have nothing in them that rejects Prudence.

BULLER.

Neither do I believe that the more distinguished Poets generally have been culpably unforesightful—

"Vatis avarus
Non temere est animus!"

I hope so. I should be exceedingly sorry to think that the Bard were apt to give into the most odious of all vices. But the interval is wide from vicious negligence to vicious care: and I hope that somewhere between, and verging from the Golden Mean a little way towards the negligent extreme, might be the proper and earned place of the Poets.

TALBOYS.

We must confess to some negligent tendencies in the Poet. The warm sympathies give advantage to designing beggars of different ranks—and are themselves betraying advisers. The law of the poetical mind to accept Impression, and let it have its way, if it overflow its legitimate channel of poetical study and art, and irregularly lay the conduct of life under water, may leave behind it something else than fertility. The dwelling in pleasure may make the narrow and exact cares of economy irksome. But why shall we *expect* that a man of high, clear, and strong mind shall not learn how to—cut his coat according to his cloth?

NORTH.

I am afraid that the high faculties of a Poet threaten to endanger his vulgar welfare. The foundation of his poetical being and power, as you well have hinted, Talboys, is the free spontaneity of motion in his own mind—the surrendering of his whole spirit to influxes and self-impulses. The spontaneous movement allies his temperament to common passion, which founds upon this very characteristic. And you sometimes see, accordingly, that the Poet is a victim sacrificed for the benefit of the rest. Not that it need be so—for he has his own means of protection; but powers delicate, sensitive, profound, must walk perilously in a lapsed world.

SEWARD.

Let it be allowed, then, to Dugald, that the poetical temperament is adverse to getting—and to keeping—money—and that a touching picture might be drawn of the conflicts of spirit between a Poet and his false position in a counting-house—or with "poverty's unconquerable bar."

NORTH.

"This carelessness about the goods of fortune," says Mr Stewart, "is an infirmity very naturally resulting from their studies, and is only to be cured by years and experience, or by combination (*very rare indeed*) of poetical genius with a more than ordinary share of that 'homely endowment called *common-sense*.'" And wherefore any infirmity? Why not have portrayed rather—or at least kindly qualified the word—in winning hues, or in lofty shape—the delicious or magnanimous UNWORLDLINESS of the poetical character? That most ennobling, and most unostentatious quality, which dear and great Goddess—in lovingly tempering a soul that from its first inhalation of terrestrial air to the breath in which it escapes home, she intends to follow with her love—commingles in precious and perilous atoms that, in consecrating, destine to sorrow.

SEWARD.

An infirmity? A charm—a grace—and a virtue! Alas! sir, a virtue too suitable to the golden age to be safe in ours.

TALBOYS.

Ay, Seward, a virtue demanding the correction or the protection of some others, which the iron generations countenance or allow—such as Prudence, Justice, Affection for those whose welfare he unavoidably commixes with his own.

NORTH.

Protection! It sometimes happily wins its protection from virtues that love and admiration rouse and arm in other breasts, in its favour—a reverent love—a pitying admiration.

TALBOYS.

He quotes Horace as on his side of the question.

NORTH.

A Poet whose name is amongst the most cited from antiquity, Virgil's illustrious lyrical brother, has rehearsed (not indeed to the lyre, but in the style which he offers for little better than versified prose) modestly and apologetically, the Praises of the Poet—his personal worth, and serviceable

function amongst his fellow-men. Singular that in a few words of this passage, and indeed just those which gently allege the *personal virtue* of the poor bard, the Professor should have helped himself to a weapon for dealing upon that head his unkindest cut of all.

SEWARD.

That flowing Epistle of Horace's to Augustus—which he gives good reason in excellent verse for keeping short, and turns out, notwithstanding, rather unreasonably long—if we look for its method, it rambles—if for the spirit, it is a delicate intercommunion between the least of the Courtiers, the Poet, and his imperial Patron, the Lord of Rome and of Rome's World.

TALBOYS.

A facile, roving, and sketchy—partly historical and partly critical disquisition on Poetry chiefly Roman, presenting, with occasion the virtues and faults of the species—POET.

BULLER.

Let's hear it. In my day Horace was not much read at Oxford—

NORTH.

By you—and other First Class Physical Men. Seward, spout it.

SEWARD.

I will recite the passage.

"Hic error tamen, et levis hæc insania, quantas
Virtutes habeat, sic collige: vatis avarus
Non temere est animus; versus amat, hoc studet unum;
Detrimenta, fugas servorum, incendia ridet;
Non fraudem socio, puerove incogitat ullam
Pupillo; vivit siliquis et pane secundo.
Militiæ quamquam piger et malus, utilis urbi:
Si das hoc, parvis quoque rebus magna juvari.
Os tenerum pueri balbumque poeta figurat;
Torquet ab obscœnis jam nunc sermonibus aurem,
Mox etiam pectus præceptis format amicis,
Asperitatis et invidiæ, corrector et iræ;

Recte facta refert; orientia tempora notis
Instruit exemplis, inopem solatur et ægrum.
Castis cum pueris ignara puella mariti
Disceret unde preces, vatem ni Musa dedisset?
Poscit opem chorus, et præsentia numina sentit;
Cælestes implorat aquas, docta prece blandus;
Avertit morbos, metuenda pericula pellit;
Impetrat et pacem, et locupletem frugibus annum.
Carmines Dî Superi placantur, carmine Manes."

BULLER.

Oh! that passage. Why, I have had it by heart for half a hundred. We quote from it at Quarter Sessions.

TALBOYS.

The first grace of the whole composition seems to me its two-fold personality—the free intimacy between the great Protector and the small Protected. It is like Horace's part of a familiar colloquy, where you may fancy, at discretion, interlocutory remark, or answer, or question of Augustus.

NORTH.

True, Talboys. Verse has attracted to the Bard the rays of imperial favour. The Emperor himself is a Verse-maker. How natural and suitable that Horace in verses which vary, to the time of the moment, with inimitable facility, from a conversation-like negligence, or negligent seeming—to sweetness and beauty, to strength and dignity—should win the august ear, tired with the din of arms or of debating tongues, to an hour's chat on the interests of the Muses.

SEWARD.

The praise of the Poet how loving and ingenious! how insinuatingly subdued!

NORTH.

Yet the ground is chosen with a dexterous boldness. The majestic opening Address of the Poem showed Augustus, like a Jupiter, wielding with beneficent power the destinies of the Roman world. And now, confronting

the dispenser of welfare to nations, he sets up another benefactor of the State, the Poet, face to face with golden-throned, and purple-vested Octavius Cæsar—poor Horatius Flaccus!

BULLER.

Most awkward of Courtiers! Most crazed of versifiers!

SEWARD.

Beware of rash judgments and half-informations. You familiar with Hory—

BULLER.

You muttered the passage so that you murdered it.

TALBOYS.

You, familiar with Hory, see at least how, by the choice of the ground, he has obliged himself to stepping cautiously and tenderly over it. He leads to it—he does not begin with it. Arrived at the comparison, he proposes it rather implicitly than explicitly—admire the Rhetorician. He will avert jealousy—he will propitiate kindness.

BULLER.

Artful Dodger.

TALBOYS.

He has acknowledged—you might have given us the line—a *fault*. Nothing seriously wrong though. As if Apollo had shot a plague with golden arrows upon the City, all are turned Versifiers—young and old—and grave and gay—wise and foolish—the skilled and the unskilled—the called and the uncalled.

BULLER.

You write verses well yourself, Talboys.

TALBOYS.

I am as willing as most people to bandy compliments, but here you must excuse me. Out of the small fault, rises the Eulogy. This diffusive delusion—this epidemic, yet lively, and airy, and sprightly, and harmless insanity, gives out from its bosom some good uses, and first on the madman himself.

As one disease expels another, the musolept is, through the very force of his disorder, free from the taint of cupidity—of the burning desire for worldly wealth. The simple man has room in his heart but for one love. Verse is his passion—his bliss, his all-absorbing vocation. Has his banker failed with his little cash-balance in his hands? He laughs. Has one of his two slaves run away? He laughs. Has a fire at the bookseller's consumed the copies of his last work? 'Tis unlucky—but he laughs. It is not *he* that speculates upon, or *waylays*, the unguarded trust of his friend or acquaintances—not *he* that handles with adhesive fingers the gold of his young orphan-ward. And for his fare, it is an anchorite's—pulse and brown bread.

BULLER.

Very prettily paraphrased indeed!

SEWARD.

And very feelingly. Imagine these ideas sliding into one's heart in the natural verse of—Goldsmith! For it is as if Goldy here described himself—and see if the argument from the Innocence is not artfully placed, for the induction to the argument from the Benefits, that is to follow.

NORTH.

My dear Boys Three, Hory is here painting himself—and not himself. It is the idea of the Poet. He brings the traits and the colours together, as they best suit each other, and his purposes. The meritorious Eremite's fare is not personal to the writer. He has reached a point which imperiously requires another *fault*. Frankly and humorously he takes this from Flaccus himself. The Poet is no soldier—slow to find the way to the field, and too quick to find the way from it. Nevertheless—now for the setting up. He, too, is a profitable servant of the State. And forthwith an imperatively demanded apology—for the purple-robed has smiled a little incredulously at the *utilis urbi*. If, says the Complete Letter-Writer, you will only admit that majestic interests may be served by adminicles of "small regard to see to."

TALBOYS.

And how curiously he hides a pre-eminent power in the very smallest sphere!

NORTH.

How finely! Rome *was* a republic of ORATORS. Cedant arma togæ—the Toga the war-weed of the Orator!

"Romanos rerum dominos, *gentemque togatam*."

The gowned Lords of the Nations—and, Lords of the Lords, the Orators!

BULLER.

Are you sure that is the right reading?

NORTH.

Let it be so. Observe now—the occultation.

BULLER.

The what?

TALBOYS.

The occultation.

BULLER.

Mille gratias.

NORTH.

The nascent and adolescent Orator is moulded to the power of the word by the greatest masters of the word, the Poets! Tell this, O Poet, in imperial ears! Then speak modestly, withdrawingly, insinuatingly. Hide the boast. It is hidden—and shown. The Poet fashions the tender and stammering mouth of the boy. The rudiments of pronunciation—The Orator nascent. No more. It is pretty and gentle that the Muse herself condescends to the care of moulding the young soft lip to the pure musical utterance of Latium's magnificent Mother-tongue.

BULLER.

Now I see it all. The occultation!

NORTH.

But She delays not undertaking a nobler and more momentous function. From the bodily organs She passes to the governing mind. And of the Mind

at once to the nobler part, the Will. She is the young Roman's Moral Tutress. Horace is brief. What these her first lessons to the soul are, he does not say. He tells you their powerful virtue. They *wrest*, he says, (*torquet*,) the charmed hearing from dishonest, from gross and grovelling, from depraving and polluting discourse. You may, my friends, imagine Phædrus' feeling Fables, or the "Lays of Ancient Rome;" or at Athens, instead of Rome, the Iliad.

TALBOYS.

It is the hint but of a line, sir. But each of us may know in himself how early the Muse really did begin to possess our spirits with thoughts, and scenes, and actions that soared away from the presences of our lives—that She did

"Lift us in aspiration from the earth."

And as the pupil grows, the discipline of the divine Instructress ripens. With precepts that are the counsels of a dear and wise friend, she moulds the susceptible compliant bosom. She softens his rough self-will—weeds out envy—and curbs anger.

BULLER.

Talboys, you expound Flaccus well.

TALBOYS.

Her storied informations, pictures from human existence, take now a more direct purpose. She recites deeds justly and virtuously done; She furnishes and arms—*instruit*—the springing generation with high transmitted examples.

NORTH.

Ay, my dear Talboys, *He* is thinking now—

BULLER.

Hitherto you have always said *She*—

NORTH.

I have. "She" is really "He"—the Poet and not the Muse. I was rapt. He is thinking now, my dear Buller, of old strong-hearted Ennius—the heroic

annalist, in soldierly rough verses, of younger heroic Rome. We may recollect, for the nonce, whatever is most English, and most Scottish, and most heroic, in those more musical "histories" of William, and of Walter.

TALBOYS.

We have done with education. We come to the Charity of the Muse. She visits the poor man's home and the sick-bed. One almost starts at the thought, in the midst of the smoke, and the wealth, and the uproar of Pagan Rome. Yet there the plain words are, "She (pardon me) comforts the indigent and the sick man." Is it not *sic in orig.*?

NORTH.

Sic.

BULLER.

Of her ministrations to the splendour of Arts and the luxury of Patrician feasts—of her Theatres, that spread laughter or tears over the dense myriads of the World's Metropolis—not a syllable. The innermost heart of the Poet must have held the chord that gave out the soft low sound—*inopem solatur et ægrum*. No introduction and no comment. A solitary, unpretending sentence or clause.

NORTH.

God bless you, my dear Buller.

TALBOYS.

Amen. May the Chairman of Quarter Sessions live a thousand years! The indigent man may, I suppose, be a poor learned or a poor unlearned man. Relatively to the latter we may think, for Scotland, of Burns' Poems lying in Scottish cottages; and beginning from Scotland, of the traditional ballads and songs that sound in every hut throughout Europe:—for Italy, of what they say of the Venetian Gondoliers singing a Venetianised Gerusalemme Liberata.

NORTH.

So far, my children, for the "*parvis rebus*." Something on a more extended scale, and of a loftier reach! We are commenting Horace. From the earliest times of civilisation, a principal office of verse was to adorn and solemnise

the services of Religion. The cultivation of Verse was early in the Temples. A moment's recollection recalls to us the immense influence on the Hellenic Poetry of this ritual dedication. This theme closes the Praise of the Poet. But faithful to the strain which he has undertaken, and so far adhered to, the discreet Eulogist still, in the loftiest matter, diminishes the pomp, rejects ostentation, confines the sensible dimensions. And still faithful, he dwells on that which, of less show, is the more touching. He has to array a religious procession that drawing, as it moves along, all gaze—thrilling—as it slowly passes door after door, and winds through street after street, with solemn and sweet chaunt lifted from the sorrowing Earth to the listening Heavens—the universal heart of the Eternal Queen-City—Look! Who are they that, as the crowds divide, draw into sight? Chaste boys, and girls yet afar from the marriage-bond. The sanctity of natural innocence heightening to the heart, and rendering more gracious, the sanctity of the altar!—winning favour—alluring the worshipper to the worship!

SEWARD.

The only expanded movement of the short passage—a third of it—seven verses out of the twenty-one.

NORTH.

The religious topics are, generally, the propitiating of the Divinities—then the particular benefits: Rain supplicated in seasons of Drought—the visitation of Pestilential Sickness averted—National dangers repelled—Peace, the wished-for, obtained—and the perpetual desire of earth's dwellers and tillers, the fruitful Year. He has risen gradually, and has reached the summit. Unexpectedly—you know not how—the Poet, though it is not so said, is far greater than the Emperor. Yes, my friends, for the dominion of the Imperial Throne is over the Kings of the Earth; but the sway of the well-strung Lyre is over the throned Gods who inhabit above or underneath the Earth. With Song are the celestial Deities soothed and made favourable—with Song the dark dominators of Hell.

"Carmines Dî Superi placantur, carmine Manes!"

A swelling and musical close to an anthem. What shall we admire most, then? The variety of the Praise? The ethical wisdom? The genuine love in the selection of the grounds? Or the exquisite skill of the artificer? The

"craft of the delicate spirit," who, veiled in humility, has gradually, and as if insensibly, scaled to a station from which he looks upon Monarchs—but from which should they aspire to strike him down, they offend, in violating his right, the majesty of the assembled Gods? In inditing the unhappy passage about the Poet's sole end being to please, I think that Dugald Stewart was beguiled by a prevalent misconception amongst those who have taught the Philosophy of the Fine Arts. The degrading influences are his own. No doubt the Poet draws his poetical being from Pleasure—the great ancestress of his tribe—*gentis origo*. He worships Pleasure according to the primeval fashion of ancestor-worship. But what is his impulse to compose, to *sing*? O hear from all the Great Poets since the world began, their answer. They sing because a Spirit is in them. They sing because the muse bids. She pours in thoughts and words; and along with thoughts and words flows in the musical Will. With them it is like the Sybil when invaded by Apollo. The real Poet sings, moved from without or from within. If from without—some fore-shaped or self-shaped subject; if from within, some passion, or some impassioned thought of his own has so deeply and strongly affected him, that he is impelled to seek relief of the burthening emotions and ideas in uttering them. This is the primary cause, and the natural origin of Song. And you may call this, if you choose, an intending of pleasure; but beware how you draw degrading inferences from this first recognition and admission of pleasure. If you weigh the psychological fact, you must look backwards to the attitude of mind which produced the work, and not forwards to the attitude which the work produces. Of the intellective, the moral, the imaginative, the pathetic powers that gave birth to the Iliad—or to the Prometheus Vincetus—to the Knight's Tale—to the Legend of Holiness—to Lear or Othello—or to the Paradise Lost! Who does not instantly feel that he has been summoned to conceive and to contemplate all that is mighty, august, affecting, or terrible in our souls? That he looks into the caverned abyss where the Spirits of Power walk? Even as when, by the side of Anchises, Æneas beholds in pre-existence the assemblage of his kingly descendants, whom their day and the upper air will call to rule the nations with sovereignty, to impose the conditions of peace, to spare the vanquished, and with war to bring down the proud. LEAR! The minstrels chanted an ancient rude lay—the infant stage brought a rude drama—TO SHAKSPEARE. But long before Minstrel or Theatre—had mother, or grandam, or nurse told to the weeping or

shuddering, to the burning or auguring Child, that relique of old memory, that domestic tragedy of the antique British throne—the story attracting and torturing of the Father-king who divided his heart and his realm to the two serpents, who cast out from heart and realm the Dove of his blood—till Time unveiled Truth and Love. *Then and there* was the seed, the slowly-springing, laid in the deep and kindly soil. From that hour dates the Lear of Shakspeare. Why repeat things that we all know, and have a thousand times said? Because they must be reasserted explicitly, as often as they are implicitly gainsayed; and is it not gainsaying them to affirm that the Poet sings *to please*, when indeed he sings because this Infinite of knowledges—this accumulation of experiences—this world of sensibilities and sympathies, of affections, passions, emotions, desires of his own and of other men's, inspires him, and will form itself in words? But he looks towards his hoped Auditors with a more direct selfish desire or design. He must have from them the meed of all glorious deeds—the wreath of all glorious doers—FAME. Let Grateful Mankind applaud the Benefactors of Mankind. Ay, he loves life. He would fain live beyond this world, wide as it is, of his own particular bosom—he would live in the bosoms of his contemporaries, and in the bosoms of the generations that are to follow for evermore. Proud as privileged, he asks his due—RECOGNITION. And who that has the ability to render will choose or dare to withhold the tribute? Fame! the nectarean cup—the ambrosial fruit—that confers *Immortality*! The last best gift that mortals affect to bestow on their fellow-mortals. He who, at some great crisis, achieves a deed which the world shall feel, and whereof the world shall ring—dilates, in consciousness, to comprehend those whom his act shall reach, and those to whom it shall resound. Remember Lord Nelson at Trafalgar—in the moment ere the first gun fires, the word signalled to the awaiting host throughout the Fleet—"ENGLAND EXPECTS." In an instant, the twenty-five millions of compatriot islanders, as if wafted by the winds from their distant homes, are *there*—spectators of the Fight that yet sleeps, at the next instant to wake, convulsing sea and air—spectators to every single combatant, of his individual heroism. What did that late conqueror of ancient Egypt and what did his fiery warriors understand, when going into battle he said to them—"Forty Centuries look down on you from the summit of yonder Pyramids?" These plains, for four thousand years, have belonged to History. See to it, that the page which you are about adding shall be, for your part, luminous with glory and victory, not

"Black with dishonour, and foul with retreat."

Suppose that he had said, "Forty Centuries *to come* gaze upon you." The Pyramids seem likely to hold their own in such a reckoning. Perhaps the stretch of time is too long for the imagination of the Gallic Soldier. But surely, so speaking, he had spoken more from his heart and less from his imagination; for *he* meditated the ages to come, not the ages gone by. To leave a name that shall sound, for good or for ill, loud-echoing from century to century—a name to be heard, when Cæsar, and Alexander, and Hannibal are commemorated—a name insubmergible by the waves of time—inextinguishable by the mists of oblivion—*that* he desired, and *that* has he not won? Horace has hung his name too in imagination on the structures of the Cheopses. But how different is the

"Exegi monumentum ære perennius,
Regaliq[ue] situ Pyramidum altius"

of the Poet! Horace indeed was already safe in pronouncing Homer immortal, with all the heroes upon whom he had conferred the gift. A thousand years! And the portentous strain, with all its Gods and Goddesses, and Kings and Queens, and Men and Women—fresh, bright, vivid, and fragrant, warm and yet reverberating from the Harp—as if the *plectrum* of the sublime Bard were but that moment withdrawn from the strings—as if the breast that first poured the strain were yet throbbing with quicker emotion—stirred by the pulsating chords and by the words which itself chanted. Horace might well understand the immortality of the Poet. That he claimed it, and judiciously, for himself—he who sung so differently, the sweet, the sprightly, some loftier notes too—but afar from Homer—suggests a reflection upon the nature of durability. The works were born of Love; and by Love they live, for in them the Love lives. *Spirat adhuc amor*. Those Egyptian, star-contemplating, and star-contemplated Edifices, quarried from the Rock, stand; integral parts of the Planet, immovable—immutable. That is one manner of enduring. Sound is awakened. For an instant it flits through the air and ceases, extinct in silence. Add Love, and you have informed sound with duration—another manner of enduring. The mountain of piled rocks and a touch on the air are become rivals in duration, and we say they will last for ever.

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FOOTNOTES:

[1] *Modern State Trials*: Revised and Illustrated, with Essays and Notes. By WILLIAM C. TOWNSEND, Esq., M.A., Q.C., Recorder of Macclesfield. In 2 vols. 8vo. Longman & Co. 1850.

[2] Lord Campbell has made considerable use of Mr Townsend's collection, and publicly acknowledged his obligations, in his *Lives of the Lord Chancellors and Lord Chief-Justices*. It is not impossible that we may, before long, present our readers with an extended examination of these two important works of the new Lord Chief-Justice of the Queen's Bench.

[3] Introduction, vol. i., p. 7, 8.

[4] Introduction, p. ix.

[5] Townsend, vol. i. pp. 1, 2.

[6] 4 Black. Com., pp. 81-2.

[7] Townsend, vol i., p. 54.

[8] Ibid. vol. i., p. 45.

[9] "I thought *he was crying*," said one of the witnesses!—p. 23.

[10] Stat. 7 Anne, c. 21, § 11.

[11] Townsend, vol. i. p. 71.

[12] Hall's Pleas of the Crown, part I., c. 14.

[13] Townsend, p. 95.

[14] 1 Townsend, pp. 99-100; and see the argument reported at length in *Regina v. Frost*, 9 Carr and Payne, 165-187. Of these fifteen Judges, only six are still on the Bench—Barons Parke, Alderson, Rolfe; and Justices Patteson, Coleridge, and Maule—nine having disappeared during the last ten years. It will be observed that the three chiefs of the Courts were of one way of thinking, viz. that there *had* been a good delivery of the list of witnesses, in point of law.

[15] 9 Carr and Payne, pp. 175-176.

[16] *Souvenirs de la Vie Militaire en Afrique*. Par M. PIERRE DE CASTELLANE. Paris: 1850.

[17] To ask the *aman* is to implore mercy; to give it is to grant pardon.

[18] In Africa, during the great heat, these *cabans* or short cloaks are often worn, to keep off the rays of the sun.

[19] The Arabs called General Changarnier the *Changarli*, the *Changarlo*. *Changar* is an Arab word, signifying to quell or crush. *Ma changarch alina*; do not strike me down—do not crush me.

[20] Sons of Turks by Arab women.

[21] This missionary, originally a Jew, had become a Calvinist at Bâle, then had joined the Church of England, and had finally turned missionary, in consideration of a handsome recompence. He drove a great trade in Bibles, which he sold to the Tunis shopkeepers. The leaves of the sacred volume served to envelope Mussulman butter and soap. The Caïd's book, published at Carlsruhe, made a noise, was prohibited, and, thanks to the prohibition, had immense success.—Note by M. de Castellane.

[22] *Blackwood's Magazine*, Vol. LXV., p. 20.

[23] A band of irregular horsemen.

[24] The Arab term for men of high family.

[25] The description of this peculiar phenomenon of the Indian Ocean, as given by Captain Collins, surprised us as much as the reality seems to have done him. However, on consulting a seafaring old gentleman of much experience in all parts of the world, we are informed that such an appearance is periodically to be met with for some distance between the Laccadive and Maldivé islands, as he had reason to know. The old Dutch Captain Stavorinus also furnishes an account substantially similar, having particularly attended to the cause of it in his voyage to the East Indies: it reaches also to some of the south-eastern islands at a great distance from India, near Java—or at all events appears there. In the Atlantic, Humboldt says there is a part of the sea always milky, although very deep, in about 57° W. longitude, and the parallel of the island of Dominica. Of the same nature, probably, are the immense olive-green spaces and stripes seen in blue water by Captain Scoresby and others, toward the ice of the north polar regions.

The pale sea alluded to is supposed either to move from the shores of Arabia Felix, and the gulfs in that coast, or, by some, to arise from sulphureous marine exhalations—appearing to rot the bottoms of vessels, and to frighten the fish. Both at the Laccadives and near Java it is seen twice a-year, often with a heavy rolling of the sea and bad weather. The first time, at the new moon in June, it is called by the Dutch the "little white-water;" again, at the new moon in August, the great "wit-water;" by English seamen, generally, the milk-sea, or the "blink."

[26] The zodiacal light, seen at sunrise and sunset.

[27] *Histoire des Ducs de Guise*. Par RÉNÉ DE BOUILLÉ, ancien Ministre Plénipotentiaire. Volume II. Paris: 1849.

[28] So styled by the Huguenots. Historians have adopted the designation. It consisted of Guise, Montmorency, and the Marshal of St André, and was a sort of prelude to the League.

[29] *Discours de la Bataille de Dreux*, dicté par FRANÇOIS DE LORRAINE.

[30] Thus stated by M. de Bouillé. Other writers have called the total force of the Protestants two thousand seven hundred horse and foot.

[31] Other writers have said that he had already *done* so, or at least that he was seated under a tree, a recognised prisoner, when he was shot. M. de Bouillé's account leaves a sort of loop-hole, to infer that Montesquiou might have been hardly aware that Condé was a prisoner. Such an inference, however, he probably does not intend to be drawn, and, in either case, it is contrary to historical fact.

[32] The following couplet, from Oudin's MS. history of the house of Guise, may serve as a specimen of the partisan ditties composed on this occasion:—

"L'an mil cinq cens soixante neuf,
Entre Jarnac et Chasteauneuf,
Fut porté mort sur une asnesse,
Ce grand ennemy de la Messe."

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Punctuation and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical and spelling errors were corrected.

PP. [373](#), [415](#) & [456](#) added missing footnote anchors.

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